# Employee Manual

Effective January 1, 2025

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# Welcome to Partners of the Americas!

This manual has been prepared to help you become acquainted with Partners of the Americas (Partners) and its policies and benefits and to answer questions common to new and continuing employees. Feel free to ask for additional information from your supervisor or the Operations Department.

The contributions each of us makes are equally important to the continuing success of the Partners mission. We are confident your work with Partners will be satisfying, stimulating, and enjoyable. Thank you for helping us fulfill our goals.

This manual provides employees with policies, practices, and general information relevant to their employment. It is intended for employees in the United States and does not apply to employees elsewhere or to independent contractors or volunteers. All employees will be required to sign an acknowledgement of receipt of employee manual confirming that they have reviewed all policies and will adhere to the standards set forth herein.

Partners recognizes that this manual cannot anticipate all situations that may arise, and further, some provisions may need to be revised after being used. Partners will conduct an annual review of this manual to make updates as needed or as required by law. Employees will be expected to sign the acknowledgement of receipt of employee manual annually in quarter 1. Questions and suggestions are welcome and should be provided to the Operations Office. Employees are free to ask about interpretations or to suggest changes at any time. Email should be sent to poahr@partners.net with a copy to compliance@partners.net.

## II. Handbook Disclaimer

This manual is not an employment contract and does not contain promises or conditions of employment or other commitments of any kind by Partners. Partners may, at any time, in its sole discretion, modify or vary from anything stated in this handbook with or without notice. The President & CEO may authorize a one-time modification on anything stated in this handbook, documented in a memo or an email. The information provided herein serves as a general guide but may be subject to local, state, or federal laws. In conflict, applicable laws will precede the policies stated in this manual. This manual supersedes and revokes all prior versions of previous employee manuals and any memo, bulletin, policy, or procedure on any subject discussed in this manual. Copies of the most recently approved manual is always available on SharePoint.

## III. Employment at Will Statement

While Partners hopes its relationship with each employee will be mutually beneficial, each individual's employment with Partners is at-will. This means that Partners may terminate the employment of any individual at any time, with or without notice, and with or without cause.

Likewise, Partners employees are similarly free to end their relationship with Partners at any time. Neither this manual, nor any other communication by any Partners representative, either written or oral, made at the time of hire or during employment, is intended to create any other employment relationship.

## IV. Executive Leadership Team

Partners' Executive Leadership Team is responsible for setting and interpreting Partners' policies and procedures. Any changes to this manual must be approved in writing by the President & CEO or his designee.

## V. Organizational Principles

### A. Individuals and Conduct Covered

These policies apply to all applicants and employees, whether related to conduct engaged in by fellow employees or by someone not directly connected to Partners (e.g., an outside vendor, consultant, or customer).

Conduct prohibited by these policies is unacceptable in the workplace and in any work-related setting outside the workplace, such as during business trips, business meetings, and business-related social events.

### B. Anti-Corruption and Anti-Bribery Policy

Partners is commitment to preventing corruption and bribery in all aspects of our business operations. It applies to all employees and representatives acting on behalf of Partners. This policy is designed to ensure compliance with anti-corruption laws and regulations, including the Foreign Corrupt Practices Act (FCPA), the UK Bribery Act, and other applicable laws.

Partners strictly prohibits any form of corruption, bribery, or unethical behavior in its business dealings, and all business activities and interactions must be conducted with honesty, transparency, and integrity. No representative of Partners is permitted to offer, promise, give, request, or receive any improper payment, benefit, or advantage to or from any person, including government officials, to gain an unfair business advantage. The following requirements apply:

- Gifts, Entertainment, Money, and Hospitality: Employee and representatives are prohibited from soliciting or accepting money, loans, credits, entertainment, favors, services, gifts, or other incentives, regardless of their amount, that could induce, or be perceived to induce, the individual to take any action that is other than independent or impartial.
    - If refusal of honor or gift will cause embarrassment to the giver or Partners, then the representative should have the CFO accept on behalf of the organization.
    - While gifts, entertainment, and hospitality offered or received in the course of business interactions are not generally permitted, if the CFO chooses to accept on

behalf of the organization, they must be transparent, reasonable, and in compliance with U.S. laws.

- Donation and Contributions: If donations or contributions are made on behalf of Partners, they must be made transparently, without any intent to improperly influence any decision or action.
- Third-Party Vetting: Before engaging with third parties, Partners will conduct thorough due diligence on Visual Compliance to assess their integrity and compliance with anti-corruption and anti-bribery standards. All Partners contracts and agreements with third parties will include anti-corruption and anti-bribery clauses.

## C. Prevention of Money Laundering & Financing of Terrorism

Partners is committed to preventing money laundering and the financing of terrorism in all aspects of our business operations. The Policy applies to all employees and representatives acting on behalf of Partners. The goal is to ensure compliance with relevant anti-money laundering and counter-financing of terrorism laws, regulations, and international standards.

### Definitions

- Money Laundering: The process of making illegally obtained proceeds appear legitimate by disguising their origins.
- Financing of Terrorism: Providing funds or financial support, directly or indirectly, to individuals, groups, or entities engaged in terrorist activities.

### Due Diligence

To ensure that Partners complies with this policy, the following actions will be implemented for all vendors:

- Vendor Vetting: All vendors will be checked in Visual Compliance annually.
- Risk Assessments: For any subawards or subcontracts over $100,000 USD, Partners will conduct initial and annual risk assessments to identify and evaluate money laundering and terrorism financing risks associated with its business activities, clients, and transactions. Full information on the Risk Assessment policy is found on SharePoint.
- Customer & Vendor Identification and Verification: For all home office payments on Bill.com, customers and vendors will have to register themselves and following Bill.com's procedures for identifying and verifying themselves and their bank information prior to payment, including providing tax identification information.

### Suspicious Activity Reporting

Employees and representatives are required to promptly report to compliance@partners.net any transactions or activities that appear suspicious or unusual and could be indicative of money laundering or financing of terrorism. The Compliance Team will be responsible for further investigation of the situation and/or transaction. If applicable, any violations or concerns will be reported to the appropriate government agencies as required by law.

## D. Nondiscrimination/Anti-Harassment Policy

Partners is committed to a work environment in which all individuals are treated with respect and dignity. Each individual has the right to work in a professional atmosphere that promotes equal employment opportunities and prohibits unlawful discriminatory practices, including harassment. Therefore, Partners expects that all relationships among persons in the office will be business-like and free of explicit bias, prejudice, and harassment.

Partners has developed this policy to ensure that all its employees can work in an environment free from unlawful harassment, discrimination, and retaliation. Partners will make every reasonable effort to ensure that all employees are familiar with these policies and are aware that any complaint in violation of such policies will be investigated and resolved appropriately.

Any employee who has questions or concerns about these policies should talk with the Human Resources (HR) Department.

These policies should not, and may not, be used as a basis for excluding or separating individuals of a particular gender, or any other protected characteristic (see Equal Employment Opportunity below), from participating in business or work-related social activities or discussions. In other words, no one should make the mistake of engaging in discrimination or exclusion to avoid allegations of harassment. Partners expects that all staff will respect and not discriminate against others on the basis of appearance (i.e. hair and dress code), language abilities (i.e. accents or perceived accents), and age (i.e. biases based on stereotypes of generational differences).

The law and the policies of Partners prohibit disparate treatment on the basis of sex or any other protected characteristic, with regard to terms, conditions, privileges, and perquisites of employment. The prohibitions against harassment, discrimination and retaliation are intended to complement and further those policies, not to form the basis of an exception to them.

### CROWN Act Nondiscrimination

Partners will comply with the CROWN Act, or Creating a Respectful and Open World for Natural Hair Act, which prevents discrimination based on hairstyles in the workplace and educational settings. The Act prohibits race-based hair discrimination by explicitly stating that traits historically associated with race, such as hair texture and protective hairstyles like braids, locks, twists, and knots, are protected characteristics. All individuals at Partners have the right to wear their hair in its natural state or in a manner reflective of their cultural or racial identity without fear of adverse employment or educational consequences.

## E. Equal Employment Opportunity

It is the policy of Partners to ensure equal employment opportunity without discrimination or harassment on the basis of actual or perceived race (including hairstyle/texture), creed, color, sex (including pregnancy, childbirth, and other pregnancy-related conditions), religion, national origin, citizenship, sexual orientation, personal appearance, gender identity or expression, physical or mental handicap or disability, age (18 or over), marital status (including parenthood), family responsibilities, matriculation, genetic information, political affiliation, veteran status, or any other

areas of discrimination prohibited by applicable law. This policy applies to all terms, conditions, and privileges of employment including hiring, training and staff development, promotion, and compensation.

## F. Affirmative Action

An affirmative action program is a management tool designed to ensure equal employment opportunity. Affirmative action programs contain a diagnostic component which includes a number of quantitative analyses designed to evaluate the composition of the workforce of the contractor and compare it to the composition of the relevant labor pools. Partners has an affirmation action plan to comply with the standards set forth in 40 CFR 60.2.10(b).

This policy applies to all phases of employment, including, but not limited to, recruiting, employment, placement, promotion, transfer, demotion, reduction of workforce and termination, rates of pay or other forms of compensation, selection for training, the use of all facilities, and participation in all company-sponsored employee activities. Provisions in applicable laws providing for bona fide occupational qualifications, business necessity, or age limitations will be adhered to by Partners where appropriate.

Partners will also take affirmative action as called for by applicable laws and Executive Orders to ensure that minority group individuals, females, disabled veterans, recently separated veterans, other protected veterans, Armed Forces service medal veterans, and qualified disabled persons are introduced into our workforce and considered for promotional opportunities.

Employees and applicants shall not be subjected to harassment, intimidation, or any type of retaliation because they have (1) filed a complaint; (2) assisted or participated in an investigation, compliance review, hearing, or any other activity related to the administration of any federal, state, or local law requiring equal employment opportunity; (3) opposed any act or practice made unlawful by any federal, state, or local law requiring equal opportunity; or (4) exercised any other legal right protected by federal, state, or local law requiring equal opportunity.

HR is responsible for overseeing Partners' Affirmative Action Program.

## G. Voluntary Self-Identification Forms

Partners invites employees, applicants, and new hires to self-identify as individuals with a disability, by gender, race/ ethnicity, and veteran status. Completion of this data is VOLUNTARY and will not affect your opportunity for employment, or terms or conditions of employment. This form will be used for compliance reporting purposes to the U.S. Government only and will be kept separate from all other personnel records only accessed by HR. The forms for each type of reporting are listed below:

1. Identification of Disability: Office of Federal Contract Compliance Program's mandated form Voluntary Self-Identification of Disability Form (CC-305)
2. Identification of gender and race/ethnicity: Equal Employment Opportunity Commission (EEOC) Identification Form.

3. Identification of Veteran Status: Department of Labor Reporting VETS-4212 Identification Form.

Partners will resurvey their workforce once every five (5) years.

## H. Accommodation for Persons with Disabilities and Interactive Dialogue

As part of its commitment to a diverse workforce, Partners does not discriminate in its hiring or employment practices against qualified individuals with disabilities who can perform the essential job functions with or without reasonable accommodation. Partners is committed to complying with applicable federal, state, and local laws governing reasonable accommodations of individuals, including, but not limited to, the Americans with Disabilities Act (ADA). To that end, Partners will make a reasonable accommodation to applicants and employees who have requested an accommodation or for whom Partners has noticed may require such an accommodation, without regard to any protected classifications, related to an individual's:

- Disability, meaning any physical, medical, mental, or psychological impairment, or a history or record of such impairment;
- Sincerely held religious beliefs and practices;
- Needs as a victim of domestic violence, sex offenses, or stalking;
- Needs related to pregnancy, childbirth, or related medical conditions; and/or
- Any other reason required by applicable law unless the accommodation would impose an undue hardship on the operation of our business.

Furthermore, Partners commits to the following hiring standards relating to accommodation:

- The application process is used solely to determine whether a candidate's qualifications and abilities reasonably match job requirements. Therefore, applicants are not queried about their physical condition or medical history (except where it appears that essential job functions could not be performed without accommodations, in which case only appropriate inquiries relating to functional limitations are made).
- Partners will make reasonable accommodations to enable a qualified individual with a disability to perform essential job functions, unless doing so will create an undue hardship.

Any individual who would like to request an accommodation based on any of the reasons set forth above should contact the HR Department. Accommodation requests can be made in writing via email. To the extent possible, Partners will keep confidential all communications regarding requests for reasonable accommodations and all circumstances surrounding the underlying reason for needing an accommodation.

After receiving a request for an accommodation or learning indirectly that the employee may require such an accommodation, Partners will engage in an interactive dialogue with the employee. Even if employee has not formally requested an accommodation, Partners may initiate an interactive dialogue under certain circumstances, such as when Partners has knowledge that the employee's performance at work has been negatively affected and a reasonable basis to believe that the issue is

related to any of the protected classifications set forth above. In the event Partners initiates an interactive dialogue with an employee, it should not be construed as Partners' belief an individual requires an accommodation, but will serve as an invitation for the employee to share any information, desires to share, or to request an accommodation. The interactive dialogue may take place in person, by telephone, or by electronic means. As part of the interactive dialogue, Partners will communicate openly and in good faith with the employee in a timely manner to determine whether and how Partners may be able to provide a reasonable accommodation.

## I. Sexual harassment

Sexual harassment constitutes discrimination and is illegal under federal, state, and local laws. For the purposes of this policy, "sexual harassment" is defined, as in the Equal Employment Opportunity Commission Guidelines, as unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature when, for example:

a) submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment,
b) submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual, or
c) such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile, or offensive working environment.

Title VII of the Civil Rights Act of 1964 recognizes two types of sexual harassment:

a) quid pro quo and
b) hostile work environment.

Sexual harassment may include a range of subtle and not-so-subtle behaviors and may involve individuals of the same or different gender. Depending on the circumstances, these behaviors may include unwanted sexual advances or requests for sexual favors; sexual jokes and innuendo; verbal abuse of a sexual nature; commentary about an individual's body, sexual prowess, or sexual deficiencies; leering, whistling, or touching; insulting or obscene comments or gestures; display in the workplace of sexually suggestive objects or pictures; and other physical, verbal, or visual conduct of a sexual nature.

## J. Harassment

Partners intends to provide a work environment that is pleasant, healthful, comfortable, and free from intimidation, hostility, or other offenses which might interfere with work performance. Harassment of any sort – verbal, physical, or environmental – is prohibited by this policy and will not be tolerated. Moreover, Partners will not tolerate harassment by supervisors, employees, volunteers, or other non-employees who conduct business with Partners.

Harassment on the basis of any other protected characteristic is also strictly prohibited. Under this policy, harassment is verbal, written. or physical conduct that denigrates or shows hostility or

aversion toward an individual because of any of the protected classes listed above in C. Equal employment opportunity, or that of his or her relatives, friends, or associates, and that:

a) has the purpose or effect of creating an intimidating, hostile, or offensive work environment,
b) has the purpose or effect of unreasonably interfering with an individual's work performance, or
c) otherwise adversely affects an individual's employment opportunities.

Harassing conduct includes epithets, slurs, or negative stereotyping; threatening, intimidating, or hostile acts; denigrating jokes; and written or graphic material that denigrates or shows hostility or aversion toward an individual or group that is placed on walls or elsewhere on the employer's premises or circulated in the workplace, on company time or using company equipment by e-mail, phone (including voice messages), text messages, social networking sites, or other means. This may include but is not limited to:

- Unwelcome sexual flirtations, touching, advances, or propositions
- Verbal abuse of a sexual nature
- Graphic or sexually suggestive comments
- Sexually degrading words to describe an individual
- The display, storage, or transmission of sexually suggestive objects or pictures

Partners will not tolerate verbal or physical conduct which harasses, disrupts, or interferes with another's work performance or which creates an intimidating, offensive, or hostile work environment. To avoid circumstances where harassment becomes severe or pervasive, employees should report all incidents of harassment immediately. Reference H. Compliant Procedure.

Each staff member is responsible for ensuring that the workplace is free of sexual harassment. No supervisor or other employee shall threaten or insinuate, either explicitly or implicitly, that an employee's refusal to submit to sexual advances will adversely affect the staff member's employment, wages, advancement, assigned duties, or any other condition of employment or career development.

## K. Workplace Bullying

Partners defines bullying as "repeated inappropriate behavior, either direct or indirect, whether verbal, physical or otherwise, conducted by one or more persons against another or others, at the place of work and/or in the course of employment." Such behavior violates the company Code of Conduct, which clearly states that all employees will be treated with dignity and respect.

This policy aims to communicate to all employees, including supervisors, managers, and executives, that the company will not tolerate bullying.

Bullying may be intentional or unintentional. However, it must be noted that where an allegation of bullying is made, the intention of the alleged bully is irrelevant and will not be given consideration when determining discipline. As in sexual harassment, it is the effect of the behavior upon the individual that is important. Partners considers the following types of behavior examples of bullying:

- *Verbal bullying*: Slandering, ridiculing, or maligning a person or his/her family; persistent name calling that is hurtful, insulting, or humiliating; using a person as the butt of jokes; abusive and offensive remarks.
- *Physical bullying*: Pushing, shoving, kicking, poking, tripping, assault, or threat of physical assault; damage to a person's work area or property.
- *Gesture bullying*: Nonverbal threatening gestures or glances that convey threatening messages.
- *Exclusion*: Socially or physically excluding or disregarding a person in work-related activities.

## L. Reporting an Incident of Harassment, Discrimination, or Retaliation

Partners encourages reporting of all perceived incidents of discrimination, harassment, or retaliation, regardless of the offender's identity or position. Individuals who believe that they have been the victim of such conduct should discuss their concerns with their immediate supervisor, HR, or Foster Thomas at bbulger@fosterthomas.com and complete the Complaint Form. Reference H. Compliant Procedure.

In addition, Partners encourages individuals who believe they are being subjected to such conduct to promptly advise the offender that his or her behavior is unwelcome and to request that it be discontinued. Often this action alone will resolve the problem. Partners recognizes, however, that an individual may prefer to pursue the matter through section M. Complaint Procedure.

It is the policy of Partners to investigate such reports promptly and thoroughly. Partners prohibits retaliation against any individual who reports discrimination or harassment, or participates in an investigation of such reports.

## M. Complaint Procedure

It is the policy of Partners to provide employees with the opportunity to bring work-related problems and concerns to the attention of management and to resolve such problems fairly and promptly. Individuals who believe they have been the victims of conduct prohibited by this policy, believe they have witnessed such conduct, or feel that they have been treated unfairly or inequitably in regard to a condition or action affecting employment should discuss their concerns with their immediate supervisor, HR, or Foster Thomas at bbulger@fosterthomas.com and complete the Complaint Form.

Alternatively, or in addition to the confidential hotline, you may also contact another supervisor at Partners. Such complaints must be recorded in writing by the complainant or the supervisor or manager to whom it is reported on the Complaint Form. Any supervisor who becomes aware of possible harassment or retaliation must immediately advise a member of the Executive Leadership Team so it can be investigated in a timely and confidential manner.

Partners encourages the prompt reporting of complaints or concerns so that rapid and constructive action can be taken before relationships become irreparably strained. Therefore, while no fixed reporting period has been established, early reporting and intervention have proven to be the most effective method of resolving actual or perceived incidents of harassment.

Any reported allegations of harassment, discrimination, or retaliation will be investigated promptly. The investigation may include individual interviews with the parties involved and, where necessary, with individuals who may have observed the alleged conduct or may have other relevant knowledge. Partners will maintain confidentiality throughout the investigatory process to the extent consistent with adequate investigation and appropriate corrective action.

Misconduct constituting harassment, discrimination, or retaliation will be dealt with appropriately. Responsive action may include, for example, training, referral to counseling or disciplinary action such as a warning, reprimand, withholding of a promotion or pay increase, reassignment, temporary suspension without pay, or termination, as Partners believes appropriate under the circumstances.

If a party to a complaint does not agree with its resolution, that party may appeal to Partners' President & CEO.

False and malicious complaints of harassment, discrimination, or retaliation (as opposed to complaints that, even if erroneous, are made in good faith) may be the subject of appropriate disciplinary action.

## N. Retaliation

Partners prohibits retaliation against employees who legitimately exercise their rights under this policy or participate in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any employee for making a truthful, good-faith complaint or report of a violation. Retaliation against an individual for reporting harassment or discrimination or for participating in an investigation of a claim of harassment or discrimination is a serious violation of this policy and, like harassment or discrimination itself, will be subject to disciplinary action. Acts of retaliation should be reported immediately and will be promptly investigated and addressed.

## O. Gender Identity Policy

Partners does not discriminate in any way based on sex, sexual orientation, gender identity, or gender expression. This policy is designed to create a safe and productive workplace environment for all employees. This policy sets forth guidelines to address the needs of transgender and gender non-conforming employees and clarifies how the law should be implemented in situations where questions may arise about how to protect the legal rights or safety of such employees. Partners has developed its Gender Identity Policy which applies to all individuals when interacting with members of the Partners' staff or network. Please reference Annex A for the complete policy.

## P. Sexual Exploitation and Abuse Prevention Policy

Partners has a no-tolerance policy toward sexual harassment, exploitation, and abuse (SEA). SEA occurs when a position of power (such as being a staff member of an NGO) is used for sexual purposes against a beneficiary or vulnerable member of the community. Employees must conduct themselves in a professional manner as representatives of the organization, consistent with the standards for U.N. employees in Section 3 of the U.N. Secretary General's Bulletin-Special Measures for Protection from Sexual Exploitation and Sexual Abuse (ST/SGB/2003/13). Partners Sexual Exploitation and

Abuse Policy applies to all individuals when interacting with program beneficiaries. Please reference Annex B for the complete policy.

## Q. Child Safeguarding Policy

Partners has a no-tolerance approach to child exploitation and/or abuse by any Partners Employees and Affiliates. Child Safeguarding is preventative actions to ensure that all children are protected from deliberate or unintentional acts that lead to the risk of or actual harm by Partners Employees and Affiliates who come into contact with children or impact them through our development interventions, humanitarian responses, and operations. Partners' Child Safeguarding Policy applies to all individuals when interacting with children both in the U.S. and abroad. Please reference Annex C for the complete policy.

## R. Trafficking in Persons (TIP) Policy

Partners maintains a no-tolerance policy against TIP and will ensure risks associated with TIP are minimized in all operations. Employees and Affiliates must avoid and are prohibited from active engagement, complicity in, or benefiting from any practice that constitutes trafficking in persons. Please reference Annex D for the complete policy.

## S. Anti-Forced Labor

Partners prohibits all forced labor. Forced labor shall mean any work or service exacted from an individual under the threat of any penalty and for which the individual has not voluntarily offered himself/herself.

## T. Open-Door Policy

Partners has adopted an Open-Door Policy for all employees. This means that every manager's door is open to every employee. The purpose of our open-door policy is to encourage open communication, feedback, and discussion about any matter of importance to an employee. Our open-door policy means that employees are free to talk with any manager at any time about any topic, as long as they abide by Partners' Code of Conduct and communicate with dignity and respect.

### Responsibilities under an Open-Door Policy:

- If any area of your work is causing you concern, you have the responsibility to address your concern with a manager.
- Whether you have a problem, a complaint, a suggestion, or an observation, your managers want to hear from you. By listening to you, Partners can improve, address complaints, and foster employee understanding of the rationale for practices, processes, and decisions.

### Before You Pursue the Open-Door Policy:

Most problems can and should be solved in discussion with your immediate supervisor; this is encouraged as your first effort to solve a problem. However, an open-door policy means that you may also discuss your issues and concerns with the next levels of management and/or HR. No matter how you approach your problem, complaint, or suggestion, you will find managers at all levels of the organization willing to listen and to help bring about a solution or a clarification.

## U. Whistleblower Policy

Employees have the duty to comply with all applicable laws and to assist Partners to ensure legal compliance. Partners encourages its employees to report improper activities in the workplace and will protect employees from retaliation for making any such report in good faith. Employees have the right to report, without suffering retaliation, any activity by the organization or its employees that the employee reasonably believes:

- Violates any local, state, or federal law
- Violates or amounts to noncompliance with any local, state, or federal rule or regulation
- Violates fiduciary responsibilities by a corporation to its stakeholders or employees

In addition, employees can refuse to participate in an activity that would result in a violation of, or noncompliance with, any local, state, or federal statutes, rules, or regulations. Employees are also protected from retaliation for having exercised any of these rights in any former employment. The whistleblower protection laws do not entitle employees to violate a confidential privilege of the organization (such as attorney-client privilege) or improperly disclose trade-secret information.

### Whistleblower Complaint Procedure

Any employee who suspects a violation of ethics or legal compliance is required to report the situation(s) to their supervisor or a member of Executive Leadership. Alternatively, a confidential hotline at bbulger@fosterthomas.com has been established for you to report your concern via email to an outside party. The email is monitored by an HR Consultant from Foster Thomas who will relay any concerns to the Ethics Committee of the Board. If the situation is life-threatening or extremely critical in nature, it needs to be reported to the Executive Leadership Team as well as the hotline for immediate action to be taken. Employees may also report information regarding possible unlawful activity to an appropriate government or law enforcement agency.

### Protection from Retaliation for Whistleblower Complaints

Federal and state laws prohibit employers from discharging an employee or taking other adverse employment action against an employee in retaliation for the employee's good faith complaint about safety and health hazards or other violations of law in the workplace and the environment. These whistleblower protections are in addition to protection or rights provided by other applicable laws.

## V. Personal Relationships

An employee who is involved in a personal relationship with another employee may not occupy a position in the same department as, work directly for, or supervise the employee with whom he or she is involved. Partners reserves the right to take prompt action if an actual or potential conflict of interest arises concerning individuals who occupy positions at any level (higher or lower) in the same line of authority that may affect business or employment decisions. Supervisors are strictly prohibited from dating subordinates and may be disciplined for such actions, up to and including termination.

When a conflict or the potential for conflict arises due to a personal relationship between employees, even if there is no line of authority or reporting involved, the employees may be separated by

reassignment or terminated from employment. If such personal relationship is established after employment, it is the responsibility and obligation of the employees involved to disclose the existence of the relationship to their supervisor or management. Any employees concerned about others' possibly inappropriate relationships should report it to their supervisor.

When a conflict or a potential for conflict arises because of a relationship, the individuals concerned may be given the opportunity to decide who is to be transferred to another position or terminated if no position is available. Ultimately, management will decide who is to be transferred or, if necessary, terminated from employment based on a neutral factor such as seniority.

## W. Appearance and Attire

Partners strives to maintain a workplace environment that functions well and is free from unnecessary distractions and annoyances. Partners staff members are expected to present a professional, businesslike image to clients, visitors, customers, and the public. Each employee is expected to dress and groom appropriately for the job, presenting a clean and neat appearance and be mindful of natural or artificial scents that could be distracting or irritating to others. Any employee unsure about appropriate attire or grooming should consult with his or her supervisor. In setting standards for dress and grooming, supervisors will consider exceptions for any religious or similar considerations that are requested.

Below are a few guidelines for professional appearance:

- All employees should practice common sense rules of neatness, good taste, and comfort.
- The following items are considered inappropriate and generally **not permitted at any time**:
    - Crop tops or clothing showing midriffs, spaghetti straps
    - Shorts
    - Athletic/exercise attire
    - Beachwear
    - Sweatpants
    - Flip flops
    - Slippers
    - Ripped, frayed, or disheveled clothing,
    - Garments that are unnecessarily tight or revealing
- **Personal appearance**: This should include good personal hygiene, including clean, well-groomed hair and facial hair. If wearing perfumes or cologne, please keep it light. Partners reminds employees that they are protected under the CROWN Act, which prohibits race-based hair discrimination. Employees may wear their hair in its natural state or in a manner reflective of their cultural or racial identity.
- **Jeans:** Jeans are allowable on all days (except for external meetings) but must be in good condition.
- **Shoes/Footwear:** Please do not walk with bare feet or socks throughout the office, this does not demonstrate a common sense of neatness. Note that tennis shoes, converse or similar, are allowable on all days (except for external meetings).

- **Business attire:** This includes the following dress shirts, ties, tailored sport coats or blazers worn with dress pants, tailored pantsuits, or dress suits, coordinated separates and dress shoes.

All days will be considered casual dress days, unless there is an external meeting, in which case you must wear business casual. In all cases, attire must still meet the above standards.

***Reasonable accommodation of religious beliefs***

Partners recognizes the importance of individually held religious beliefs to persons within its workforce. Partners will reasonably accommodate a staff member's religious beliefs in terms of workplace attire unless the accommodation creates an undue hardship. Accommodation of religious beliefs in terms of attire may be difficult in light of safety issues for staff members. Those requesting a workplace attire accommodation based on religious beliefs should be referred to the HR department.

***Addressing workplace attire and hygiene problems***

Violations of this policy can range from inappropriate clothing items to offensive perfumes and body odor. If an employee's dress or grooming does not comply with established standards, the supervisor will discuss with the employee, and the employee may be sent home for the remainder of the day (without pay for hourly employees) or to change clothes and return to work. The supervisor may initiate disciplinary action if discussions fail to bring the desired result.

**If you have any questions regarding this appearance and attire policy, please consult with your supervisor or HR.**

## X. Media Release

Partners requires that all employees sign a media release form and either opt in or out of release of their videos, voice, and/or images. These forms allow Partners to legally share and distribute content for promotional, educational, or informational purposes. By obtaining explicit consent through these forms, both Partners and employees involved have transparency and mutual understanding regarding the utilization of visual and auditory materials. Media release forms are found in PandaDoc.

## Y. Smoke and Vape Free Workplace Policy

Partners prohibit smoking and vaping on all company premises to provide a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking, or carrying a lighted or smoldering cigar, cigarette, or pipe of any kind." Vaping refers to the use of electronic nicotine delivery systems or electronic smoking devices such as e-cigarettes, e-pipes, e-hookahs, and e-cigars.

The smoke and vape free workplace policy applies as follows:

- Smoking and vaping are strictly prohibited on Partners property, including indoor and outdoor areas (except where designated), parking lots, company-owned or leased vehicles, and all company-sponsored offsite conferences and meetings.
- All employees, interns, contractors, and consultants and/or their employees working on company premises, and visitors (customers and vendors) to Partners premises are expected to comply with this policy and promote a smoke-free and vape-free environment.

Smoking and vaping is permitted behind or in front of the building where designated.

Employees who violate the smoking policy will be subject to disciplinary action. Visitors and contractors who violate this policy may be asked to leave the premises.

## Z. Drug and Alcohol Policy

In compliance with the Drug-Free Workplace Act of 1988, Partners has a longstanding commitment to provide a safe, quality-oriented, and productive work environment. Alcohol and drug misuse poses a threat to the health and safety of Partners employees and to the security of the company's equipment and facilities. For these reasons, Partners is committed to the elimination of drug and alcohol use and misuse in the workplace.

### Definitions

- **"Company premises"** includes all buildings, offices, facilities, grounds, parking lots, lockers, places, and vehicles owned, leased, or managed by Partners or any site on which the company is conducting business which includes external meetings and work travel. Work travel is defined as starting the moment you leave your home-of-record (or work location) and ends the moment you return to your home-of-record (or work location). If personal days are included on your travel authorization, these days are not considered work travel and therefore, exempt from the policy.
- **"Illegal drug"** means a substance whose use or possession is controlled by federal law but that is not being used or possessed under the supervision of a licensed health care professional. (Controlled substances are listed in Schedules I-V of section 202 of the Controlled Substances Act ( 21 U.S.C.812) and as further defined in regulation at 21 CFR 1308.)
- **"Refuse to cooperate"** means to obstruct the collection or testing process; to submit an altered, adulterated, or substitute sample; to fail to show up for a scheduled test; to refuse to complete the requested drug testing forms; or to fail to promptly provide specimen(s) for testing when directed to do so, without a valid medical basis for the failure. Employees who leave the scene of an accident without justifiable explanation prior to submission to drug and alcohol testing will also be considered to have refused to cooperate and will automatically be subject to discharge.
- **"Under the influence of alcohol"** means an alcohol concentration equal to or greater than .08, or actions, appearance, speech, or bodily odors that reasonably cause a supervisor to conclude that an employee is impaired because of alcohol use.

- **"Under the influence of drugs"** means a confirmed positive test result for illegal drug use per this policy. In addition, it means the misuse of legal drugs (prescription and possibly OTC) when there is not a valid prescription from a physician for the lawful use of a drug in the course of medical treatment (containers must include the patient's name, the name of the substance, quantity/amount to be taken, and the period of authorization).

### Work Rules

Whenever employees are working, are operating any Partners vehicle, are present on Partners premises, or are conducting company-related work offsite, they are prohibited from:

- Using, possessing, buying, selling, manufacturing, or dispensing an illegal drug (to include possession of drug paraphernalia).
- Being under the influence of alcohol or an illegal drug as defined in this policy.

Partners recognizes that some work-related social events may serve alcohol with the permission of a Director position or above. Everyone on the team is expected to behave responsibly at such events.

Partners will also not allow employees to perform their duties while taking prescribed drugs that are adversely affecting their ability to perform their job duties safely and effectively. Employees taking a prescribed medication must carry it in a container labeled by a licensed pharmacist or be prepared to produce the container if asked.

Any illegal drugs or drug paraphernalia may be turned over to an appropriate law enforcement agency and may result in criminal prosecution.

### Employee Support

Partners will assist and support employees who voluntarily seek help for drug or alcohol addiction before becoming subject to discipline or termination under this or other Partners policies. Such employees will be allowed to use accrued paid time off, placed on leaves of absence, referred to treatment providers, and otherwise accommodated as required by law. However, employees will be responsible for the cost of such treatment. Employees may be required to document that they are successfully following prescribed treatment and to take and pass follow-up tests if they hold jobs that are safety-sensitive or require driving, or if they have violated this policy previously. Once a drug test has been initiated under this policy, unless otherwise required by the Family and Medical Leave Act or the Americans with Disabilities Act, the employee will have forfeited the opportunity to be granted a leave of absence for treatment, and will face possible discipline, up to and including discharge.

Employees should report to work fit for duty and free of any adverse effects of illegal drugs or alcohol. This policy does not prohibit employees from the lawful use and possession of prescribed medications. Employees must, however, consult with their doctors about the medications' effect on their fitness for duty and ability to work safely, and they must promptly disclose any work restrictions to their supervisor.

### Drug Testing

Employees are subject to testing based on, but not limited to, observations of apparent workplace use, possession, or impairment by at least two members of management, HR, or the Executive Leadership Team, should be consulted before sending an employee for testing. Management must use the observations below to determine if there is a reasonable suspicion that an employee is under the influence of illegal drugs or alcohol. Examples include:

- Odors (smell of alcohol, body odor, or urine)
- Movements (unsteady, fidgety, dizzy)
- Eyes (dilated, constricted or watery eyes, or involuntary eye movements)
- Face (flushed, sweating, confused or blank look)
- Speech (slurred, slow, distracted mid-thought, inability to verbalize thoughts)
- Emotions (argumentative, agitated, irritable, drowsy)
- Actions (yawning, twitching)
- Inactions (sleeping, unconscious, no reaction to questions)
- When employees cause or contribute to accidents that seriously damage a Partners vehicle, machinery, equipment, or property or that result in an injury to themselves or another employee requiring offsite medical attention.

When reasonable suspicion testing is warranted, both management and HR will meet with the employee to explain the observations and the requirement to undergo a drug and/or alcohol test within two hours. Refusal by an employee will be treated as a positive drug test result and will result in immediate termination of employment.*

Employees subject to alcohol testing will be transported to a Partners-designated facility and directed to provide breath specimens. Breath specimens will be tested by trained technicians using federally approved breath alcohol testing devices capable of producing printed results that identify the employee.

Applicants and employees subject to drug testing will be transported to a Partners-designated testing facility and directed to provide urine specimens. Applicants and employees may provide specimens in private unless they appear to be submitting altered, adulterated, or substitute specimens. Collected specimens will be sent to a federally certified laboratory and tested for illegal drugs.

The laboratory will transmit all alcohol and drug test results to HR.

*Under no circumstances will the employee be allowed to drive himself or herself to the testing facility. A member of management must transport the employee or arrange for a taxi and arrange for the employee to be transported home.

### Consequences

Employees who refuse to cooperate in required tests or who use, possess, buy, sell, manufacture, or dispense an illegal drug in violation of this policy will be terminated.

Employees who test positive, or otherwise violate this policy, will be subject to discipline, up to and including termination. Depending on the circumstances, the employee's work history/record and any state law requirements, Partners may offer an employee who violates this policy or tests positive the opportunity to return to work on a last-chance basis pursuant to mutually agreeable terms, which could include follow-up drug testing at times and frequencies determined by Partners.

Employees will be paid for time spent in alcohol or drug testing and then suspended pending the results of the drug or alcohol test. After the results of the test are received, a date and time will be scheduled to discuss the results of the test with the employee's supervisor and HR. If the results are negative, the employee will receive back pay for the times/days of suspension.

### Confidentiality

Information and records relating to positive test results, drug and alcohol dependencies, and legitimate medical explanations provided to HR will be kept confidential to the extent required by law and maintained in secure files separate from normal personnel files. Such records and information may be disclosed among managers and supervisors on a need-to-know basis and may also be disclosed when relevant to a grievance, charge, claim, or other legal proceeding initiated by or on behalf of an employee or applicant.

### Inspections

Partners reserves the right to inspect all portions of its premises for drugs, alcohol, or other contraband; affected employees may have union representation involved in this process. All employees, contract employees and visitors may be asked to cooperate in inspections of their persons, work areas and property that might conceal a drug, alcohol, or other contraband. Employees who possess such contraband or refuse to cooperate in such inspections are subject to appropriate discipline, up to and including termination.

### Crimes Involving Drugs

Partners does not desire to intrude into the private lives of its employees but recognizes that employees' off-the-job involvement with drugs and alcohol may have an impact on the workplace. Therefore, Partners reserves the right to take appropriate disciplinary action for drug use, sale, or distribution while off company premises. All employees who are convicted of, plead guilty to, or are sentenced for a crime involving an illegal drug are required to report the conviction, plea, or sentence to HR within five (5) days. Failure to comply may result in termination. Reporting of drug crimes may result in suspension without pay to allow management to review the nature of the charges and the employee's past record with Partners.

## AA. Health & Safety

Partners is committed to providing a safe and healthy workplace for all its employees and visitors. Accordingly, Partners complies with all applicable requirements issued by State and Federal agencies such as the Occupational Safety and Health Administration (OSHA) and the Environmental Protection Agency (EPA).

All employees share the responsibility for workplace safety. Supervisors are responsible for developing safety awareness and ensuring that all operations are performed with the utmost regard for the safety and health of all employees involved. Employees are responsible for continuously practicing safety while performing their job duties. Employees are encouraged to be alert to unsafe conditions and report them promptly to their supervisor. All reports can be made without fear of retaliation.

Employees are required to adhere to all policies on safety procedures. All equipment and tools should be used safely. Employees should limit their work activities to those outlined in their job description. Partners may not be liable for injuries incurred in any other circumstances and compensation may not be given.

Safety is directly related to neatness and cleanliness. Employees are expected to keep their work and public/common areas neat, organized, and free of clutter or objects that could interfere with the work process or cause accidents.

### Job Related Injury Reporting

Employees should immediately report all work-related illnesses, injuries, or occupational disease exposures to their supervisor and complete an Employee Incident Report Form.

Partners does not discriminate or retaliate against employees who have filed legitimate workers' compensation claims. Supervisors will not take or threaten any action to compel or persuade employees not to file a workers' compensation claim.

## BB. Duty of Care – Safety & Security

Partners takes precautions to protect the health and well-being of its staff while carrying out their duties and responsibilities on behalf of Partners. Partners adheres to Partners' Global Safety and Security Policies. Partners policies consists of a risk assessment and standard security protocols for each country designed to mitigate threats and maintain contingency planning.

Employees are expected to report all security and safety incidents in accordance with Partners' Global Safety and Security Policies. Please speak with your supervisor or Chief Operating Officer should you have any questions regarding Partners' security and safety protocols. Violations of Partners' global safety and security policies or standard operating procedures may result in disciplinary action.

### Safety Protocols on Business Travel

Any employee traveling for Partners business purposes must comply with Partners' Travel Policy and the basic safety protocols below:

1. ***Pre-travel Planning:*** Before any business trip, employees should review the current travel advisory warnings and security conditions of their intended destination. If the advisory is rated high risk, the employee must seek approval from their supervisor and the Chief Operating Officer before the trip can be authorized.

2. ***Booking Travel and Accommodation:*** All travel arrangements, including airfare, ground transportation, and lodging, should be made through the Partners' travel provider. If an employee chooses to make their own travel arrangements, it must be approved by the supervisor.
3. ***Communication and Check-In:*** Employees must regularly check-in with their supervisor and emergency contacts during their trip. They should provide a detailed itinerary with contact information and emergency procedures. If there are any changes to the itinerary, the employee must inform the supervisor and emergency contacts immediately.
4. ***Health and Safety:*** Employees are required to follow all local health and safety regulations, including wearing masks and practicing social distancing. The company will provide employees with personal protective equipment (PPE) as required. Employees are also expected to familiarize themselves with the location of the nearest medical facilities and emergency services. Employees should be advised to seek medical attention immediately if they experience any health issues while traveling.
5. ***Security:*** Employees must take necessary precautions to ensure their own security, including avoiding unsafe areas and situations. Partners will provide employees with relevant security information, including crime statistics, terrorism threats, and other relevant safety concerns. Please reference Partners' pre-arrival travel briefs.
6. ***Crisis Management:*** In case of an emergency or crisis situation, employees should contact the emergency hotline below. The hotline is managed by a third party firm that is able to provide immediate assistance to the employee. The assistance may include evacuation, medical support, or other necessary measures to ensure the employee's safety.

### Emergency Hotline

In event of an immediate life-threatening situation while travelling internationally for work, employees, consultants, volunteers, and other travelers should contact Partners' third party security provider RSM, who handles emergency and crisis response. RSM will assist with security, political, medical, natural disaster, and other crises and evacuations. The emergency hotline is: +1 855-969-3949, which is available 24/7 and in multiple languages.

## CC. Vehicle Use Policy

Partners has company/project vehicles for business use. All employees must adhere to the policy governing the operation, fueling, maintenance, record-keeping, and overall management of vehicles owned, rented, or leased by Partners. The policy is designed to mitigate risks to both Partners and its personnel by imposing reasonable guidelines on vehicle use, upkeep, and administration. This policy encompasses vehicles such as automobiles, vans, motorcycles, ATVs, or any other motorized vehicles. Non-compliance constitutes a severe breach and may lead to disciplinary actions, including termination. The full policy and required forms can be found in Annex L: Vehicle Use Policy.

## DD. Workplace Violence Prevention Policy

Partners is committed to preventing workplace violence and to maintaining a safe work environment. Partners has adopted the following guidelines to deal with intimidation, harassment,

or other threats of or actual violence that may occur onsite or offsite during work-related activities. This policy applies to all employees.

### Prohibited Conduct

All employees, customers, vendors, and business associates should be treated with courtesy and respect at all times. Employees are expected to refrain from fighting, "horseplay," or other conduct that may be dangerous to others. Conduct that threatens, intimidates, or coerces another employee, customer, vendor, or business associate will not be tolerated. Partners resources may not be used to threaten, stalk, or harass anyone at or outside the workplace. Partners treats threats coming from an abusive personal relationship as it does other forms of violence. Carrying weapons, including, but not limited to, firearms and knives on company or client premises including while on Partners travel is strictly prohibited.

Indirect or direct threats of violence, incidents of actual violence, and suspicious individuals or activities should be reported as soon as possible to a supervisor, HR, or the Executive Leadership Team. When reporting a threat or incident of violence, the employee should be as specific and detailed as possible. Employees should not place themselves in peril, nor should they attempt to intercede during an incident. Additionally, employees have a "duty to warn" their supervisors, HR, or the Executive Leadership Team of suspicious workplace activity, situations, or incidents that appear problematic.

### Investigations and Enforcement

Partners will promptly and thoroughly investigate all reports of threats of violence or incidents of actual violence and of suspicious individuals or activities. The identity of the individual making a report will be protected as much as possible. Partners will not retaliate against employees making good-faith reports of violence, threats, or suspicious individuals or activities. To maintain workplace safety and the integrity of its investigation, Partners may suspend employees suspected of workplace violence or threats of violence, either with or without pay, pending investigation. Employees should promptly inform the HR department of any protective or restraining order that they have obtained that lists the workplace as a protected area.

Anyone found to be responsible for threats of or actual violence or other conduct that is in violation of these guidelines will be subject to prompt disciplinary action up to and including termination.

Partners encourages employees to bring their disputes to the attention of their supervisors or the HR department before the situation escalates. Partners will not discipline employees for raising such concerns.

## EE. Confidentiality and Intellectual Property & Proprietary Information

Partners develops specific proprietary processes and strategies that are unique to our organization. Protecting such information is vital to the interests and success of Partners. All employees are required to comply with Partners' Statement of Confidentiality of Corporate Affairs and Privacy & Personally Identifying Information Policy. Such confidential information includes, but is not limited to, the following examples:

- Contact lists (includes donors, members, prospective donors/vendors, vendors, volunteers, organizations, employees, etc.)
- Financial information relating to our funding and programs
- Employee information or records
- Marketing strategies (includes guidelines, standard operating procedures, designs, and any marketing report or indicator, campaign information, or any organizational announcement.)
- Pending projects and proposals
- Research and development strategies (includes proprietary products, information on donors or their employees, information about the beneficiaries of our programs)

It is extremely important that all such information remain confidential, and particularly not be disclosed to Partners' competitors. As such, employee should not upload proprietary information onto any public online platforms including in generative artificial intelligence (AI), such as ChatGPT, Bard, Bing, or other similar tools. For more information, review Partners' policy on Generative Artificial Intelligence Usage Policy.

Any employees who improperly copies, removes (whether physically or electronically), uses, or discloses confidential information to anyone outside of Partners may be subject to disciplinary action up to and including termination.

As required by FAR 52.203-18, FAR 52.203-19, and FAR 3.909, Partners does not require employees, representatives, and contractors to sign internal confidentiality agreements that could prevent or impede the reporting of fraud, waste, or abuse to appropriate authorities. Employees, representatives, and contractors are encouraged to report concerns, suspicions, or allegations of fraud, waste, abuse, or other misconduct to their supervisor, any member of management, HR, or to Foster Thomas at bbulger@fosterthomas.com. Anonymous reporting options are available and will be treated confidentially to the extent permitted by law.

## FF. Conflict of Interest

The following Conflict of Interest Policy has been adopted by the Partners International Board of Directors. Each board member, officer, employee, volunteer, intern, and independent contractor of Partners must sign this statement annually to reflect the absence of any relationships or financial interests described in the policy or disclose any which do or may exist.

For this policy, the definition of "personal relationship" is as follows: grandparents, parents, stepparents, in-laws, spouse, spouse's family, sibling, sibling's spouses, sibling's in-laws, children, stepchildren, ex-spouse, aunts, uncles, cousins, nieces, nephews, and other close friends.

Partners seeks to avoid any potential conflicts of interest created by close personal relationships between employees and vendors, contractors, beneficiaries, grantees, services providers, or any other organizations/persons working or planning to work with Partners. Individuals are prohibited from providing assistance or services through any Partners program, such as materials, money, or other goods, services, or resources to anyone with whom they have a close personal relationship.

Employees are also prohibited from supervising and participating either directly or indirectly in the hiring, promotion, or evaluation of any individual with whom they have a close personal relationship.

Contracts or transactions (i) between Partners and one or more of its board members, officers, or employees, or (ii) between Partners and any corporation, partnership, association or other organization in which one or more of its board members, officers or employees are directors or officers, or have a financial interest, shall not be void or voided solely for this reason, or solely because the board member, officer or employee is present at or participates in any meeting which authorizes the contract or transaction, or solely because his, her, or their votes are counted for such purpose, if:

- The material facts regarding the relationship or interest are disclosed or are known to Partners and/or the Board of Directors and in good faith authorized the contract or transaction by the affirmative votes of a majority of the disinterested board members or officers, even though the disinterested board members or officers may then become less than a quorum; or
- The material facts regarding the relationship or interest are disclosed or are known to the Partners and/or Board of Directors and officers voting on the contract or transaction is specifically approved in good faith by a vote; or
- The contract or transaction is fair to Partners as of the time it is authorized, approved, or ratified.

Common or interested Board members or officers may be counted in determining a quorum at any meeting which authorizes the contract or transaction, provided, however, that the interested person or persons shall be excluded from the room during the discussion of the contract or transaction in question and during the vote.

The policy requires all individuals to immediately notify their supervisor, the HR Department at poahr@partners.net or the Compliance Team at compliance@partners.net in writing of any potential issues that may arise during the performance of their work, which may constitute a conflict of interest.

When informed of a close personal relationship in accordance with this policy, supervisor and/or the Compliance Team will recommend steps to eliminate any potential conflict of interest. In the case of a supervisor-subordinate close personal relationship, a reasonable effort will be made to reassign one of the employees to another position.

Failure to disclose the existence of a close personal relationship in accordance with this policy may be cause for termination. Any employee who believes this policy is being violated should report the concern to their supervisor, the HR Department at poahr@partners.net or the Compliance Team at compliance@partners.net.

## GG. Employment of Relatives

Partners will not hire or contract in any capacity a close relative of any employee without adhering to Partners' Recruitment Policy (for employees) and Procurement Policy (for contractors).

A person's "close relatives" are their parents, parent-in-law, son, son-in-law, daughter, daughter-in-law, brothers and sisters, spouse, step-parent, step-son, step-daughter, grandparents, or grandchild. Persons who become close relatives by marriage after both have been initially associated with Partners (as employees, directors, or independent contractors) generally will not be affected by this policy.

## HH. Freedom of Association

Partners in accordance with the National Labor Relations Act (NLRA) recognizes and protects freedom of association and the rights of employees to engage in concerted activities for the purpose of collective bargaining and to address working conditions, wages, and other employment-related matters. Employees may exercise this right without discrimination and without being subject to prior authorization. Employees may not be fired for participating in the formation of a union.

## II. Code of Conduct

Partners endeavors to maintain a positive work environment. Each employee plays a role in fostering this environment. Accordingly, we all must abide by certain rules of conduct, based on honesty, common sense, and fair play. Unacceptable conduct may subject the offender to disciplinary action, up to and including termination, in Partners sole discretion.

The following are examples of some, but not all, conduct which can be considered unacceptable:

- Obtaining employment on the basis of false or misleading information.
- Stealing, removing, or defacing Partners property or a co-worker's property, and/or disclosure of confidential information.
- Completing or editing another employee's timesheet without approval.
- Sharing of passwords for your work accounts to anyone else unless specific approval is given (i.e. shared PandaDoc account per unit).
- Violation of Partners' code of conduct, including but not limited to policies on Equal Employment Opportunity, harassment, confidentiality, conflict of interest, trafficking in persons, sexual exploitation and abuse, and child safeguarding.
- Violation of safety and security rules and policies.
- Violation of Partners' Drug and Alcohol-Free Workplace and Smoking Policy.
- Fighting, threatening, or disrupting the work of others or other violations of Partners' Workplace Violence Policy.
- Failure to follow lawful instructions of a supervisor.
- Failure to perform assigned job duties.
- Violation of the attendance policy, including but not limited to irregular attendance, habitual lateness, or unexcused absences.

- Pornography or access to any sexual or violent content and website or access to the dark web on Partners property.
- Gambling on Partners property.
- Willful, careless, or wasteful destruction or damage to Partners assets or to the equipment or possessions of another employee.
- Performing work of a personal nature during working time.
- Violation of Partners IT policies.
- Unsatisfactory job performance.
- Any other violation of Partners policy.

The following are examples of some, but not all, conduct which is expected of all employees:

- Conduct all aspects of company business honestly and ethically and obey the laws of the United States and every state and locality where we conduct business.
- Conduct work on behalf of Partners with customers, suppliers, fellow employees, and the public with the highest standards of honesty, integrity, and fairness.
- Be responsible for their actions and the consequences. No one will be excused from misconduct because another person ordered or asked the employee to participate in wrongdoing.
- Alert their supervisor or a senior manager whenever they observe, learn of, or suspect any dishonest, destructive, or illegal activity.
- Ensure that all financial transactions and other documentation are handled honestly and recorded accurately. This commitment extends to the reporting and charging of time.
- Avoid conflicts of interest, both real and perceived. Conflicts of interest are those outside activities or personal interests that could influence objective decisions in performing your responsibilities.
- Recognize that even the appearance of misconduct or improper behavior can damage our reputation and you will act to prevent such appearances. Limit profanity in the workplace.
- Cooperate fully in any investigation of misconduct.

## JJ. Consultancies & Conflict of Interest Outside of Partners

Partners respects the right of employees to engage in private activities and personal business outside of their employment with the company, providing such activities do not conflict with the Partners' interests. An outside consultancy is any work that is performed outside of the staff member's regular employment for which the staff member receives compensation, whether in the form of money, goods, or services.

The following are guidelines for outside consultancies to ensure that staff members do not engage in activities that create conflicts of interest with their employment:

1. **Notification:** Staff members must notify their supervisor before engaging in any outside consultancy work. The notification must include the nature of the work, and the estimated time commitment.
2. **Approval:** Staff members may engage in outside consultancy work only with the approval of their supervisor. Approval will be based on a determination that the work will not interfere with the staff member's employment obligations and will not create a conflict of interest.
3. **Disclosure:** Staff members must disclose any actual or potential conflicts of interest to their supervisor. The disclosure must include the nature of the conflict and any steps the staff member will take to mitigate the conflict.
4. **Consequences:** Violations of this policy may result in disciplinary action, up to and including termination of employment.

By requiring notification and approval, staff members can engage in outside work while maintaining their responsibilities to their employer. The disclosure requirement also promotes transparency and can help identify potential conflicts before they become an issue.

### Outside Consultancies and Conflict of Interest

In general, a conflict of interest is defined as an employee activity inconsistent with recognized ethical and legal standards or which is competitive with or undermines the Partners' business goals. It may also be an activity that deprives Partners of the maximum efficiency of its employees concerning their jobs, the company, and company policies.

Employees may have outside business interests and employment if these do not interfere with job performance. An employee may not be involved in outside employment or business interests if the employee benefits because of his or her affiliation with Partners. Employees at all levels have a duty and an obligation to Partners to be entirely free from any conflict of interest. Some particular situations where conflicts of interest are most likely to arise are:

- Acceptance of loans, excessive entertainment, business gifts, or favors from any party that may supply or seek to supply goods and services to Partners or any of its subsidiaries;
- Disclosure of proprietary or other confidential information;
- Is related to the same or similar work that the staff member performs in their employment;
- Competes with the organization's business or interests;
- Impacts the staff member's judgment, loyalty, or impartiality in their employment;
- Holding an interest in or accepting free or discounted goods from any organization that does, or is seeking to do, business with Partners;
- Being employed by (including as a consultant), serving on the board, or having family work for any organization which does, or is seeking to do, business with Partners or which competes with Partners; and/or
- Use of the assets and resources, or intellectual property of Partners or any of its subsidiaries for personal convenience or profit.

## KK.Solicitation

Partners prohibits the solicitation, distribution, and posting of materials on or at Partners property by any employee.

## LL. Workplace Gambling

Partners prohibits most forms of gambling in the workplace, including professional or organized gambling activities. Partners will allow exceptions to this policy for Partners-sponsored events supporting a charitable or fundraising cause. Employees must seek the approval of HR prior to engaging in any gambling activities. Failure to comply with this policy may result in disciplinary action, including possible termination of employment.

## MM. Social Media Policy

As used in this policy, "social media" refers to blogs, online forums, and social networking sites, such as X, Facebook, Instagram, TikTok, Snapchat, LinkedIn, and YouTube.

### Use of Social Media

The goal of this policy is to protect the reputation and interests of Partners while respecting the employees' right to free speech. However, bullying, retaliation, and discriminatory conduct on social media platforms may be cause for discipline and/or termination. Below is a set of guidelines and expectations that outlines what employees can and cannot post on their personal social media accounts:

- **Respect confidentiality:** Employees should not disclose confidential or proprietary information about Partners, its clients, or customers on their personal social media accounts.
- **Maintain professionalism:** Employees should avoid posting anything that could reflect negatively on the organization or its employees, such as discriminatory or offensive comments, criticism of clients or colleagues, or inappropriate content.
- **Avoid conflicts of interest:** Employees should disclose any relationships or affiliations that could create a conflict of interest, such as posting endorsements or recommendations for products or services that compete with the organization's offerings. Likewise, employees should not use social media to criticize Partners' competition.
- **Be aware of legal obligations:** Employees should be aware of the legal implications of their social media activity, such as potential defamation or infringement of intellectual property rights.
- **Use discretion:** Employees should be aware that their social media activity can reflect on Partners, even if it is posted outside of work hours, and should use discretion when posting content or engaging in online discussions.
- **Social media during work hours:** Employees may engage in social media activity during work time provided it is directly related to their work, and approved by their supervisor. It does not identify or reference individuals or entities without permission.

### Disclaimers

If an employee identifies themself as a Partners employee or discusses matters related to Partners on a social media site, the site must include a disclaimer stating that it does not express Partners' views and that the employee is expressing only their personal opinions. For example: "The views expressed on this website/blog are mine alone and do not necessarily reflect the views of my employer."

### Trademarks, Copyrights & Legal Issues

Do not use Partners' or others' trademarks on a social media site or reproduce Partners' or others' material without first obtaining permission. Employees must comply with all applicable laws, e.g., copyright, trademark, or harassment. Web content should abide by the guidelines for access by persons with disabilities. For more information reference Partners' policy on Section 508 and Section 889.

### Discipline

Partners reserves the right to monitor employees' use of company computers and the Internet, including blogging and social networking activity. Partners will investigate any violations of the policy, and take disciplinary actions if necessary. Nothing in this policy is meant to, nor should it be interpreted to, in any way limit your rights under any applicable federal, state, or local laws.

## NN. Dispute Resolution

Regrettably, conflict can occur in any work environment. To resolve the conflict in an expedient, yet fair manner, Partners recommends the following process for conflict or dispute resolution.

1. Speak directly to the person you are having the dispute with. Many times, conflicts arise due to misunderstandings and miscommunications.
2. If speaking to the individual does not work, please talk to your supervisor, HR, or any other member of the Executive Leadership Team. Then a meeting will be arranged those involved in the dispute to determine a resolution.
3. If the above options cannot resolve a workplace dispute, the parties may be referred to mediation by an outside third party. The resolution of the third-party mediator is binding on both parties of the conflict.

For Partners' full policy on Managing Conflicts, please reference Annex G.

## OO. Progressive Disciplinary Actions

Partners reserves the right to address employee performance or conduct issues with appropriate disciplinary actions, including warnings, suspension, or termination. Decisions will be based on the severity of the issue, the employee's past performance, and business needs. HR and the employee's supervisor will document by completing a disciplinary process report on the template in SharePoint. This approach aims to resolve issues early, supporting both employees and Partners. Employees should reference Partners of Code of Conduct, which lists examples of unacceptable conduct that might result in immediate suspension or termination of employment. By using

progressive discipline, Partners hopes that most employee problems can be corrected at an early stage, benefiting both the employee and Partners.

**Disciplinary Steps:** Partners may use progressive discipline, typically following these steps:

- Verbal warning
- Written warning
- Performance Improvement Plan or Suspension (with or without pay)
- Termination of employment

**Disciplinary Process:**

- For minor issues, a verbal or written warning will be issued, detailing reasons and any evidence.
- Decisions will account for the issue's severity and frequency. Based on these factors, steps may be skipped.
- A second review as indicated below is required before any dismissal:
    - President & CEO - all home office staff and Chief of Party (COP)/Project Director (PD).
    - Senior Vice President of Programs and home office Unit Director - all field office COP/PDs and Director level staff.
    - COP/PD - all field office staff director level and below.
- If an employee has a concern about the process, they can reach out to the respective HR (either in the Home Office or Field Office).

If more than one year has passed since the last action, the process typically restarts. In severe cases, Partners may decide on suspension or termination without progressive steps.

### Performance Improvement Plan (PIP)

As part of progressive discipline, Partners may issue a Performance Improvement Plan (PIP). A PIP is typically initiated when an employee's performance consistently falls below established expectations despite prior feedback or support. The PIP is a process designed to support employees in enhancing their performance and achieving specific job-related goals. The PIP outlines clear expectations, identifies areas for improvement, and establishes measurable objectives to be met within a designated timeframe. It serves as a collaborative framework between the employee and their supervisor, fostering open communication and providing the necessary resources and support to facilitate improvement. Employees on a PIP will receive regular feedback and have opportunities to discuss their progress. The ultimate aim of the PIP is to help employees succeed in their roles, contributing to both their personal growth and the overall success of the organization. PIP must be issued using the template on SharePoint.

## PP.Gym and Fitness Center Waiver

All employees who use exercise equipment, gym, shower, and facilities provided by Partners at the office will be required to sign the wavier found on PandaDoc.

## QQ. Office Equipment and Resources

All equipment that Partners owns is furnished to conduct company business. Company equipment includes, but is not limited to, computers (including all files, e-mail, SharePoint, and Internet data), telephones, filing cabinets, desks, vehicles, and work or office space. Partners treats all company equipment as its property and reserves the right to search, access, review, copy, or modify this property. Partners may also disclose such information or property to other parties (inside or outside the company) as appropriate.

Partners purchases and licenses the use of computer software for business purposes. Unless authorized by the software developer, Partners does not have the right to reproduce such software for computer use or for which they are not licensed. Employees may only use the software on local area networks or multiple machines according to the software license agreement. Partners prohibits the illegal duplication of software and its related documentation. No employee may access, or attempt to obtain access to, another employee's computer systems without appropriate authorization.

Upon receiving Partners equipment, employees will need to sign the Receipt of Equipment to ensure they understand the proper use and responsibility while using Partners provided equipment.

### Personal and Company-Provided Portable Communication Devices

Partners may provide portable communication devices (PCDs), including cell phones and personal digital assistants, should be used primarily for business purposes. If provided, employees have no reasonable expectation of privacy in regard to the use of such devices, and all use is subject to monitoring, to the extent permitted by applicable law. Some employees may be authorized to use their own PCD for business purposes. These employees should work with the FSI Strategies to configure their PCD for business use.

Communications sent via a personal PCD also may subject to monitoring if sent through Partners' networks. All conversations, text messages, and e-mails must be professional. When sending a text message or using a PCD for business purposes, whether it is a Partners-provided or personal device, employees must comply with applicable Partners guidelines, including policies on sexual harassment, discrimination, conduct, confidentiality, equipment use, and operation of vehicles.

If employees who use a personal PCD and resign or are discharged, they will be required to submit the device to the HR on or before their last day of work.

Please note that whether an employee uses their personal PCD or a Partners-issued device, Partners' electronic communications policies, including but not limited to, proper use of communications and computer systems, remain in effect, including no texting and e-mailing while driving.

### Use of Internet, Communication, and Computer Systems

Partners' communication and computer systems are intended primarily for business purposes; however, limited personal usage is permitted if it does not hinder performance of job duties or violate any other Partners policy. This includes the voice mail, e-mail, and Internet systems. Users have no

legitimate expectation of privacy in regard to their use of Partners systems. Partners policies prohibiting harassment apply to the use of Partners' communication and computer systems.

In the ordinary course of business when Partners deems appropriate, Partners may access employee's communications systems, without notice. This includes review of employee's voicemail, e-mail, Teams and other messaging platforms, and internet history. The reason Partners may obtain such access include, but are not limited to maintaining the system; preventing or investigating allegations of system abuse or misuse; assuring compliance with software copyright laws; complying with legal and regulatory requests for information; and ensuring that Partners operations continue appropriately during the employee's absence.

Please reference Partners IT Policies. Violators of this policy may be subject to disciplinary action, up to and including termination.

#### SharePoint and Bulletin Boards

Important notices, policies, procedures, forms, and items of general interest are continually posted on SharePoint. Employees must make it a practice to review SharePoint frequently. This will assist employees in keeping up with what is current. Any major policy and procedures changes will be communicated to staff via email and during an All Staff Meeting.

### RR. Personal Items

Partners is not responsible for employees' personal property at any time, domestically or abroad, and cannot be held liable for loss of personal items, whether by theft or other means. Homeowners or renter's insurance usually covers an individual's personal property while away from the home or rental site, and we encourage our employees to carry such insurance. Different companies provide different coverage forms, so employees should ask their personal insurance agent how their policy will respond.

## VI. Hiring, Employment, and Termination

### A. Immigration Compliance for U.S. Based Staff

Partners complies with the Immigration Reform and Control Act of 1986 by employing only U.S. citizens and non-citizens who are authorized to work in the United States. All employees are asked on their first day of work to provide original documents verifying the right to work in the United States and to sign a verification form required by federal law (Form I-9). If you cannot verify your right to work in the United States within three (3) days of hire, then Partners is required by law to terminate your employment.

### B. Immigration Compliance for Non U.S. Based Staff

For all non-U.S. based staff Partners will make sure that the employee is eligible to work in the respective country. All staff based outside of the U.S. must adhere to that country's Supplemental Manual.

### E-Verify

Partners complies with E-Verify requirements established by the Federal Acquisition Regulation (FAR). Partners ensures that all employees are verified through the E-Verify system to confirm their eligibility for employment in the United States. For all employees, Partners will adhere to the following:

1. Completion of Form I-9: All new employees must complete Form I-9, Employment Eligibility Verification, no later than the first day of work.
2. Submission to E-Verify: HR will electronically submit the information from Form I-9 to the E-Verify system within three business days of the employee's start date.
3. E-Verify Case Results: HR will receive an E-Verify case result, indicating either "Employment Authorized" or "Tentative Nonconfirmation" (TNC).
    a. Resolution of TNC: In the event of a TNC, HR will provide the affected employee with a referral notice containing instructions for resolving the discrepancy with the appropriate government agencies.
    b. No Further Employment Without Confirmation: If the employee receives a TNC and chooses to contest the result, no adverse employment action will be taken until the TNC is resolved and employment eligibility is confirmed.

### Non-Discrimination and Fair Treatment

Partners prohibits discrimination or retaliation against individuals based on their immigration status, national origin, or citizenship. Employment decisions, including hiring, termination, promotion, and compensation, will be made without regard to an individual's immigration status, except as required by law.

### Compliance with Visa and Work Authorization Requirements

Non-U.S. citizens working under specific visas (e.g., H-1B, L-1, etc.) must comply with the terms and conditions of their visa status, including any restrictions on work location, duration, and job responsibilities. HR will closely monitor visa expiration dates and work authorization documentation to ensure compliance. Sponsorships for visas are not done by Partners unless an exception is approved by the President & CEO.

### H-1B Public Access Files

For H-1B visa holders, Partners will maintain public access files that include relevant documentation as required by the U.S. Citizenship and Immigration Services (USCIS).

## C. Employee Classifications

All employees are classified as either exempt, non-exempt, full-time, or part time.

### Exempt Employees (full- or part-time)

Exempt employees are those employees who are exempt from the minimum wage and overtime provisions of the Federal Fair Labor Standards Act (FLSA) and, therefore, to whom the payment of overtime is not required. Exempt status usually includes positions of a professional or managerial nature. Exempt employees may be full- or part-time.

### Non-exempt Employees

Non-exempt employees are eligible for overtime pay of one-and-one-half (1½) times their regular rate of pay for hours worked in excess of 40 per workweek.

### Full-Time Employees

Full-time employees are those who customarily and regularly work a minimum of 32-40 hours per week.

### Part-time Employees

Part-time employees are those employees who customarily and regularly do not work a minimum of 32 hours per week.

## D. Non-employee Classifications

### Independent Contractors

Independent Contractors (which includes all compensated consultants) are those who undertake a specific task or project on behalf of Partners on a non-employee, contractual basis. Independent Contractors are not employees of Partners and thus are ineligible for the benefits of employment described in this manual. They are required to carry their own liability and health insurance. When determining a consultancy or employee status, the U.S. Department of Labor Independent Contractor Rule must be followed.

The rule includes six (6) factors (with equal weight) when determining the worker relationship:

1. Whether the work is an integral part of the employer's business (e.g., this factor weighs in favor of the worker being an employee if the work is critical, necessary, or central to the employer's principal business);
2. The worker's opportunity for profit or loss depending on managerial skill (e.g., whether the worker engages in marketing or other efforts to expand the business, makes decisions to hire others, purchases materials and equipment. If a worker has no opportunity for a profit or loss, then this factor suggests that the worker is an employee);
3. The extent of the relative investments of the worker and the employer (e.g., is the worker making similar types of investments as the employer (even if on a smaller scale) which would suggest that the worker is operating independently and would indicate independent contractor status);
4. Skill and initiative (this factor indicates employee status where the workers does not use specialized skill in performing the work or where the worker is dependent on training from the employer to perform the work).
5. The permanency of the work relationship (the worker is most likely an employee if the work relationship is indefinite in duration, continuous or exclusive of work for other employers); and
6. The nature and degree of control exercised or retained by the employer (the employer's degree of control over the performance of the work, e.g., sets work schedule, supervises the performance of the work, or limits the worker's ability to work for others. According to the

DOL, actions taken by the potential employer that go beyond compliance with a specific, applicable Federal, State, Tribal or local law or regulation and instead serve the potential employer's own compliance methods, safety, quality control or contractual or customer service standards may be indicative of control. More control by the employer favors employee status; more control by the worker favors independent contractor status).

### Volunteers

Volunteers, are those who perform various duties for Partners and who do not receive monetary compensation or any of the benefits received by employees.

### Interns

Interns perform various duties for Partners and may receive monetary compensation as independent contractors. All interns must comply with Partners' Code of Conduct. The guidelines for Partners' internship program is as follows:

- **Eligibility:** All interns who meet the following criteria are eligible for a stipend:
  - The internship is at least 6 weeks in duration but cannot exceed 9 months (academic year).
  - The intern is performing work that is related to their field of study or career interests.
  - The intern is enrolled in an accredited educational institution or who is a recent graduate (within the last two years).
  - The internship program must have a strong educational component. It may be coordinated with the University/College for credit purposes.
- **Compensation Amount:** The compensation amount for interns will be based on the stipend matrix below.
- **Payment Schedule:** Stipends will be paid monthly upon submission of an intern stipend timesheet in Excel or online via Pandadoc Stipend Form.
- **Taxation:** Interns are responsible for paying any applicable taxes on their stipend. Depending on location, interns will need to complete either a W-9 or W-8BEN. Partners will provide W-9 interns with a 1099-NEC form at the end of the calendar year.
- **Work Hours:** Interns are expected to work a minimum of 12 hours per week, but no more than 40 hours per week. Overtime is not allowed.
- **Performance Expectations:** Interns are expected to produce their best work quality and have the same attendance, punctuality, and responsiveness as employees. Failure to meet these expectations may result in a reduction or revocation of the stipend.
- **Benefits:** Interns are not eligible for any benefits, including health insurance, retirement plans, or paid time off.
- **Termination:** The organization reserves the right to terminate an intern's compensation at any time for any reason, including but not limited to poor performance, misconduct, or violation of company policies.

### Recruiting & Hiring of Interns

The recruitment and hiring of interns must follow Partners' internship recruitment procedure and the checklist.

### Intern Stipend Matrix

As a guideline for an internship stipend, Partners will utilize the following scale which takes into consideration education and years of experience. Placement in the below categories is based on current educational enrollment, or if not in school, most recent degree. All internship stipends are subject to availability of funds, among other factors:

| GRADE | DAILY STIPEND |
|---|---|
| ***Grade A***<br>*In process for high school diploma or received high school diploma* | **$40.00** |
| ***Grade B***<br>*In process for bachelor's degree or received bachelor's degree* | **$50.00** |
| ***Grade C***<br>*In process for master's degree or received master's degree* | **$60.00** |

Stipend values are based on a minimum of 12hr/week internship and minimum of 3hr/day. Exceptions must be evaluated and approved by the President & CEO.

## E. Background and Reference Checks

To ensure that individuals who join Partners are well qualified and to ensure that Partners maintains a safe and productive work environment, it is our policy to conduct pre-employment background checks on all applicants who accept an offer of employment. Background checks may include verification of any information on the applicant's resume, application, or references.

All offers of employment are conditioned on receipt of a background check report that is acceptable to Partners. All background checks are conducted in conformity with the Federal Fair Credit Reporting Act, the Americans with Disabilities Act, and state and federal privacy and antidiscrimination laws. Reports are kept confidential and are only viewed by individuals involved in the hiring process.

If information obtained in a background check would lead Partners to deny employment, a copy of the report will be provided to the applicant, and the applicant will have the opportunity to dispute the report's accuracy. Background checks may include a criminal record check, although a criminal conviction does not automatically bar an applicant from employment.

## F. Clearing Potential New Hires with Prior USG Employment

Partners will ensure that potential new hires with prior United States Government (USG) employment are thoroughly evaluated and cleared of any conflicts that could prevent them from effectively performing their hired-for positions within Partners.

### Conflict of Interest Clearance

Prior to finalizing the hiring decision, all potential new hires with prior USG employment will undergo a thorough clearance process to assess any conflicts of interest, including potential restrictions or obligations that could impact the candidate's ability to fulfill their duties. The assessment will consider factors such as the candidate's prior role, responsibilities, access to sensitive information, and any applicable post-employment restrictions imposed by the USG.

The potential new hire will be required to disclose their prior USG employment and provide relevant details about their roles, responsibilities, and any post-employment restrictions they are aware of. HR will collaborate with the Compliance Team, and if necessary, legal counsel, to review the potential conflicts of interest. In cases where potential conflicts are identified, the candidate will be informed and additional steps may be taken to mitigate or address these conflicts.

### Mitigation and Resolution

If conflicts of interest are identified, Partners will work with the candidate to develop appropriate mitigation measures or seek necessary waivers. Mitigation measures could include modifications to job responsibilities, recusals from certain activities, or other actions to prevent conflicts from arising.

The conflict of interest clearance process and its outcomes will be documented for each potential new hire with prior USG employment. Transparency and open communication will be maintained throughout the process to ensure that candidates are aware of the assessment and any actions taken.

## G. Recruitment

Partners may conduct recruitment both internally or externally depending on need and circumstances. In all employment advertisements, the appropriate Equal Opportunity Employer (EEO) verbiage must be used. If recruitment is being done under a Federal Cooperative Agreement, all key personnel must be approved in writing by the donor. If recruitment is being done under a Federal Contract, all positions and the salary ranges must be approved by the donor. All recruitments and new hires will comply with each country's labor laws. In all positions, geographic requirements and/or restrictions must be indicated in the job description. All home office (District of Columbia based) positions will follow the salary matrix. Any exceptions to the salary matrix or percentage increase can only be approved in writing by the President & CEO.

All recruitment will be done by Partners. In certain scenarios if Partners has exhausted its own search, and the program or administrative department has funding to cover the cost, a head hunting service may be used. Use of a head hunting service should be the exception, but may be needed for specialty positions.

For all recruitments, a Selection Memo must be signed, indicating the recruitment, hiring process, basis for selection, and justification for the salary. The respective HR (either in the Home Office or Field Office) will have delegation of authority to sign the selection memos.

- For Home Office staff: the Selection Memo must be signed by:
    1. Employee's new supervisor
    2. Home Office Project/Unit Director
    3. Home Office HR, and
    4. President & CEO.

- For Field Office staff: the Selection Memo must be signed by:
    1. Employee's new supervisor
    2. Project Director/Chief of Party
    3. Home Office Senior Director, and
    4. Field Office HR

### Recruiting & Hiring of Employee

The recruitment and hiring of employees must follow Partners' employee recruitment procedure and the checklist.

### Personnel Application Process

After a position is posted and becomes available, the applicant will need to respond to the posting and email a copy of their resume and cover letter. Only the final list of eligible candidates will be sent to the position supervisor, who will proceed through the recruitment process, with the support of HR. Please note that all staff recruitment will be internal and/or external.

### Internal recruitment with Internal Job Posting

Internal recruitment refers to the process of filling job vacancies or promotions within an organization by considering current employees. The following scenarios can be considered for internal publishing only:

- In case there is a vacancy and there are several qualified employees who have already been identified within the team or unit; or
- In case it is urgent to occupy the position and it is likely that there is experience within Partners.

To maximize promotion within Partners, the vacant position may be filled by any employee who is interested and who, after competitive evaluation, meets the requirements to fill the vacancy. It is highly recommended that employees interested in applying for an internal vacancy inform their supervisors of their interest in the vacancy.

All internal vacancies will be advertised for a minimum of three business (3) days via a branch office distribution email, allowing all qualified internal candidates to apply. Proof of email must be retained as part of the recruitment documentation package.

After, HR will review and evaluate the candidates, with finalists being selected for an interview. Based on the results of the interview, HR and the position supervisor will make the final candidate selection and draft a Selection Memo. If the promotion is done internally, the employee may be entitled to a maximum 15% pay raise, for horizonal moves organizationally or if remaining in same position with additional responsibilities added. For an employee making a vertical change within the organization the new salary will be based on the new position and salary matrix.

### Internal recruitment without Internal Job Posting

The following scenarios are exceptional situations in which Partners may transfer or promote staff internally without an internal job posting:

1. As part of a project closeout or elimination of a position, in an effort to retain staff.
2. For business necessity or continuity purposes, such as for succession planning or where internal candidates are identified for strategic purposes.
3. If there is a need to maintain strict confidentiality for security reasons.
4. For highly specialized or niche roles, there might be a limited number of suitable candidates. Note must justify no other individual internally is qualified.
5. For employee development, Partners may proactively identify high-potential employees and create growth opportunities for them. This scenario requires a performance evaluation to justify the high-potential employees.

If an internal recruitment without an internal job posting is conducted, the employee must undergo a formal interview process. If after the interview process Partners will proceed with the employee, then the Project/Unit Director must draft a Selection Memo and supporting documentation to justify one (or more) of the points 1-5 above. Internal recruitment without an internal job posting should be an exception and rarely used.

If the promotion is done internally, the employee may be entitled to a maximum 15% pay raise, for horizonal moves organizationally or if remaining in same position with additional responsibilities added. For an employee making a vertical change within the organization the new salary will be based on the new position and salary matrix.

### External recruitment

When external recruitment is necessary for a vacancy, the job offer should be actively advertised and promoted locally and internationally, as appropriate. The announcement should be clear, precise, and brief, but it should also provide the necessary conditions, training, and experience, and how to apply. At a minimum, advertisements shall provide:

1. Job description;
2. Information on the candidate's necessary training and experience;
3. Place and deadline for submission of applications.

All job postings must be created using Partners' standard job posting template. All postings must be advertised for a minimum of five business (5) days with active recruitment. Active recruitment

means minimum posting on Partners' website and one other highly traffic job website. Proof of posting must be retained as part of the recruitment documentation package.

### Hiring Spouses or Family Members

Although Partners may hire family members, domestic partners, and spouses, this practice is not encouraged. Employees who are married or family members of candidates should notify the HR department or the hiring manager of this relationship as soon as possible. Failure to notify will be considered non-disclosure and will merit a disciplinary action or dismissal.

If the determination is made to hire a spouse or family member, Partners will limit the placement, responsibilities, and scope of work in relation to your family member or spouse. Under no circumstances will employees be under the supervision of a family member and spouse, and no family member or spouse will have the responsibility or participate in the evaluation of their job performance.

### Transfer within Partners

The transfer of an employee means moving from one department or program to another, to a similar position. The salary remains unchanged. This is not a disciplinary measure. The transfer of an employee is made:

1. By decision of the Project/Unit Director when it is in the interest of Partners;
2. At the request of the employee, the case will be considered according to the possibilities within Partners;

For Field staff, the any transfer of position requires approval from employee's new supervisor, Chief of Party/Project Director, Home Office Senior Director, and Field Office HR. For Home Office staff, any transfer of positions requires approval from employee's new supervisor, Home Office Project/Unit Director, Home Office HR, & the President & CEO.

Individuals transferring between one job category and another office (home or field) will undergo a reference review with the relevant HR unit to ensure that their salary and benefits match the category and location of their new employment. Positions may require a new or modified employee contract, and all transfers require a new job description.

The following staff must agree on the official transition date: the employee, the supervisor in the last position, and the supervisor in the new position. Project/Unit Director will make the final decision regarding the transition date.

In the event that an employee is offered a position in another country, the transition will be coordinated by Home Office HR.

For all transfers, supervisors must conduct a 90-day performance review.

### Promotion

Partners is committed to promotion practices and ensuring staff are aware of available job opportunities and the requirements for advancement. Promotion is not automatic. Promotion means an employee is being switched to an additional level within the salary matrix (e.g. Director I to Director II). Promotions will include a salary review, and the employee may be entitled to a maximum 15% pay raise.

The following are some of the possible scenarios which may merit a promotion:

- After the annual performance evaluation
- After recruitment process
- Demonstrated increased responsibilities
- Professional growth (specialization studies, master's degrees, and refresher courses)
- Time and experience in current position

An employee may benefit from a promotion if there is availability within the organizational structure, depending on the needs of each project/department, and the availability of resources. For promotions to be considered the following criteria must be met:

- Have a minimum seniority in their current position of 6 (six) months.
- Have received their most recent performance evaluation or, if the employee has been in office for less than 12 months, a performance evaluation must be conducted.
- Have the necessary experience and skills for the position.
- May not be in a continuous performance improvement plan, in the midst of a disciplinary sanction process, or under investigation.

Note: increasing workload does not in itself constitute promotion. It must be the result of a significant and measurable increase in the responsibility, scope and/or complexity of the work over 2 months or longer. In the event that an employee's scope changes significantly and sufficiently to warrant a revision of the position description, it should be re-compared to determine if a promotion is occurring or if the employee is simply taking on additional responsibilities.

The supervisor is responsible for requesting and justifying a promotion via email to the respective HR department for review. For Field staff, the promotion request must be approved by the employee's supervisor, Chief of Party/Project Director, Home Office Senior Director, and Home Office HR. For Home Office staff, the promotion request must be approved by the employee's new supervisor, Home Office Project/Unit Director, Home Office HR, & the President & CEO. Positions may require a new or modified employee contract, and all promotions require a new job description.

For all promotions, supervisors must conduct a 90-day performance review.

### Interim Positions

An interim position is a temporary job change in which a person assumes a new position that is the result of a vacancy or operational need. During the interim position, the employee is expected to assume full responsibility and authority for the new position. Interim charges generally last no longer

than 3 to 6 months; however, in specific cases they can be extended up to 9 months maximum. Interim positions may arise while competitive recruitment is underway, during start-up of a new program/department, while waiting on donor approval for key personnel, or to complete a specific assignment. The supervisor will need to send an email to all staff indicating the interim position and the effective dates.

### Interim Positions Remuneration

If the interim period extends 2 months or longer, **and** the interim position is in a different salary grade, the employee occupying the position will be remunerated within the new grade during the interim period. If the interim position is under 2 months, no additional compensation will be provided.

In the event that the employee filling the position is already paid at or above that point, the payment will remain the same during the interim period. Once the interim position comes to an end, the employee returns to their original position and the salary reverts to their original pay rate plus any merit increases during that period. Interim charges often serve as an entry point for a longer-term opportunity, so transparency of expectations and the expected time frame of interim charges is of paramount importance.

### Temporary Coverage of Positions

A temporary coverage of position is when an employee assumes additional roles or responsibilities to support a colleague or supervisor during a short-term leave of absence (such as vacation, maternity or paternity leave, or medical disability). It is different from an interim position because the employee is not fully assuming a new position; only certain aspects of the position.

Prior to their temporary departure, the employee who is taking the leave of absence must send an all staff email to provide notice on roles and responsibilities and who to contact for each.

### Temporary Coverage of Positions Remuneration

Taking on additional responsibilities on a temporary coverage basis does not result in an increase in salary. Staff may be asked to sign a waiver indicating that they are not getting an increase to salary or benefits as required in each country.

### Rehiring of Former Employees

Partners will consider rehiring former employees with certain conditions. Former employees who wish to apply for an advertised position, for which they believe they are qualified, may do so by participating in the competitive recruitment, selection, and interview process. Partners will review the employee's past performance, the circumstances of their separation from Partners, and conduct a verification of the positions held before leaving Partners.

## H. Personnel Records and Privacy

Personnel files will be kept for each employee of Partners and will be maintained in a confidential and secure manner under the custodianship of HR. As required by law, some records relating to medical issues and internal investigations are maintained in separate files. A personnel file includes

records related to performance and training as well as other records used for hiring, promotion, and disciplinary decisions.

Employees, or their representative, may request access to their personnel file by submitting a request to HR in writing. Personnel file access by current and former employees will generally be permitted upon reasonable request within 3 business days of the request.

Access may be granted during regular working hours and with HR present. Partners may provide copies of employee signed documents, if requested; copies are not permitted on any other documents. Employees are not permitted to remove any documents from the personnel file but may provide a written response to any document in the personnel file. Written responses will be attached to the original document in the personnel file.

Managers and supervisors, other than the HR director and his or her subordinates, may only have access to personnel file information on a need-to-know basis. A manager or supervisor considering the hire of a former employee or the transfer of a current employee may be granted access to the file, or limited parts of it, in accordance with anti-discrimination laws.

Personnel files may not be taken outside of the HR department. Representatives of government or law enforcement agencies, in the course of their duties, may be allowed access to file information.

HR records must be retained and filed in accordance with Partners' Record Retention Policy and File Structure Policy.

## I. Termination of Employment

As noted, the employment relationship of all employees is "at will," and may be terminated by either party for any reason or no reason. Prior notice is not required; however, Partners requests that for employees in director level or higher positions, a minimum of four weeks' notice is to be provided. For all other positions, a two weeks' notice is requested. This will allow Partners to transition the job responsibilities.

## J. Severance pay

Partners does not provide severance pay to staff hired after 1999 unless otherwise approved by the President & CEO.

## K. Exit Interviews

Exit interviews provide an opportunity to gather feedback, identify areas for improvement, and gain insights into the employee experience within Partners. Partners values the opinions and feedback of our employees. As part of our commitment to continuous improvement, we conduct exit interviews to gain valuable insights into the reasons for an employee's departure and to identify opportunities for enhancing our workplace environment.

Departing staff will be asked for an exit interview within their last 2 weeks, although it is optional. HR will be responsible for conducting the exit interview.

During the exit interview, staff members are requested to express themselves freely. It is hoped that this exit interview will provide insights into possible improvements we can make. All information will be kept strictly confidential and will in no way affect any reference information that Partners management will provide. Exit interviews are written and stored in the employee's file.

# VII. Performance and Salary

## A. Pay Transparency Act

Partners is committed to promoting pay transparency in compliance with the U.S. Department of Labor's Office of Federal Contract Compliance Programs (OFCCP). This policy is designed to ensure that our pay practices are fair, nondiscriminatory, and transparent, providing employees with information about compensation, the factors influencing pay decisions, and the avenues to discuss compensation matters openly without fear of retaliation.

Partners adheres to the principles of the Equal Pay Act, ensuring that all employees are compensated fairly and without discrimination based on gender, race, ethnicity, age, religion, disability, or any other protected characteristic. Employees in similar positions with similar qualifications and performance will receive equal pay.

Additionally, Partners will maintain and communicate a clear pay structure that outlines salary ranges or pay bands for different job positions within the organization. This information will be made accessible to employees to facilitate transparency and informed decision-making regarding career growth and compensation negotiation.

Partners will openly communicate the various factors considered when determining employee compensation. These factors may include job responsibilities, experience, education, skills, certifications, performance evaluations, and market conditions. By understanding these factors, employees can have a clear understanding of how their compensation is determined.

While Partners promotes pay transparency, Partners also respects the privacy and confidentiality of individual employees. Therefore, employees are expected to exercise discretion and refrain from disclosing specific compensation details of colleagues without consent.

Employees have the right to discuss their compensation, benefits, and any concerns they may have with their supervisors, Unit Leader, or HR. Partners prohibits any form of retaliation or discrimination against employees or applicants who engage in discussions or raise concerns related to compensation matters or because they have inquired about, discussed, or disclosed their own pay or the pay of another employee or applicant. However, employees who have access to the compensation information of other employees or applicants as a part of their essential job functions cannot disclose the pay of others to individuals who do not otherwise have access to compensation information, unless the disclosure is: 1) in response to a formal complaint or charge; 2) in furtherance of an investigation, proceeding, hearing or action, including an investigation conducted by the employer; or 3) consistent with the contractor's legal duty to furnish information.

## B. 360-degree Reviews

The 360-degree review aims to foster a culture of open communication and professional development within Partners. This feedback mechanism is designed to provide individuals with comprehensive insights into their strengths, areas for improvement, and potential blind spots from multiple perspectives, including peers, subordinates, and supervisors. Reviews are encouraged to focus on constructive criticism and honest observations. This process is not tied to performance evaluations but rather serves as a tool for personal and professional growth.

Feedback recipients are encouraged to reflect on received insights, identify actionable steps for improvement, and leverage support resources as needed. Throughout the 360-degreee review process, confidentiality is required to ensure that feedback is shared in a secure and respectful manner. 360-degree review templates are available on SharePoint.

## C. 90-Day Performance Review

Partners 90-day performance review is to ensure a smooth onboarding process and setting the stage for long-term success. During the first 90-days of a new hire or employee who moved to a new position (whether as a transfer to another position or promotion), the employee's supervisor is tasked with providing comprehensive feedback. The review will assess their understanding of job responsibilities, serve as an opportunity to address any early challenges, and identify any need for additional trainings. Moreover, it allows for open dialogue between the employee and their supervisor. All supervisors must complete the template for the 90-day performance review.

## D. Performance Evaluation

The employee's supervisor will conduct a written performance evaluation on an annual basis or more frequently if they deem to be appropriate. Annual performance evaluations will be conducted using fair and transparent criteria, which will be communicated to employees. Pay decisions will be influenced by these performance evaluations, ensuring that compensation is tied to individual contributions.

Initial performance evaluations will generally be performed after three (3) months of employment. The initial evaluation will not be used as basis for salary increases. The evaluation will be written and will be based on available job descriptions, standards of performance, and such other factors which Partners determine to be appropriate. Employees will have the opportunity to review, evaluate, and discuss their performance as well as obtain feedback from Partners. Standards for evaluation will be established by the President & CEO in cooperation with HR.

## E. Salary Adjustments for Merit

Salaries for all employees are reviewed annually. Merit based adjustments to salaries may reflect general changes applicable to many positions and may also reflect merit changes based on the performance of an individual. The range for salary increases are usually within a 0%-5% range; although, rate increases outside this range may be authorized by the President & CEO.

The percentage increase will be based on the annual performance review score and proportional to time worked within the year and/or or since the date of the last increase or promotion received during the year. In all instances, increases are dependent on the overall financial health of the organization, reflect recommendations of an employee's supervisor(s) and are based on the approval by Partners' President & CEO.

### F. One-Time Payments for Inflation Adjustments

Partners recognizes the impact inflation can have on staff. Therefore, if inflation in the country exceeds 10%, Partners HR will conduct an analysis of the inflation trends to determine if a one-time inflation adjustment payment will be made to staff. HR, in collaboration with relevant stakeholders, will assess cost of living factors and economic indicators and use this assessment to determine if a one-time payment is appropriate and the amount. If a inflation adjustment is deemed necessary, and approved by the President & CEO, the payment will apply to all staff within the country and proportional to time worked within the year of analysis. Inflation adjustment payments are a one-time, and do not increase the base salary of an employee. In all instances, inflation adjustments are dependent on the overall financial health of the organization.

### G. Salary Advances

Salary advances are not allowed.

## VIII. Work Schedule

### A. Office Hours

The workweek of Partners is seven (7) consecutive days (Sunday – Saturday). The normal work schedule for all full-time employees is an eight (8) hour day, five (5) consecutive days a week beginning on Monday. Normal business hours for regular, full-time personnel are 9:00 am - 5:30 pm, Monday through Friday, and assumes a one (1) hour lunch break. All employees must be available during Partners' core work hours of 10:00 am - 3:00 pm ET, although responsibilities may require more than this period. More flexible work schedules (within the hours of 7:00 am to 7:00 pm) can be arranged. Employees can choose to shift their regular hours (e.g., 7:00 am – 3:30 pm EDT, 10:00 am – 6:30 pm, etc.) on some or all days of the week. Please reference the Flexible Work Arrangement Policy for the procedure and approval process. Employees on a shifted hours schedule (anything other than Partners' standard 9:00am – 5:30 pm ET M-F) must list their work hours in their Microsoft Teams status message.

Time taken for lunch is estimated at one (1) hour. However, if only a 30 minute lunch break is taken, the workday can be reduced by 30 minutes on either the beginning or end of the workday.

#### Communications Outside of Office Hours

If staff receive emails, Teams messages, or other communications outside the set working hours above or on weekends, employees are not expected to respond until their usual working hours, unless requested otherwise. Employees will receive a message in Teams and email marked as

"urgent" if a respond is needed outside of working hours due to an emergency or otherwise urgent situation which requires immediate attention.

Staff are encouraged to use the function "schedule emails to send" in Outlook and "schedule message to send" in Teams when message are not urgent, so they arrive to employees during normal business hours.

## B. Flex Work Arrangement Policy

This policy applies to all Partners staff that are part of the Home Office structure. Partners depends on our ability to interact and work in teams, and we must be able to be responsive to those people we serve and interact with, including our donors, partnerships, and colleagues. However, Flex Work Arrangement (FWA) may be allowed. The supervisor and employee will agree in advance and submit a request for FWA. FWA arranges can be flex time, compressed work weeks, or another reduced scheduled.

While working under FWA employees are required to follow FWA and Partners policy at all times. Employees may perform flex work arrangement only after the complete approval process from the employee's Supervisor, Unit Leader, HR, and the President & CEO. Please review full policy on FWA in Annex H: Flex Work Arrangement Policy. The required FWA forms and tools are found in SharePoint and PandaDoc.

## C. Telecommuting Policy and In-Person Requirements

This policy applies to all Partners staff that are part of the Home Office structure. Partners recognizes the importance of a healthy work-life balance and acknowledges that flexibility in work location can improve staff recruitment and retention. Partners also recognizes the importance of organizational culture and innovation. The objective of this policy is to balance these factors, providing flexibility for employees without jeopardizing Partners' organizational culture and ability to innovate.

Telecommuting allows employees to alter their work location for part or all of the workweek. However, telecommuting is not an entitlement or company benefit. Partners considers telecommuting to be a viable work option when both the employee and the job are suited to such an arrangement, please see eligibility criteria below.

For additional guidance, reference Annex I: Telecommuter Memo and BISTEC Guiding Principles.

### Telecommuting Arrangements

Partners operates with three types of telecommuting arrangements:

1) *Ad Hoc:* Informal temporary remote arrangements that may be approved for circumstances such as inclement weather, certain family or medical leave circumstances, special projects, medical appointments, or personal travel. Ad hoc agreements are not allowed to exceed a total of 30 days within a year (January – December). This arrangement is authorized on an as-needed basis, with no expectation of ongoing continuance, by the direct supervisor in an email (Cc poahr@partners.net).

2) *Partial:* Formal arrangement in which the employee's normal work schedule is in a location outside of the Home Office on non-required in-office days. This arrangement is authorized by the direct supervisor in an email (Cc poahr@partners.net).

3) *Full:* Formal arrangement in which the employee works in a location outside of the Home Office every day of the week. This arrangement is authorized after the direct supervisor, unit lead, HR VP and Executive Leadership Team approve the telecommuting arrangement request form. To be eligible for full telecommuting, the employee must have a home of record in a state or country where Partners is already registered for tax and visa purposes. Partners will not register in new states or countries for staff. All full telecommuters will need to sign verifying their home of record and Partners will withhold all required taxes based on the home of record. Employees must have the appropriate visa in their working location and be in compliance with local laws. Any taxation related issues outside of the home of record where Partners is registered is the employee's responsibility.

Any telecommuting arrangement may be discontinued at will and at any time at the request of either the employee or Partners. Every effort will be made to provide 30 days' notice of such change to accommodate commuting, childcare, and other issues that may arise from the termination of a telecommuting arrangement. There may be instances, however, when no notice is possible.

### Telecommuting Employee Expectations

1. Telecommuting employees are expected to comply with all Partners policies and procedures and maintain standards for performance, work hours, workload, meeting attendance, and required deliverables.
2. Telecommuting employees may still be expected to return to the Home Office and/or other specified location(s) for certain meetings and organization-wide events, among other reasons, as determined by the direct supervisor or President & CEO. Every effort will be made to provide ample notice.
3. Telecommuting employees must be available with high-speed internet, sufficient for high-quality video conferencing, when working.
4. Telecommuting employees may not accept any other employment or non-Partners work assignments during work hours.
5. Telecommuting arrangements are not a substitute for childcare or other dependent care.
6. Telecommuters must have a home of record in a state or country where Partners is registered and are responsible for being compliant locally with all taxation and visa requirements.

### Telecommuting Facilities, Supplies, and Equipment

With the exception of a laptop, Partners is not responsible for providing or paying for any facilities, supplies, equipment, or internet access required to facilitate work from home. Employees are responsible for protecting any company equipment and may be required to reimburse Partners for loss or damage outside of normal wear and tear. Upon terminating employment with Partners,

employees are required to return their laptop and any other equipment to the Home Office in good working condition at the employee's expense.

### In-Person Requirements for Employees

Below are the in-person requirements for all staff:

1. **Weekly Attendance** for DMV*
    - DMV (District of Columbia, Maryland, and Virginia and within 50 miles of the office) staff are required to come into the office every Wednesday.
    - Please note that if other meetings are scheduled outside the above standard schedule, these will be additional in-office days.

    Home Office international staff residing near a Partners field office are required to adhere to the same in-person attendance requirements where a Partners office is established, unless otherwise authorized, however, the day of the week is flexible in accordance with the country supplemental manual.

2. **All Staff Gatherings**
    - All Staff Day
        - PM Activity: Occurs on the 1st Wednesday of every month.
        - All Staff Day: Occurs on the 3rd Wednesday of every month. We will hold our monthly All Staff Meeting in the afternoon on this day.
        - Full teleworkers are not required to come into the office.

3. **All Staff Retreats (Three consecutive days of all staff collaboration)**
    - All Home Office staff, including full teleworkers, are required to attend two all staff retreats per year. These will usually be held in the DC area.
    - Depending on your position it will determine the length of your participation.
        - Directors and Above: Monday to Thursday, departing on Friday.
        - Associate Directors and Below: Monday to Wednesday, departing on Thursday.
    - Each unit will hold one additional retreat; unit leaders will coordinate the dates with the unit VP. All unit members are required to attend.

### All Staff Retreat Expenses

Partners will cover travel expenses for all non- DMV based* staff for All Staff Retreats, estimated to occur 2-3 times per year. Expenses covered by Partners administrative or program/unit budget will be transportation, hotel, airfare, and per diem for authorized days only.

*DMV based employees are defined as individuals residing in within 50 miles of the office in Maryland, Virigina, or District of Columbia.

### Eligibility and Requirements for Telecommuter Arrangements

Adapting to the evolving work landscape, we are introducing Partners' new telecommuting approach and outlining the 2024 in-person attendance requirement. This initiative aims to balance flexibility for staff, consider diverse talent pools, and foster a thoughtful approach to new hires.

1. Employees approved for full telecommuting prior to January 1, 2024, will be "grandfathered" to the changes regarding how Partners approaches telecommuting.

2. Most new hires and existing employees will reside in the DMV. However, an employee will be exempt from the once a week in-person attendance due to meeting **both** conditions of eligibility below:

    a. Employee or new hire is an Associate Director Level and Above:
        i. For new hires, after **three months** of unsuccessful recruitment for an Associate Director level position and above, HR will modify the job posting to make it eligible for Full Telecommuter Status and begin recruiting outside of the DMV area.
    b. Employee or new hire resides over 50 miles from the office.

### Full Telecommuting Requests & Evaluation

To request a full telecommuting arrangement, an employee must comply with the eligibility requirements above, and fill out and submit a telecommuting arrangement request form on SharePoint or PandaDoc to their supervisor. The supervisor, unit lead, and HR VP will assess the suitability of the telecommuting arrangement request, evaluating the following areas:

- Employee history: employee performance, attitude, knowledge and skills, and length of employment at Partners;
- Position description (must be Associate Director or higher): specific job responsibilities, particularly on-site responsibilities;
- Externalities: potential consequences on the unit, department, and broader organization of approving or denying the request; and
- Legal implications: tax or legal implications under IRS, state, and local government laws, and/or restrictions of working out of a home-based office.

Upon reviewing the request, the supervisor, unit lead, and/or HR VP may ask the employee to add additional context and/or modify the request prior to further consideration.

1. If the supervisor, unit lead, and/or HR VP denies the request, HR will archive and return the signed agreement to the employee. Upon request, the supervisor, unit lead, and HR VP will schedule a meeting with the employee to provide feedback and answer any questions.

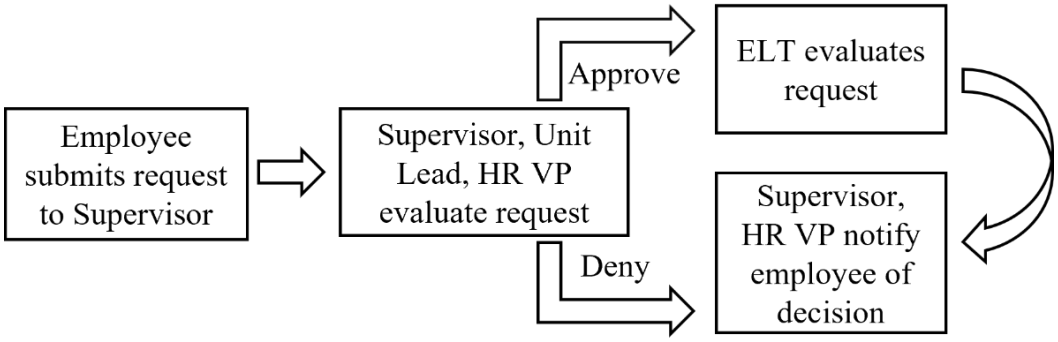
2. If the supervisor, unit lead, and HR VP approve the request, the supervisor will sign the

request and HR VP will share it with the Executive Leadership Team (ELT) to be reviewed at the next ELT meeting.

a. If the ELT approves the request, the President & CEO will sign and return the request to HR. HR will archive and return the signed agreement to the employee.

b. If the ELT denies the request, HR will archive and return the signed agreement to the employee. Upon request, the supervisor, unit lead, and HR VP will schedule a meeting with the employee to provide feedback and answer any questions.

### Full Telecommuting Arrangement Request & Evaluation Process




Any full telecommuting arrangement made will be on a trial basis for the first three months. At the end of the trial period, the employee and direct supervisor will each complete an evaluation and make recommendations to continue, modify, or nullify the telecommuting arrangement. If continued, the telecommuting arrangement will be valid through the end of the calendar year in which it was signed. To continue the telecommuting arrangement in the following calendar year, the employee must submit a new telecommuting arrangement request as an attachment to their annual performance review self-evaluation.

## D. Pay Periods

Employees are paid by the 7th and the 22nd of each month. When a regularly scheduled pay day falls on a weekend or holiday, payment is made on the last working day preceding said date. Employees are encouraged to have their paychecks deposited directly to a bank account of their choice after providing HR with a void check or a letter from the bank certifying account numbers.

Payroll stubs itemize deductions made from gross earnings. By law, Partners is required to make deductions for Social Security, federal income tax, and any other appropriate taxes. These required deductions also may include any court-ordered garnishments. Payroll stubs also will differentiate between regular pay received and overtime pay received.

Partners takes all reasonable steps to ensure that employees receive the correct amount of pay in each paycheck and that employees are paid promptly on the scheduled payday. However, employees are responsible for the following:

1. **Regular Paycheck and Paystub Review:** Employees should check their paychecks regularly, to ensure that all hours worked, bonuses, deductions, and other compensation components are accurately reflected. Each pay period employees must examine paystubs and ensure accuracy of the detailed information including gross earnings, deductions (such as taxes, retirement contributions, insurance premiums, etc.), and the net amount received.
2. **Contact HR:** If an employee identifies any issues or discrepancies in their paycheck, they should promptly contact HR to discuss and resolve the matter. This might involve providing additional documentation.
3. **Timely Reporting and Record Keeping:** Employees must report any concerns regarding their paychecks as soon as possible to expedite the resolution process. Employees should keep a record of their paychecks and pay stubs, along with any communication related to paycheck concerns, for future reference if needed.

Partners will make good faith efforts to ensure that any improper deductions or discrepancies concerning pay do not reoccur.

## E. Timesheets

As recipients of federal funds, Partners is required to maintain an accurate and timely system regarding labor charges. Employees shall enter their actual hours worked on a timesheet daily indicating labor charges and use of leave or holidays.

### Completion and Submission of Timesheet

Timesheets must be completed by the employee, accurately indicating labor distribution as well as use of leave. Partners uses an electronic timesheet software. You will be given a username and password, as well as instructions for use by HR.

Employees are required to complete their timesheet semi-monthly and submit it to their supervisors by the deadline established by the Finance office. Supervisors are required to review, approve, and submit timesheets via the electronic timesheet management software by the deadline established by the Finance office, in accordance with the payroll submission calendar distributed by the Finance office each year.

Accuracy and timely submission of timesheets are key aspects for the processing of payroll. Repeated tardiness with timesheets and/or approvals may result in disciplinary action.

### Responsibility

Payroll is a critical process since it involves personal finances of our staff. Employees are responsible for honest representation of how their time is allocated among programs and for accurate disclosure of use of leave. Supervisors are responsible for ensuring accuracy of the timesheet before approving

it for pay. The Finance office is responsible for ensuring the soundness of the system and for processing payroll.

### Compliance

Auditors check timesheets to ensure compliance with the time reporting policy and federal requirements. If an employee does not comply with Partners' time reporting policy or procedures, Partners management may take disciplinary action.

## F. Overtime

Partners' overtime policy is applicable to those employees who have an FLSA (Fair Labor Standards Act) designation of non-exempt indicated on their offer letter or memo to file. It is also indicated on the job description. All employees will need to adhere to the pertinent clause below based on their exemption:

### Exempt Employees:

Exempt employees are not eligible for overtime under any circumstances.

### Non-Exempt Employees:

Non-exempt employees while eligible per law to charge overtime may not charge any overtime per Partners' policy unless pre-approved in writing from their supervisor and if applicable their grants officer. The compensation for overtime is one-and-one half (1½) times the employee's normal hourly rate for all time worked over 40 hours in any particular work week.

Partners' work week is seven (7) consecutive days, beginning on Monday at 12:00 am and ending on Sunday at 11:59 pm. The normal work schedule for all full-time employees is an eight (8) hour day, five (5) consecutive days a week beginning on Monday.

All non-exempt employees can only work 40 hours per work week (including vacation, sick and annual leave time). If a non-exempt employee has more than 40 hours in a work week without prior written approval, the hours above 40 will be paid at 1½ the hourly rate; however disciplinary action may be incurred.

### Non-Exempt Administrative Staff

For any non-exempt staff charging their time to administrative units, no overtime is allowed. The employee and their supervisor will need to monitor the timesheet, so the employee does not incur more than 40 hours in a work week. This means that working days may need to be adjusted per individual to accommodate late meetings, business travel, trainings, etc. to ensure they do not cross the threshold of 40 hours each work week.

### Non-Exempt Program Staff

For any non-exempt staff charging their time to programs, they may be eligible for overtime if pre-approved in writing from both their supervisors and the donor. Please note governmental grants

cannot be charged any overtime per USG Regulations; however, if written consent is given from the donor in a signed letter/memo, then Partners can charge additional time over 40 hours.

Any situation in which the donor does not approve a request for overtime and Partners believes it is critical to the success of the project, it will be reviewed on a case-by-case basis. If approved, the first 40 hours worked would need to be expensed to the award and any additional hours over 40 would need to be expensed to an administrative unit. Business travel (as referenced below) cannot put an employee into overtime status; therefore, working days may need to be adjusted per individual to accommodate business travel, late meetings, training, etc. to ensure they do not cross the threshold of 40 hours each work week.

### Non-Exempt Employees and Business Travel, Seminars, and Trainings

When a non-exempt employee is on travel, their travel time must be taken into consideration. Commute time to and from work (i.e., Partners' International Office) is not considered time worked. However, when traveling during normal work hours is part of the job activity or when travel is necessary to/from meetings, it is time worked. When it comes to business travel this also means from the moment an employee leaves their house until the time they are settled into their accommodation at their destination, they must be paid for all hours on travel. Therefore, Partners recommends that non-exempt staff only travel Monday-Friday and not on weekends. While on business travel, the employee should be paid for all hours that they would normally be in office. For example, if an employee's standard work week is Monday-Friday from 9 am-5 pm, while on travel the employee should be paid during that time period, unless on any form of leave. While on business travel, employees will not be compensated for time sleeping or meals, unless the meal is part of a meeting, as this is not considered hours worked. However, if an employee is on business travel and has meetings/work scheduled outside of normal business hours, they will need to include that time as time worked on their timesheet. For example, an employee on travel hosts a dinner meeting from 7 pm -9 pm, they should be compensated for those two hours. They should then adjust their work schedule that week to ensure they do not exceed 40 hours.

Any non-exempt employee attending lectures, meetings, training programs, and similar activities are viewed as working time unless all the following criteria are met:

1. Attendance is outside of the employee's regular working hours
2. Attendance is, in fact, voluntary
3. The course, lecture, or meeting is not directly related to the employee's job
4. The employee does not perform any productive work during such attendance.

Basic rule of thumb is to consider if the company or individual is paying for the training.

### Non-Exempt Employees and After-Hours Work

A non-exempt employee is never expected to work outside of their set 40 hours a week under any circumstances. This includes abstaining from working on projects at home before or after normal

business hours, answering emails (via laptop, cell phone, etc.) outside of office hours while at home or late at night. If an employee continues to work after they are clocked out for the day or before they clock in, they may be subject to disciplinary action as the tasks done outside of the normal work schedule must be counted towards hours worked.

### Non-Exempt Employees and Work from Home & Comp Time

A non-exempt employee may be eligible to work from home during normal business hours during each work week. However, employee must not continue to work from home after they are clocked out for the day.

Non-exempt employees are not eligible for Compensatory Time . Non-exempt employees are eligible for overtime if authorization is obtained and therefore comp time is not applicable to employees in this category.

### Non-Exempt Employees and Timesheets

A non-exempt employee must clock in and out every day at the start and end of work for all hours they are on duty. The employee must clock out if they are stopping work for at least 30 minutes, anything less is considered a break and counted as time worked. If the employee wishes to eat lunch at their desk and continues to work, these hours must be considered time worked. If an employee chooses not to take lunch breaks, they must monitor their time to not cross the threshold of 40 hours.

For timesheet purposes, the smallest increment in which an employee can clock in or out for is 15 minutes. Therefore, all-time punches for non-exempt employee should be rounded to the nearest 15-minute marker.

## Supervisor's Expectations for Non-Exempt Employees

### Doing Work off the Clock

The supervisor is responsible for reviewing employee timesheets. If the supervisor knew or should have known work was being done off the clock it needs to be reflected on the timesheet. It is illegal to not pay for work performed off the clock, even if it was not previously approved and/or authorized. Employees may perform a variety of potentially compensable job-related activities during their "off-the-clock" time, such as: taking work home, making/receiving job-related telephone calls at home, working before or after regular hours, or job-related "volunteer" work. However, the supervisor should monitor these activities to ensure all appropriate time worked is compensated.

### Breaks and Lunches

When it comes to non-exempt employees and lunches, you do not have to pay them for meal periods, nor does this time count for overtime purposes, as long as employees are completely relieved of work duties during the meal period. Short breaks of 5-20 minutes are offered for every 4 hours worked and therefore count as time worked. The employee should not clock out on his/her timesheet for these breaks; however, lunch breaks of 30 minutes or more will require the employee to clock in and out if they are completely relieved of their duties. If the employee eats lunch at their desk and

continues to work, these hours must be considered paid time worked. Partners provides a paid lunch period of 30 minutes to all employees, any time beyond 30 minutes must be approved by the supervisor and they must clock out on their timesheets, if applicable. 30 minutes of paid lunch time cannot be applied to changes to scheduled arrival and departure time at office.

## G. Lactation Break

Employees have the right to express breast milk in the workplace. Any mother breastfeeding her child may, for this purpose, have at her place of work with privacy, two breaks of 30 minutes each within each day to breastfeed her child for three (3) years after the child's birth each time the employee has a need to express milk. On the fourth floor, Partners has designated a room which is available for use by such employees to express breast milk. The room will provide, at minimum, a chair, a working surface, nearby access to clean running water, and an electrical outlet. Employees may use the refrigerator for the purposes of storing the expressed milk.

Employees who need to take lactation breaks are encouraged to give Partners notice of the intent to take breaks. The employee may choose to join the two breaks for a 60-minute late arrival or early dismissal. Partners will grant additional breaks if the worker presents a medical certificate in which the reasons justifying the greater number of breaks is stated. Employees will not be discriminated against or retaliated against for exercising their rights under this policy.

## H. Compensatory Time

The purpose of this policy is to provide guidelines for compensatory time off for eligible exempt employees in lieu of overtime pay, fostering a healthy work-life balance and recognizing employees' efforts. Exempt salaried employees may be eligible for compensatory time at Partners' discretion. In this regard, time is available to exempt employees after periods of unusually excessive work with the intention they use this time to catch up on personal matters and to rest.

If Partners requires an employee to work or travel during a Partners' approved holiday, a compensatory day will be provided. If an employee chooses to work on the holiday, and would like to switch days, the employee must use a floating holiday.

Employee's will speak with their supervisor to request compensatory time. The employee's supervisor will make the formal request for compensatory time. All request for comp time must be emailed to poahr@partners.net. The request must include number of days requested and the date proposed to use the time. Requests will be reviewed by HR for consistency among units to confirm if comp time is permitted. Supervisors will review the dates proposed for comp time to ensure it works with unit/programmatic needs.

Compensatory time is not related to hours or days worked and does not accumulate or accrue. Any compensatory time must be taken within thirty (30) calendar days following the end of the qualifying events/deliverable, unless an exception is approved in writing by HR.

**Illustrative examples** of when compensatory time may be requested by the employee to their supervisor:

1. Employees may be eligible for one (1) day (8 hours) of compensatory time within thirty (30) working days of time for the following circumstances:

    - Employee recognition for exceptional performance with approval from HR. All *recognition* award recipients must meet the following criteria:
        - The employee's accomplishments exceed the normal standards/expectations for the job.
        - The employee has fulfilled all normal job duties in addition to performing added duties to accomplish a special project or achieve a certain goal.
        - The employee serves as a role model for others, displaying desirable characteristics such as outstanding customer service, positive attitude, and team leadership.
        - Examples include:
            - **Outstanding achievements and accomplishments.** Demonstrated and sustained outstanding achievements that consistently exceed goals and job expectations.
            - **Teamwork.** Acting as an exceptionally effective and cooperative team member or demonstrating superior interactions within and outside the company and the client population served.
            - **Length of service.** A commitment to Partners of the Americas through long-term service.
    - Travel for business purposes beyond their regular working hours. Staff who travel on a Saturday, Sunday, or holiday. If a staff member traveled on a Saturday and Sunday, they would receive two (2) days of compensatory time. Compensatory time will apply to extended travel for travel over multiple weekends, however, it would not mean an exact 1:1 compensation of weekend days spent traveling.
    - Staff involved in preparation or conducting annual audit on weekends or working excess hours (over 9 hours/day) during the weekday. Email will be sent by audit manager indicating the employees eligible for this day.
    - Staff involved in business development proposal preparation, writing, and reviewing on weekends or working excess hours (over 9 hours/day) during the weekday. Email will be sent by proposal manager indicating the employees eligible for this day.

For exceptional instances and additional qualifying events outside of the illustrative examples above, approval must come from the employee's supervisor and HR.

Compensatory time must be logged as "Other Leave" in timesheets.

## I. Inclement Weather/Emergency Closings

Partners follows the Office of Personnel Management for all delays, closings, etc. Updates can be found at: https://www.opm.gov/status/. HR will send out an all-staff email when delays, closures, etc. occur. However, Partners recommends that staff monitor OPM for the latest updates.

Per OPM guidance all employees are to work at their home or take unscheduled leave upon office closure. Employees must account for the entire workday by teleworking, taking unscheduled leave (paid or unpaid) or other paid time off, or a combination.

# IX. Leave and Benefits

## A. Ex-Pat Leave and Benefits

For expatriate leave and benefits, please reference Partners' Expat Fringe Benefits Policy. For taxes, expatriates will be required to comply with Partners' Tax Equalization Policy.

## B. Senior Management Benefits

Partners' Senior Management Benefit Policy outlines the additional compensation, perks, and benefits that may be provided to certain Senior Managers, Grade E and above. The goal of these additional Senior Management benefits are designed to attract and retain top talent, and acknowledge the unique responsibilities and contributions of these senior executives. Eligibility criteria for specific benefits and perks may vary based on position, performance, and other factors. The President & CEO will determine all Senior Management benefits. Senior Management benefits may include but are not limited: performance based compensation or incentives, housing or crisis allowances, additional insurances, car allowances, travel benefits, professional growth incentives, or other benefits as determined by the President & CEO.

### Crisis Allowance

One option for Senior Management Benefits is a crisis allowance. This allowance may be provided at the discretion of the President & CEO. The crisis allowance compensates Senior Managers, Grade E and above, for the heightened risks and challenging environments due to factors such as conflict, natural disasters, political instability, or other critical incidents. This allowance recognizes the heightened risks and personal sacrifices staff may face while fulfilling their duties under adverse conditions oversees. If applicable, Partners' will assess the degree of risk associated with the country and assigns a percentage as additional compensation for the security situation. Holidays

## C. Regularly Observed Holidays

The following holidays are observed by Partners:

- New Year's Day
- Dr. Martin Luther King's Birthday (third Monday of January)
- Presidents' Day (third Monday of February)
- Emancipation Day (April 16th)
- Memorial Day (fourth Monday of May)
- Juneteenth
- Independence Day – Fourth of July
- Labor Day (first Monday of September)

- Indigenous Peoples Day (second Monday of October)
- Veteran's Day
- Thanksgiving Day (fourth Thursday of November)
- Thanksgiving Friday
- Christmas Day
- Other federal government holidays and office closings
- All workdays between Christmas Day and New Year's Day (Winter Break)

When a holiday occurs on the weekend, Partners will observe the holiday on the day observed by the federal government. When a holiday observed by Partners falls within an employee's vacation period, accrued vacation is not charged on that day. Part-time, non-exempt employees who do not regularly work on the day on which a particular holiday falls will not be paid for that holiday.

Holiday pay will be calculated based on the employee's straight time pay rate (as of the date of the holiday) times the number of hours the employee would otherwise have worked on that day. Paid time off for holidays will not be counted as hours worked for the purposes of determining whether overtime pay is owed.

## D. Floating Holidays

Floating holidays offer flexibility, enabling employees to celebrate personal, religious, or cultural events that may not be covered by the standard Partners holidays. A floating holiday is a paid day off that substitutes one of Partners' regularly observed holidays. Floating holidays include religious or cultural holidays, employee birthdays, anniversaries (work or personal), or other state or federal holidays during which Partners remains open. A floating holiday cannot be used interchangeably as a paid leave.

Employee can elect to use up to four (4) floating holidays a year. Employees must work the regular Federal holiday and determine which day they will recognize in lieu of that holiday. Employees must specify the event for which they are requesting to use a floating holiday. The request must be scheduled and approved in advance by the employee's immediate supervisor.

Floating holidays will not be carried over to the next calendar year, nor may they be paid out if not taken or upon termination of employment.

## E. Communicating Absences

Staff members are required to request approval from their supervisors regarding use of leave or other absences with as much notice as possible, following the protocols below. Simply alerting your supervisor that you will be "out of the office" is not sufficient.

If employees will be out of the office for two (2) days or longer, they must notify all staff via email at last three (3) business day prior. The email must contain the following:

- Dates the employee will be out of office
- Date they will be back to the office

- Provide alternative points of contacts for urgent matters

For positions of management, delegation responsibility and signature authority

Additionally, staff must put their leave as blocked on their calendar.

**Protocol for Planned Leave**

Submit Leave via Paycom under Time Off Requests > Request Time Off with as much advance notice as possible. **For all planned leave, employees must receive approval in system prior to taking the paid leave.** Email approval is not sufficient and the time off must be requested and approved in Paycom prior to the leave start date.

## F. Annual Leave (Vacation)

Vacation time is accrued by full-time employees from the outset of their employment at the rates shown below:

- Employees with 0 to 3 year of service: 15 workdays per year (accrued at the rate of 5 hours per pay period)
- Employees with 3 to 10 year of service: 20 workdays per year (accrued at the rate of 6.67 hours per pay period)
- Employees with 10 or more years of service: 25 workdays per year (accrued at the rate of 8.33 hours per pay period)

Vacation time is accrued by part-time employees at the rate of 2.5 hours per pay period, 7.5 workdays per year and does not increase over time unless employment is changed to full time status.

Accrued unused annual leave will be paid upon termination of employment.

### Use of Annual Leave

Full-time and part-time employees are eligible to take vacation (annual leave) with pay as soon as it is accrued. Employees may use annual leave in three-hour increments. Any leave necessary for under three hours should be done in coordination with the employee's supervisor and the hours made up accordingly.

Vacation (annual leave) must be coordinated with working associates to ensure adequate coverage in the office. All vacation leave must be requested in Paycom and approved by the employee's supervisor in the system prior to the leave being taken. Requests must be made at least one (1) weeks prior to the start date of annual leave.

### Advance Leave

Paid leave is limited to the number of hours which have been accrued. Advance leave is not allowed. Partners cannot pay an employee for time not worked.

With supervisor approval, employees may opt for leave without pay if they have exhausted all paid leave.

### Vacation Carryover

Employees are encouraged and expected to take their annual leave. Partners will try to accommodate employee vacation plans and will fully be able to do this if the employee and the supervisor agree on vacation plans with ample lead time. As of December 31st each year, employees will be able to carry over a maximum of:

- Employees with 0 to 3 year of service: 15 workdays per year (120 hours)
- Employees with 3 to 10 year of service: 20 workdays per year (160 hours)
- Employees with 10 or more years of service: 25 workdays per year (200 hours)

## G. Sick Leave

Full-time employees accrue 4 hours of sick leave per pay period, for a maximum of 12 earned days per year.

Part-time employees accrue 2 hours of sick leave per pay period, for a maximum of 6 earned days per year, assuming an average of 20 hours per week.

Unused sick leave is not reimbursed upon termination of employment.

### Use of Sick Leave

All employees, are covered by the District Family and Medical Leave Act to paid sick and "safe" leave for use under certain circumstances. Employees may use sick leave in three-hour increments. Any leave necessary for under three hours should be done in coordination with the employee's supervisor and the hours made up accordingly.

### Reasons for Leave

Paid leave accrued under the Sick and Safe Leave Act may be used by an employee for any of the following reasons:

- Personal Illness or Injury: Employees can use sick and safe leave when they need to address their own physical or mental health conditions, including medical appointments, menstruation, recovery from illness or injury, or preventive care.
- Family Member's Illness: Sick and safe leave can be used to care for a family member who is ill or injured, and whose health condition requires care.
- Medical Appointments: Sick and safe leave can be used for medical, dental, or optical appointments for the employee or their family members.
- Domestic Violence or Sexual Abuse: Employees can use sick and safe leave to seek medical attention, legal assistance, or counseling related to domestic violence, sexual abuse, or stalking for themselves or the employee's family member.
- Mental or Physical Health: Employee can use leave for mental health days, counseling, and other health-related reasons.

- Grieving: Employee can use leave for mental health day for grieving the loss of friends/family.
- Child's Immunization: Employees can use sick and safe leave to take their child to receive immunization shots.
  Pregnancy and Postpartum Recovery: Sick and safe leave can be used for pregnancy-related medical appointments and recovery from childbirth.

An employee is required to submit a doctor's certificate upon return to work from sick leave if his/her absence exceeds three (3) working days in one regular work week.

Covered family members include spouse, domestic partner, children (including foster children), grandchildren, parents and grandparents, siblings, and spouses of siblings. Also included are a child who lives with an employee and for whom the employee permanently assumes and discharges parental responsibility and a person with whom the employee shares or has shared for at least the preceding 12 months a mutual residence, and with whom the employee maintains a committed relationship.

### Sick Leave Carryover

Partners allows 12 days (96 hours) to carry over into each calendar year.

### Sick Leave Bank

As of July 2023, Partners has eliminated all sick leave banks and instead has provide short-term disability.

## H. Pregnancy Accommodation

Partners will comply with the Protecting Pregnant Workers Fairness Act (PPW) of D.C. and other state standards and provide reasonable workplace accommodations for employees whose ability to perform job duties is limited because of pregnancy, childbirth, breastfeeding, or a related medical condition. The employee with a pregnancy-related disability is responsible to notify Partners of the need for accommodation and to work with management concerning the need for accommodation. Partners will make all reasonable accommodations that are advisable as determined by a healthcare provider.

Pregnant employees who wish to request an accommodation must submit a medical certification. The certification must include: (1) the date the accommodation became or will become medically advisable; (2) an explanation of the medical condition and need for a reasonable accommodation; and (3) the probable length of time the accommodation should be provided. The accommodations may vary dependent on the medical advisability and could include; changing the employee's job duties, changing the employee's work hours, transferring the employee to a less strenuous or less hazardous position, or providing leave. A transfer may be considered as long as the transfer does not require Partners to create additional employment that Partners would not otherwise create, add an undue burden on other employees, discharge any employee, transfer any employee with more seniority than the pregnant employee requesting the transfer, or promote any employee who is not qualified to perform the job.

If the pregnant employee takes a leaves of absence under this policy it will run concurrently with all other leaves provided by Partners, including, but not limited to, Family and Medical Leave (FMLA) Act, leave for a work-related injury, and Americans with Disabilities Act, to the extent permitted by law.

## I. Family/Medical Leave

The District of Columbia has enacted a Family and Medical Leave Act which provides employees with at least one year of continuous service (1000 hours or more in the prior year) with the opportunity to take leave for up to 16 weeks during any 24-month period. Family/Medical leave is available to an eligible employee for:

- The birth of a child.
- The placement of a child with the employee for adoption or foster care.
- The placement of a child with the employee for whom the employee permanently assumes and discharges parental responsibility.
- The employee's own serious health condition that makes the employee unable to perform the functions of his or her job.
- A qualified exigency arising out of a spouse, child, or parent who is a military member on active duty.
- The care of the employee's family member who has a serious health condition. (A family member includes anyone to whom the employee is related by blood, legal custody, or marriage; a child who lives with the employee and for whom the employee permanently assumes and discharges parental responsibility; and a person with whom the employee shares or has shared for at least the preceding 12 months a mutual residence, and with whom the employee maintains a committed relationship.)

A serious health condition is an illness, injury, impairment, or physical or mental condition that involves inpatient care or continuing treatment by a health care provider. In general, a serious health condition includes the following:

- Any overnight admission to a hospital, hospice, or residential medical care facility.
- Continuing treatment by a health care provider that results in a period of incapacity of more than three consecutive days and necessary follow-up treatment (e.g., additional doctor or nurse visits, prescription medication, physical therapy).
- Chronic conditions requiring periodic health care visits at least twice a year.

Leave of up to 26 weeks in a single 12-month period may be taken for a qualified employee whose spouse, son, daughter, parent, or next of kin requires care while recovering from a serious injury or illness suffered while on active duty in the armed forces in accordance with the National Defense Authorization Act for FY 2008. Where a qualified employee takes both leave to care for a service member and other FMLA leave, however, the combined total of leave cannot exceed 26 weeks in a 12-month period. The leave provision also allows an employee to take FMLA leave for any qualifying exigency arising out of the fact that the spouse, son, daughter, parent or next of kin is on active duty (or has been notified of an impending call or order to active duty) in the armed forces.

Employees on family and medical leave will be required to use all accrued annual and sick leave before going unpaid. Family and medical leave runs concurrently with other types of paid leave (e.g., annual leave, sick leave, and maternity/paternity).

Coverage under the existing Group Medical Insurance Plan will be continued during the period of FMLA leave under the same terms as if the employee continued to work. The employee must continue co-payments of all applicable premiums. If premium payments are more than 30 days late, the employee may be dropped from coverage. Under such circumstances, an employee will receive a letter giving them 15 days' notice from the date of the letter to make payment.

Additionally, Partners may recover its share of health plan premiums during a period of unpaid FMLA leave from an employee if the employee fails to return to work after the employee's leave entitlement expires, unless the reason the employee does not return is due to a continued serious health condition of the employee or the employee's family member or a circumstance beyond the employee's control.

Upon return from an FMLA absence, employees are normally restored to their original or equivalent positions with equivalent pay, benefits, and other employment terms. However, an employee may be denied restoration to their original or equivalent positions for the following reasons:

- If an employee is laid off and works in a position wherein, they would have been laid off regardless of their FMLA leave.
- If the employee is salaried and among the highest paid 10 percent of all the employees employed by Partners.

An employee whose FMLA leave was prompted by the employee's own serious health condition may be required to present certification from their health care provider that the employee is able to resume work.

### Intermittent FMLA

Employees taking leave because of their own health condition or a relative's serious health condition, including leave to care for a covered service member, can take their allotment of FMLA leave intermittently or in accordance with a reduced work schedule if it is medically necessary. When employees have some control over the timing of their leave, they are expected to consult with their supervisor to try and arrange a mutually acceptable time. Employees taking leave to care for a newborn or newly placed child do not have the right to take intermittent leave and can only do so with their supervisor's consent.

### Medical Certificate

Partners requires certification of the serious health condition. An employee is expected to respond to such a request within 15 days of the request or provide a reasonable explanation for the delay. Failure to provide certification may result in a denial of continuation of leave. Employees who take leave for their own serious health condition may be required to provide certification of their fitness for duty before being permitted to return to work.

If this leave is taken on an intermittent basis, you may be temporarily transferred to an alternative position for which you are qualified if it better accommodates your recurring periods of leave.

### Request for FMLA

An employee must inform their supervisor that they require family or medical leave and when they expect to be absent. Partners, however, will process the request for leave and will make the necessary inquiries and evaluation to determine eligibility for leave. All supervisor notification must be made at least 30 calendar days before the leave is to begin unless the need for leave is unforeseeable. If an employee fails to provide 30 days' notice for foreseeable leave with no reasonable excuse for the delay, the leave request may be denied until at least 30 days from the date Partners receives notice. If unforeseeable, the request is to be made at the earliest possible time.

Supervisors must inform HR immediately upon an employee disclosing information of a qualifying conditions or events that warrants protections under FMLA. Within five (5) day HR will notify employees about their rights under the FMLA and provide them with information about how to request FMLA leave.

### Failure to return from FMLA

While on leave, employees are requested to report periodically to Partners regarding their intent to return to work. Employees who fail to return to work after the expiration of leave of absence and have failed to notify Partners of the reason for their failure to return may be considered to have voluntarily quit and their employment may be terminated.

## J. DC Paid Family Leave

Partners is subject to the DC Paid Family Leave law, which provides U.S.-based employees paid time off from work for qualifying parental, family, medical, and prenatal events. As of October 1, 2022 the Paid Leave Act provides four (4) kinds of Paid Family Leave benefits:

1. Parental leave - receive benefits to bond with a new child for up to 12 weeks in a year;
2. Family leave - receive benefits to care for a family member for up to 12 weeks in a year;
3. Medical leave - receive benefits for your own serious health condition for up to 12 weeks in a year; and
4. Prenatal leave - receive benefits for prenatal medical care for up to 2 weeks in a year.

Each kind of leave has its own eligibility rules and its own limit on the length of time you can receive benefits in a year. The maximum amount of leave for any combination of parental, family, and medical leave is 12 weeks. However, there is an exception for pregnant women who take prenatal leave. Pregnant women are eligible for 2 weeks of prenatal leave while pregnant and 12 weeks of parental leave after giving birth, for a maximum of 14 weeks. For more information on benefits and to apply go to: https://dcpaidfamilyleave.dc.gov/.

### Benefit Amount

Paid Family Leave benefits are based on the wages reported to the Department of Employment Services. The current maximum weekly benefit amount is $1,049. Partners will pay any difference in

salary to ensure employees receive 100% compensation. During this period, employees must exhaust all paid leave proportional to the amount of compensation Partners is covering to make the employee whole. This benefit can run concurrence with short-term disability insurance to reduce the amount of paid leave time that must be taken to make the employee whole.

## K. Maternity/Paternity/Childbirth/Adoption Leave

In the event of childbirth or adoption, a full-time affected employee planning to return to Partners will be provided with four weeks (20 workdays) of paid maternity/paternity leave. Maternity/paternity leave will run concurrently with Family Medical Leave. It will be left to the discretion of the employee regarding precisely when the leave period will begin, except that it is intended that the leave begin shortly before or immediately after the birth or adoption and that the leave be taken in a single block of time. In addition to the above, affected employees may also take accrued annual and sick leave, and leave without pay once accrued leave is exhausted, but in no event may the total absence period exceed 16 weeks.

Annual and sick leave hours will continue to accrue, and normal benefits will be maintained while the employee is on paid maternity/paternity, sick, or annual leave. Unpaid leave will be treated as an unpaid leave of absence.

Maternity/Paternity Leave must be recorded as "Other Leave" in timesheets, not to exceed 160 hours.

## L. Pawternity

The pawternity leave recognizes the importance of pets in the lives of our employees and promotes a healthy work-life balance. Employees are provided up to three (3) days of paid pawternity leave. This leave allows employees to take paid time off for the following circumstances:

- To care for and bond with their new pets after adoption or when bringing home a new pet
- To take a sick pet to the vet

Employees will be required to provide proof of pet adoption or purchase, or proof of a vet appointment. Acceptable documentation may include adoption papers, appointment records, vaccination records, or purchase receipt. Pawternity leave cannot be accumulated or carried over to the following year and resets on December 31st.

## M. Compassionate (Bereavement) Leave

Employees are provided up to three (3) days of paid compassionate (bereavement) leave in the event of the death. This leave should be requested in writing and approved by the employee's supervisor. Employees may be required to a copy of the obituary or other proof of death as documentation. Compassionate (bereavement) leave cannot be accumulated or carried over to the following year and resets on December 31st.

In addition to the three (3) days of paid bereavement leave, the employee can use their sick leave for grieving. Reference section F. Sick Leave.

## N. Marriage Leave

The marriage leave recognizes the significance of an employee's marriage and supports their transition into married life. This policy provides employees with paid time off to celebrate their marriage and attend related events including honeymoon. Employees are provided up to five (5) days of paid marriage leave. This leave allows employees to take paid time off for the following circumstances:

- Employee's wedding ceremony
- Marriage registration
- Honeymoon
- Other significant marriage-related events (e.g., religious ceremonies, family gatherings)

Employees will be required to provide proof of marriage certificate or other acceptable documents.

## O. Jury & Witness Duty

The Jury & Witness Duty Leave aims to support employees' civic responsibilities and legal obligations when they are summoned to serve as jurors in a court of law or when called to serve as a witness in a judicial proceeding. Employees will be paid their regular salary while serving on jury or witness duty. Employees may keep any compensation, fees, or reimbursements provided by the court for serving as jurors or witnesses. There is no minimum or maximum length of leave for jury or witness duty. The duration of the leave will be determined by the court's requirements. Employees will be granted paid leave for the duration of their jury or witness duty as specified by the court.

## P. Voting Leave

In accordance with Washington, DC Leave to Vote Amendment Act of 2020, employees will be provided two (2) hours of paid leave to vote in elections. The time must be recorded as "Other Leave" on timesheets.

## Q. Parental Leave (School Visitation)

Partners provides an employee with a total of 24 hours of leave during any 12-month period to attend or participate in school-related events for his or her child (which includes a grandchild, niece, nephew, the child of a spouse or domestic partner, or any child for whom the employee acts as a guardian or has legal custody). Partners extends this coverage to all employees, regardless of place of residence.

## R. Leave of Absence

On a case-by-case basis, Partners may approve extended periods of leave. Leaves of absence must be requested in advance, in writing, and approved by the President & CEO, who will have the sole discretion to decide whether approval of a particular request is appropriate and in the best interests of Partners. In most cases, such leave may not exceed three (3) calendar months. The employee must first exhaust all applicable leave, and any leave after that point will be unpaid.

While on unpaid leave, Partners will permit health care continuation to a maximum of one month on the same basis as active employees (by covering 80% of the cost of COBRA), beyond that the employee would be considered inactive and would need to pay for 100% of COBRA costs to maintain health care coverage. During a period of approved unpaid leave, normal benefits will not accrue, and the employee must assume full costs of maintaining medical insurance coverage. Other insurance coverage and benefits will be suspended while on unpaid leave and will be reinstated only upon return to active status. Prior to going on leave without pay, employees must contact HR to establish a payment schedule for any applicable benefits continuation.

Where a leave of absence is approved, Partners will generally endeavor to provide the employee with the same or a comparable position at the conclusion of the leave period. However, Partners makes no promise in that regard and, to the extent permitted by law, Partners has full discretion, if deemed in the best interests of Partners, to fill a position on a permanent basis when an individual takes a leave of absence.

### S. Leave for Military and Reserve Duty

All employees, excluding temporary employees, called to or volunteering for military service, will be granted leave without pay (LWOP) for the term of duty. These employees may, however, use all accrued vacation leave prior to being placed on LWOP status. Employees being called to serve are required to give as much notice as possible to their supervisor prior to the start of duty. A copy of the orders must also be provided to the employee's supervisor. In accordance with the provisions of the Uniformed Services Employment and Reemployment Rights Act, all eligible employees on military leave have the right to be reinstated to their former position or a position of like seniority, status, and pay if possible.

### T. Reinstatement of Benefits (Bridging)

In the event an employee returns to work for Partners within twelve (12) months of termination of your previous employment with Partners, and you terminated your previous employment with Partners in good standing, your absence will be treated as if it were a Leave of Absence and you may be eligible to continue your benefits at the level you enjoyed them at the time of your termination of previous employment with Partners. The waiting period for health and dental coverage is waived for employees returning to the plan within one year of termination.

## X. Other Benefits

### A. Executive Benefits and Compensation

The Chairman of the Board of Directors of Partners or the Executive Committee of the Board sets the base salary and benefits of the President & CEO.

### B. Health, Dental, and Vision Insurance

Health, dental, and vision insurance benefits are selected by the employee online at https://www.employeenavigator.com/. Any changes to health, dental, or vision benefits must be

made through Employee Navigator. An employee may decline health, dental, and/or vision coverage and, in so doing, assumes full personal responsibility for his/her health, dental, and vision care as well as that of his/her dependents. Employees will not be reimbursed for Partners' share of the premium foregone if they chose to decline coverage.

### Health Insurance

All employees are eligible for health insurance coverage effective on the first of the month following the date of hire. Upon termination, employee's health coverage will continue through the last day of the termination month. If termination date is in the first pay cycle of the month, the full month's employee deduction will be made on the final paycheck. Partners currently contributes 75% of the cost of health care based on a reference plan (BlueChoice Plus Opt-Out Platinum 0) for staff and dependents. The remaining 25% is deducted from the employee's paycheck after receipt of an employee's enrollment form in Employee Navigator. More information on coverage and benefits can be found on SharePoint.

### Dental Insurance

All employees are eligible for dental insurance coverage effective on the first of the month following the date of hire. Upon termination, employee's dental coverage will continue through the last day of the termination month. If termination date is in the first pay cycle of the month, the full month's employee deduction will be made on the final paycheck. Partners covers 75% of dental insurance for staff and dependents and the remaining 25% is deducted from the employee's paycheck after receipt of an employee's enrollment form in Employee Navigator. Dental insurance benefits are with Guardian. More information on coverage and benefits can be found on SharePoint.

### Vision Insurance

All employees are eligible to enroll with vision insurance with Guardian. Employees are responsible for 100% of the premium for themselves and their dependents. All employees are eligible for vision insurance coverage effective on the first of the month following the date of hire. Upon termination, employee's dental coverage will continue through the last day of the termination month. If termination date is in the first pay cycle of the month, the full month's employee deduction will be made on the final paycheck. More information on coverage and benefits can be found on SharePoint.

### COBRA

The Consolidated Omnibus Budget Reconciliation Act of 1986 (COBRA) allows for the extension of group insurance coverage to employees and/or their dependents on a self-pay basis after separation from employment. Terminating employees and their dependents are eligible to continue their health, dental, and/or vision benefits by paying 100% of the current premium to Partners plus a 2% administrative fee for a period of 18 months from the date group insurance terminated. Separating employees will be contacted by HR with more information and instructions on enrollment.

### Part-time Employees

Part-time employees are eligible for health, dental, and vision insurance coverage if their employment terms anticipate a normal work week of no less than 20 hours.

## C. HIPPA Privacy

Partners has adopted a policy that protects the privacy and confidentiality of protected health information (PHI) whenever it is used by company representatives. The private and confidential use of such information will be the responsibility of all individuals with job duties requiring access to PHI in the course of their jobs. PHI refers to individually identifiable health information received by the company's group health plans and/or received by a health care provider, health plan, or health care clearinghouse that relates to past or present health of an individual or for payment of health care claims. PHI information includes medical conditions, health status, claims experience, medical histories, physical examinations, genetic information, and evidence of disability.

## D. Genetic Information Nondiscrimination Act (GINA) of 2008

The Genetic Information Nondiscrimination Act (GINA) of 2008 protects U.S. Citizens from discrimination based on their genetic information in both health insurance (Title I) and employment (Title II).

### Health Insurance (Title I)

GINA prohibits health insurers from discrimination based on the genetic information of enrollees. Specifically, health insurers may not use genetic information to determine if someone is eligible for insurance or to make coverage, underwriting, or premium-setting decisions. Furthermore, health insurers may not request or require individuals or their family members to undergo genetic testing or to provide genetic information. As defined in the law, genetic information includes family medical history, manifest disease in family members, and information regarding individuals' and family members' genetic tests. GINA's health insurance protections do not cover long-term care insurance, life insurance, or disability insurance, though some states have state laws that offer additional protections against genetic discrimination in these lines of insurance. Visit the Genome Statute and Legislation Database to search for relevant state laws.

### Employment (Title II)

Title II of GINA prevents employers from using genetic information in employment decisions such as hiring, firing, promotions, pay, and job assignments. Furthermore, GINA prohibits employers or other covered entities from requiring or requesting genetic information and/or genetic tests as a condition of employment.

## E. Retirement Benefits

All employees that regularly work at least 1,000 hours per year (20 hours per week) are eligible to participate in the 403(b) tax-sheltered annuities via elective (voluntary) contributions beginning immediately upon employment. Effective January 15, 2021, employees will have the option to contribute to the 403(b) both pre-tax and post-tax (Roth).

### 403(b) Employer Match

Beginning on the first monthly entry date after the employee completes 90 days of service, Partners will match all employee's elective (voluntary) contributions made (both pre- and post-tax), up to

threshold of 10%. Employer contributions can only be made pre-tax. Employees must regularly work at least 1,000 hours per year to qualify for employer contributions.

#### 403(b) Changes

After the initial employment period, elective deferral enrollments and changes can only be made on the first day of each quarter. Employees can request that elective deferral contributions be stopped at any time. To update 403(b) percentages or stop deductions, employees must submit a 403b Contribution Change Form in PandaDoc.

### F. Life Insurance

Partners currently provides, at no cost to the employee, life insurance coverage. Employees must designate the beneficiaries for this coverage at the time of employment. Changes in named beneficiaries may be made at the employee's initiative. Information on the life insurance policy can be found on SharePoint.

### G. Accidental Death & Dismemberment (AD&D) Insurance

Partners currently provides, at no cost to the employee, AD&D insurance coverage. Information on the life insurance policy can be found on SharePoint.

### H. Short Term Disability Insurance

Short-term disability insurance is provided at no cost to employees. Short-term disability coverage begins 15 days after the illness or accident and continues for up to 90 days. This insurance will provide eligible employees with compensation equal to 60% of their salary. To make employees whole, Partners will pay employees the difference of 40%, so employees receive 100% compensation during this period. Information on the short-term disability policy is found on SharePoint. This benefit can run concurrent with DC Family Paid Leave.

### I. Long-term Disability Insurance

Long-term disability insurance is provided at no cost to employees. Long-term disability coverage begins 91 days after the illness or accident and continues for up to Social Security Normal Retirement Age. This insurance will provide eligible employees with compensation equal to 60% of their salary. Information on the long-term disability policy is found on SharePoint.

### J. Workers' Compensation

Work-related injuries, illnesses, or disabilities are covered through a Workers' Compensation insurance program for all employees. The entire cost of the insurance program is paid by Partners. Information on the Workers' Compensation policy is on SharePoint. Please be aware that there are waiting periods before wage replacement benefits go into effect.

### K. Employee Assistance Program (EAP)

Partners' EAP provides employees and members of their family and household access to personal support form everything from stress management and nutrition to handling of legal or financial issues. This benefit is 100% paid by Partners. The service offers qualified counselors to help

employees cope with personal problems they may be facing. Further details can be obtained through on SharePoint.

## L. Flex Spending and Dependent Care

Partners offers employees Flexible Spending Accounts (FSA) and a Dependent Care Account which allow employees to set aside pre-tax money to cover specific expenses, providing financial advantages and tax savings. Maximum contribution and rollover amounts are set annually by the IRS. Employees will need to enroll annually and complete the election form in PandaDoc.

### Flexible Spending Account (FSA)

FSA enables employees to allocate a portion of their salary before taxes to cover qualified out-of-pocket medical expenses such as copayments, deductibles, prescription medications, and medical supplies.

### Dependent Care Account

Dependent care accounts allows employees to set aside pre-tax dollars to cover qualified expenses such as childcare, day camps, preschool, and adult care services.

## M. SmartBenefits

Partners participates in SmartBenefits Commuter Benefits Program which allows employees to contribute pre-tax dollars to use on DC public transportation. Employees can use SmartBenefits to pay for transit and parking anywhere DC Metro's SmarTrip card is accepted, including at Metrorail parking lots, MARC, VRE and MTA Commuter Bus passes, as well as MetroAccess. For additional information on SmartBenefits check out: https://www.wmata.com/business/smartbenefits/For-Employees.cfm. To enroll or change contribution amounts employees must complete the form in PandaDoc. All changes receive by the 10th of the month, will go into effect the following month.

## N. IT & Communication Reimbursement

This policy applies to all Partners employees, contractors, and interns who normally work at the HO office in Washington, DC. All employees will receive a reimbursable payment of $24 for every pay period beginning January 15, 2021 through Paycom.

Approved contractors and interns may request reimbursement on their monthly invoice. Interns will be eligible for the reimbursement if stipulated in the intern agreement. Interns that do not have the reimbursement stipulated in the intern agreement may also be eligible upon written approval from the President & CEO.

This policy is at the discretion of the President & CEO with guidance from the ELT and may be terminated or modified from time to time.

## O. Professional Development Policy

Partners supports the professional development of its employees by providing a learning management system (LMS) and a professional development fund. Partners hosts a LMS through Humentum which offers access to eLearning catalog with 800+ courses in multiple languages on

topics ranging from Management, Leadership, Language Skills, Remote Working and more. Staff are encouraged to use the LMS to enroll for courses related to their professional development and to obtain certifications.

In addition to the LMS, eligible staff may request reimbursement from the Professional Development fund each calendar year for training, conferences, coursework, and other forms of capacity-building that require a paid fee. Annually, the ELT will confirm the amount of funding available to each employee for the calendar year. Funding is dependent on budget and availability of resources. Professional development will be considered on an individual basis, in consultation with the employee's supervisor and HR. There is a strong bias for short-term, practical training that bears on current or prospective responsibilities. Once a Professional Development program has been identified by the employee, they must complete the Professional Development Application Form in PandaDoc to request approval. Further details can be found in Annex K: Professional Development Policy.

### P. Employee Referral Awards

Partners encourages all employees to refer qualified job applicants for available job openings. All employees are eligible to receive employee referral awards. When making referrals, instruct the applicant to list the employee's name on their employment application as the referral source. If the referral is hired and completes three (3) months of service and pass their 90-day review and is still with Partners, the employee that gave the referral is eligible to receive an award of $75 for regular part-time hires and $150 for regular full-time hires.

### Q. Business Related Expenses

Partners reimburses costs incurred while traveling on Partners business. Further details can be found in Partners' Travel Policy.

## XI. State Specific Requirements

### A. New York

The following policies only apply to employees in New York.

#### Blood Donation Leave

Employees who work an average of at least 20 hours per week are eligible for up to three (3) hours of unpaid leave in any 12-month period for donating blood. Employees must provide advance notice of at least three (3) working days of their intention to avail themselves of this leave, except in emergency situations. Employees may use accrued paid time off for this purpose.

#### Bone Marrow Donation Leave

Employees who work 20 or more hours per week are entitled to up to 24 hours of unpaid leave for the purposes of donating bone marrow. Verification of donation and the length of necessary leave is

required. Reasonable notice of leave must be provided. Employees may use accrued paid time off for this purpose.

### HERO Act Infectious Disease Exposure Prevention Plan Addendum

Partners has created an Infectious Disease Exposure Prevention Plan (IDEPP), as required by the New York HERO Act, to help prevent the transmission of infectious diseases in the workplace. Employees may view the IDEPP on SharePoint. Partners will implement this plan when an airborne infectious agent or disease is designated by the New York Commissioner of Health as a highly contagious communicable disease that presents a serious risk of harm to the public health.

At this time, no such designation has been made, and this IDEPP is not currently in effect but is provided here to allow employees to become familiar with the IDEPP. In the event that such a highly contagious communicable disease designation is made by the New York Commissioner of Health, Partners will review the IDEPP, make any necessary changes to address the particular contagious communicable disease and distribute and implement the updated IDEPP as required by law.

### Reproductive Health Decision Making Discrimination

Under this provision Partners may not:

- Discriminate or take any retaliatory personnel action against employees with respect to compensation, terms, conditions, or privileges of employment because of, or on the basis of, the employee's or dependent's reproductive health decision making, including but not limited to a decision to use or access a particular drug, device, or medical service; or
- Require employees to sign a waiver or other document that purports to deny employees the right to make their own reproductive health care decisions, including use of a particular drug, device, or medical service.

Partners also may not access the employee's personal information regarding the employee's or the dependent's reproductive health decision making, including but not limited to the decision to use or access a particular drug, device, or medical service without the employee's prior informed affirmative written consent.

Employees may bring a civil action in any court of competent jurisdiction against Partners for any alleged violations of this policy. In any civil action alleging a violation of this policy, the court may: award damages, unless Partners proves a good faith basis to believe that its actions in violation of this policy were in compliance with the law.

Any act of retaliation for employees exercising any rights granted under this policy shall subject Partners to separate civil penalties. For the purposes of this policy, retaliation or retaliatory personnel action means discharging, suspending, demoting or otherwise penalizing employees for: making or threatening to make a complaint to Partners, co-worker or to a public body, that rights guaranteed under this policy have been violated; or providing information to or testifying before any public body conducting an investigation, hearing, or inquiry into any such violation. Employees with

issues or concerns regarding this policy or who feel they have been subjected to any alleged violation of this policy should contact HR.

### New York City Temporary Schedule Change

Employees who work 80 or more hours in New York City in a calendar year and have been employed by Partners for 120 or more days are eligible for two (2) temporary changes to their work schedules each calendar year for certain "personal events." Personal events includes the following:

- the need to care for a child under the age of 18 for whom the employee provides direct and ongoing care;
- the need to care for an individual ("care recipient") with a disability who is a family member or who resides in the caregiver's household for whom the employee provides direct and ongoing care to meet the needs of daily living;
- the need to attend a legal proceeding or hearing for public benefits to which the employee, a family member or the employee's minor child or care recipient is a party; or
- any other reason for which the employee may use leave under Paid Safe and Sick Leave law.

For purposes of this policy a "family member" includes: a child (biological, adopted, or foster child, legal ward); a grandchild; a spouse (current or former regardless of whether they reside together); a domestic partner (current or former regardless of whether they reside together); a parent; a grandparent; a child or parent of the employee's spouse or domestic partner; a sibling (including a half-, adopted or step-sibling); any other individual related by blood to the employee; and any individual whose close association with the employee is the equivalent of family.

### Temporary Schedule Change

A temporary schedule change may last up to one (1) business day on two (2) separate occasions or up to two (2) business days on one (1) occasion each calendar year. A business day is any 24-hour period during which the employee is required to work any amount of time.

A temporary change means an adjustment to the employee's usual schedule including in the hours, times, or locations the employee is expected to work. The change can include:

- using short-term unpaid leave;
- using paid time off; or
- working remotely

### Request for Schedule Change

Request for a temporary schedule change must be made in writing via email to HR as soon as practicable after the employee becomes aware of the need for the change. The request should include:

- the date of the temporary schedule change;
- that the change is due to a personal event; and
- proposed type of temporary schedule change

Partners will respond immediately to such requests. Assuming the employee has not exceeded the number of allowable requests and the request is for a qualifying reason, Partners will either approve the proposed type of temporary schedule change or provide leave without pay. Employees will not be required to use leave under New York City's Paid Safe and Sick Leave law for a temporary schedule change.

Partners will provide a written response to any written request for temporary schedule change within 14 days. The response will include:

- if the request was granted or denied;
- how the request was accommodated (if granted) or the reason for denial (if denied);
- number of requests the employee has made for temporary schedule changes; and
- how many days the employee has left in the year for temporary schedule changes.

Employees have the right to temporary schedule changes and may file a complaint for alleged violations of this policy and applicable law with the New York City Department of Consumer Affairs. Partners prohibits retaliation or the threat of retaliation against the employee for exercising or attempting to exercise any right provided in this policy and applicable law, or interference with any investigation, proceeding or hearing related to or arising out of employee's rights pursuant to this policy and applicable law.

## B. Pennsylvania

The following policies only apply to employees in Pennsylvania.

### Philadelphia Notice Regarding Unpaid Wages

Employees who work in Philadelphia may file a wage theft complaint or bring a civil action for unpaid wages pursuant to Philadelphia's Wage Theft Ordinance (Ordinance).

A signed wage theft complaint, in which the alleged unpaid wages are equal to or greater than the minimum threshold amount of $100 and equal to or less than the maximum threshold amount of $100,000, must be filed with the wage theft coordinator in the Mayor's Office of Benefits and Wage Compliance less than three (3) years from the date the alleged wage theft occurred.

Retaliation for exercising rights provided under the Ordinance, such as filing a complaint or bringing a civil action, is prohibited.

## XII. ACKNOWLEDGEMENT OF RECEIPT OF EMPLOYEE MANUAL

I, _____ have received the Employee Manual and I understand that it is my responsibility to read and comply with the policies contained in this handbook. I understand that the Employee Manual reflects the policies and procedures in effect this date which may be changed by Partners of the Americas, at any time and for any reason. This Employee Manual does not create any express or implied contractual rights. I further understand that I am employed on an "at-will" basis, meaning that I have a right to terminate my employment at any time for any reason, and the Company reserves the right to do the same.

This Manual and the policies and procedures contained herein supersede any and all prior practices, oral or written representations, or statements regarding the terms and conditions of my employment with Partners. By distributing this handbook, the company expressly revokes any and all previous policies and procedures that are inconsistent with those contained herein.

I understand that I am bound by the provisions of this Manual and that it is my responsibility to read the contents of the Manual. I agree to promptly read the Manual and to ask my supervisor or HR any questions that I may have about it.

I have received the Employee Manual, and I understand that it is my responsibility to read and comply with the policies contained in this handbook and any revisions made to it.

_____ _____

Employee's Signature Date

**Please sign this form and return it to the HR Department.**

## Annex A: Gender Identity Policy

Partners does not discriminate in any way based on sex, sexual orientation, gender identity, or gender expression. This policy is designed to create a safe and productive workplace environment for all employees. This policy sets forth guidelines to address the needs of transgender and gender non-conforming employees and clarifies how the law should be implemented in situations where questions may arise about how to protect the legal rights or safety of such employees. This policy does not anticipate every situation that might occur with respect to transgender or gender non-conforming employees, and the needs of each transgender or gender non-conforming employee must be assessed on a case-by-case basis. In all cases, the goal is to ensure the safety, comfort, and healthy development of transgender or gender non-conforming employees while maximizing the employee's workplace integration and minimizing stigmatization of the employee. Contact HR for more information on this policy.

It is the policy of Partners to treat all individuals with dignity and respect and to provide a workplace and environment that is free from discrimination. Partners recognizes that there can be differences between physical sex and gender identity and/or expression. Partners will at no time discriminate against people on the grounds of transvestism, transsexualism, intersex conditions, or any process of gender reassignment, whether it has begun or been completed. Where this policy refers to 'trans people', it has in mind people living with any of these identities. When it refers to 'gender identity', it covers both the fixed identity of people living in the gender of their birth and the more fluid identities of many trans people. Transphobic abuse, harassment, or bullying (name-calling/derogatory jokes, unacceptable or unwanted behavior, and intrusive questions) is a serious disciplinary offence and will not be tolerated at Partners. Any and all complaints of transphobic abuse or harassment will follow our guidelines under workplace bullying and harassment.

The purpose of this policy is to provide descriptions and guidance to address some of the common questions regarding gender identity in the workplace and appropriate behavior.

- *Sex versus Gender*: Sex (i.e., male or female) is assigned at birth based on a combination of a baby's biological characteristics, including chromosomes, hormones, and reproductive organs, and is originally documented on a person's birth certificate. The World Health Organization defines gender as the "socially constructed roles, behaviors, activities, and attributes that a given society considers appropriate for men and women." These characteristics are traditionally referred to as "masculine" or "feminine."
- *Transgender*: Transgender individuals are people with a gender identity that is different from the sex assigned to them at birth. Someone who was assigned the male sex at birth but who identifies as female is a transgender woman. Likewise, a person assigned the female sex at birth but who identifies as male is a transgender man. Some individuals who would fit this definition of transgender do not identify themselves as such, and identify simply as men and women, consistent with their gender identity. The guidance discussed in this policy applies whether or not a particular individual self-identifies as transgender.
- *Transition*: Some individuals will find it necessary to transition from living and working as one gender to another. Trans or transgender is an umbrella term referring to people

with diverse gender identities and expressions that differ from stereotypical gender norms. It includes but is not limited to people who identify as transgender, trans woman (male-to-female), trans man (female-to-male), transsexual, cross-dresser, gender non-conforming, gender variant or gender queer. These individuals may seek some form of medical treatment such as counseling, hormone therapy, electrolysis, and reassignment surgery. These treatments may be deemed medically necessary for many individuals, based on determinations of their medical providers. Some individuals, however, will not pursue some (or any) forms of medical treatment because of their age, medical condition, lack of funds, other personal circumstances, or because they may not feel the treatment is necessary for their well-being. All individuals should be aware that not all transgender individuals will follow the same pattern, but they all are entitled to the same consideration as they undertake the transition steps deemed appropriate for them, and should all be treated with dignity and respect.

- *Gender identity*: It is each person's internal and individual experience of gender. It is their sense of being a woman, a man, both, neither, nor anywhere along the gender spectrum. A person's gender identity may be the same as or different from their birth-assigned sex. Gender identity is fundamentally different from a person's sexual orientation.
- *Gender Expression*: It is how a person publicly presents, represents, and expresses their gender. This can include behavior and outward appearance such as dress, hair, make-up, mannerisms, speech patterns, body language, voice and other characteristics and behaviors. A person's chosen name and pronoun are also common ways of expressing gender.

### All Employee or Non-Employee Transition

There are several issues that commonly generate questions from individuals who are working with a transitioning employees or non-employees (such as interns, program participants, volunteers, consultants, and independent contractors). To ensuring that transitioning employees and non-employees are treated with dignity and respect, Partners offer the following guidance on those issues.

### Confidentiality and Privacy

An individual's transition should be treated with as much sensitivity and confidentiality as any other individual's significant life experiences, such as hospitalization or family difficulties. Employees and non-employees in transition often want as little publicity about their transition as possible. They may be concerned about safety, employment, or other issues if other people or employers become aware that he or she has transitioned. Moreover, medical information received about individual employees is protected under the Privacy Act (5 U.S.C. 552a).

Supervisors should be sensitive to these special concerns and advise employees not to spread information concerning any employee or non-employee who is in transition: gossip and rumor-spreading about gender identity are inappropriate. Other individuals may be given only general information about the employee or non-employee transition. Personal information about the individual in transition should be considered confidential and should not be released without the individual's prior agreement. Questions regarding the individual in transition should be referred to

the individual himself or herself. It should be noted, however, that questions regarding a coworker's medical process, body, and sexuality are inappropriate. Issues that may arise should be discussed as soon as possible confidentially between the individual and their supervisor or other member of Executive Leadership Executive Leadership.

### Dress and Appearance

Once an individual has informed Partners that he or she is transitioning, Partners dress codes should be applied to individual transitioning to a different gender in the same way that they are applied to others of that gender. Dress codes should not be used to prevent a transgender individual from living full-time in the role consistent with his or her gender identity.

### Names and Pronouns

Supervisors, coworkers, and others should use the name and pronouns appropriate to the gender the employee is now presenting. Refer to each person by the name, and the gender-specific pronoun, by which the person wants to be called. If you do not know the proper term, please ask in a tactful way. Further, supervisors, coworkers, and others should take care to use the correct name and pronouns in records and in communications with others regarding the individual in transition. Continued intentional misuse of the individual's new name and pronouns, and reference to the individual's former gender by supervisors, coworkers, and others is contrary to the goal of treating transitioning employees with dignity and respect. It creates an unwelcoming work environment and may be considered harassment.

### Restrooms, Lodging and Other Related Facilities

For transitioning individuals, this means that, once he or she has begun acting and/or working in the gender that reflects his or her gender identity, Partners should allow access to restrooms, lodging and other facilities consistent with his or her gender identity. Partners will protect the transitioning individual's rights and privacy and therefore may not inform others of the individual's sexual orientation, gender identity or gender expression. Under no circumstances may anyone require an individual to use facilities or lodging that are inconsistent with the individual's gender identity.

### Assignments and Duties

For a transitioning individual, once he or she has begun acting and/or working full-time in the gender that reflects his or her gender identity, Partners should treat the individual as that gender for purposes of all job assignments and duties.

### Employee Transitions

Transitioning individual should not be required to have undergone or to provide proof of any particular medical procedure (including gender reassignment surgery) to be eligible for gender-specific assignments or duties.

*Recordkeeping*: For employees, the employee's personnel folder, and other employee records (payroll, benefits documents, and so on) should be changed to show the employee's new name and gender once the employee has begun working full-time in the gender role consistent with the employee's gender identity. The employee should submit a request to Partners HR to update his or

her personnel information and records. Employees will also be permitted to change any identity documentation, such as but not limited to email account, business cards, etc.

*Sick and Medical Leave*: Employees receiving treatment as part of their transition may use sick leave in accordance with Partners sick leave policy. Employees who are qualified under the Family Medical Leave Act may also be entitled to take medical leave for transition-related needs for themselves or for their families.

*Insurance Benefits:* Employees in transition who already have insurance benefits must be allowed to continue their participation, and new employees must be allowed to elect participation, based on their updated names and genders. If the employees in transition are legally married at the time of the transition, the transition does not affect the validity of that marriage, and spousal coverage should be extended or continued even though the employee in transition has a new name and gender.

### Summary

Partners intends to provide for its employees, and non-employees (such as interns, program participants, volunteers, consultants, and independent contractors), an environment that treats all of its employees and non-employees with dignity and respect and to provide a workplace environment that is free from discrimination including sex and/or gender identity. Our approach is to be as inclusive and accommodating for all individuals, regardless of identities. This policy applies to all individuals when interacting with members of the Partners staff or network.

## Annex B: Sexual Exploitation and Abuse Policy

### Purpose

This policy applies to all Partners Affiliates interacting with Participants, as defined below under 4. Definitions. Partners of the Americas (Partners) has a zero-tolerance policy toward sexual harassment, exploitation, and abuse. This policy is intended to protect participants of Partners programs, and it applies to Partners operations both in the U.S. and abroad. This policy is meant to provide a general guidance and to comply with U.S. Government regulations, donor requirements, and all other applicable local laws.

While Partners does not tolerate harassment of any nature, there is a distinction between sexual exploitation and abuse (SEA) and sexual harassment. SEA occurs when a position of power (such as being a staff member of an NGO) is used for sexual purposes against a beneficiary or vulnerable member of the community. Sexual harassment occurs when differences in power are abused among staff, to the extent that the harassers conduct or behavior interferes with an individual's work performance, is made a condition of employment, or creates an intimidating, hostile or offensive work environment. Please reference Partners' Sexual Harassment Policy for further questions.

No code or policy can anticipate every situation that may arise. Accordingly, this policy is intended to serve as a source of guiding principles. Partners reserves the right to make all decisions on a case-by-case basis.

### Goal

Partners is committed to providing a safe and nurturing working environment, free from sexual abuse, exploitation, and harassment for all program beneficiaries (hereafter referred to as "Participants") who participate in programs and/or events sponsored by the organization. Partners commits to supporting victims, improving safeguarding capacity, reporting, investigating, responding to, and preventing sexual harassment and sexual exploitation and abuse. Sexual exploitation and abuse[1] (SEA) of any sort – verbal or physical – is prohibited and will not be tolerated by Partners. Moreover, Partners will not tolerate acts of SEA by any employee, non-employee, members of the Board of Directors, members of a partner organizations with a contractual relationship to Partners, or members of the Partners network, including but not limited to consultants, volunteers, Chapters, and members (hereafter referred to as a "Partners Affiliate"). This policy is intended to provide guidelines and best practices for promoting and maintaining a safe and secure environment in all interactions with Participants while ensuring Partners Affiliates act responsibly to protect Participants. It further seeks to minimize the possibility of acts of SEA against Participants.

### Compliance

[1] Per the UN Secretary-General's Bulletin (ST/SGB/2003/13), sexual exploitation is defined as "any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to, profiting monetarily, socially or politically from the sexual exploitation of another." Sexual abuse is defined as "the actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions."

This policy applies to all groups, activities, and events sponsored by Partners, as well as groups using Partners' facilities who serve Participants. This policy also applies to all Partners Affiliates, defined as:

- All staff (full-time, part-time, international, and national), and those engaged on short-term contracts (e.g., consultants, facilitators, mentors, sub-contractors, researchers, etc.);
- Volunteers, board members, trustees; and
- Partner organizations who have a formal/contractual relationship with Partners.

### Order of Precedence

If any conflicts occur between this policy and donor requirement, the issue shall be resolved by giving precedence in the following order:

1. Requirements according to the donor (if the Partners Affiliate works on a U.S. Government-funded project)
2. Partners' SEA Prevention Policy

### Definitions

For the purposes of this policy, Partners defines the following terms:

1) **"Partners Affiliate"**: Any employee, non-employee, members of the Board of Directors, individuals of a partner organization with a contractual relationship to Partners, or members of the Partners network, including but not limited to consultants, volunteers, and Chapter members, implementing programs on behalf of Partners HQ.

2) **"Beneficiary" or "Beneficiaries"**: A person who receives assistance as part of humanitarian relief or development programs.

3) **"Bullying"**: Intentional and aggressive behavior occurring repeatedly against a victim where there is a real or perceived power imbalance, and where the victim feels vulnerable and powerless to defend himself or herself. The unwanted behavior is hurtful: it can be physical, including hitting, kicking, and the destruction of property; verbal, such as teasing, insults, and threats; or relational, through the spreading of rumors and exclusion from a group. The definition of bullying is not limited to overt harassment, but encompasses any repeated actions intended to cause distress physically or emotionally.

    i) **"Cyberbullying"**: the posting or sending of electronic messages, including pictures or videos, aimed at harassing, threatening, or targeting another person. A whole range of social platforms, including chat rooms, blogs, and instant messaging, are used in cyberbullying. Cyberbullying can cause profound harm as it leaves a permanent footprint in cyberspace and can quickly reach a wide audience. Bullying and cyberbullying feed into each other, forming a continuum of damaging behavior.

4) **"Child" or "Children"**: A child or children are defined as persons who have not attained 18 years of age, irrespective of local country definitions of when a child reaches adulthood.

5) **"Child Safeguarding"**: The set of policies, procedures, and practices employed to ensure that Partners is a child-safe organization. Child Safeguarding is making Partners safe for children. It involves our collective and individual responsibility and preventative actions to ensure that all children are protected from deliberate or unintentional acts that lead to the risk of or actual harm by Partners Affiliates who come into contact with children or impact them through our development interventions, humanitarian responses, and operations. This includes our direct program implementation, work through partners, and management of children's personal data. For more information, please reference Partners' Child Safeguarding Policy.

6) **"Complainant"**: The person reporting (or "making a complaint" about) SEA. This could be the victim or another person who becomes aware of the wrongdoing.

7) **"Complaint"**: The report of an incident of SEA.

8) **"Complaint's procedure"**: A framework that describes the course of action for receiving and processing allegations of SEA. This includes systems for processing complaints within an organization, as well as procedures for beneficiaries to bring complaints forward.

9) **"Economic exploitation"**: The deliberate misplacement, exploitation, or wrongful temporary or permanent use of belongings or money.

10) **"Emotional abuse or ill treatment"**: Constitutes injury to one's psychological capacity or emotional stability, caused by acts, threats of acts, or coercive tactics. Emotional abuse may include, but is not limited to: Humiliation, control, isolation, withholding of information, or any other deliberate activity that makes one feel diminished or embarrassed.

11) **"Exploitative relationship"**: A relationship that constitutes sexual exploitation (i.e., any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to: Profiting monetarily, socially, or politically from the sexual exploitation of another.)

12) **"Incident"**: Instances of sexual exploitation and abuse, violence, suicide, accident, or other trauma.

13) **"Participant or Participants"**: Partners program beneficiaries

14) **"Partner Organizations"**: Any organization that has a contractual relationship with Partners, including subcontractors and sub-awardees.

15) **"Physical abuse"**: Constitutes acts or failures to act resulting in injury (not necessarily visible), unnecessary or unjustified pain or suffering without causing injury, harm, or risk of harm to an individual's health or welfare, or death. Such acts may include, but are not limited to: Punching, beating, kicking, biting, shaking, throwing, stabbing, choking, or hitting (regardless of object used), or burning. These acts are considered abuse regardless of whether they were intended to hurt the individual.

16) **"Sexual exploitation"**: Any actual or attempted abuse of position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to: Profiting monetarily, socially, or politically from the sexual exploitation of another. Other types of exploitation associated with sexual exploitation include:
    i. **"Transactional sex"**: The exchange of money, employment, goods, or services for sex, including sexual favors other forms of humiliating, degrading, or exploitative behavior. This includes any exchange of assistance that is due to beneficiaries of assistance.
    ii. **"Solicitation of transactional sex"**: Requesting transactional sex.
    iii. **"Digital Exploitation":** Non-consensual digital, video or audio recording of nudity or sexual activity. Unauthorized sharing or distribution of digital, video or audio recording of nudity or sexual activity[2]

17) **"Sexual abuse"**: The actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions. Other types of abuse associated with sexual abuse include:
    i. **"Sexual abuse perpetrated by an adult"**: Any contact or activity of a sexual nature that occurs between a child and an adult. This includes any activity which is meant to arouse or gratify the sexual desires of the adult or child.
    ii. **"Sexual abuse perpetrated by another child or children"**: Any contact or activity of a sexual nature that occurs between a child or children and another child when there is no consent, when consent is not possible, or when one child has power over the other child. This includes any activity which is meant to arouse or gratify the sexual desires of any of the children.

18) **"Victim"**: The person who is sexually exploited or sexually abused. The term Victim is not meant to imply a lack of strength, resilience, or capacity to survive.

## Core Principles

Partners Affiliates will respond to Participants with respect, consideration, and equal treatment, regardless of sex, gender, race, religion, sexual orientation, culture, ability, or socio-economic status. Affiliates must conduct themselves in a professional manner as representatives of the organization, consistent with the standards for U.N. employees in Section 3 of the U.N. Secretary General's Bulletin-Special Measures for Protection from Sexual Exploitation and Sexual Abuse (ST/SGB/2003/13). Thus, as a condition of their employment or engagement, Partners Affiliates must acknowledge and agree to the following core principles which are consistent with Section 3 of the U.N. Secretary-General's Bulletin (ST/SGB/2003/13):

1) Sexual exploitation and abuse by a Partners Affiliate constitute acts of gross misconduct and are therefore grounds for termination of employment and/or relationship;

2) Sexual activity with children (defined according to the Convention on the Rights of the Child as all persons under the age of 18) is prohibited regardless of the age of majority or age of consent locally. Mistaken belief in the age of a child is not a defense;

[2] https://www.elon.edu/u/ceie/violence-response/types-of-violence/sexual-violence/

3) Exchange of money, employment, goods, or services for sex, including sexual favors or other forms of humiliating, degrading, or exploitative behavior, is prohibited. This includes exchange of assistance that is due to beneficiaries;

4) Sexual relationships between Partners Affiliates and Participants are prohibited since they are based on inherently unequal power dynamics. Such relationships undermine the credibility and integrity of humanitarian aid work;

5) Where a Partners Affiliate develops concerns or suspicions regarding SEA by another Partners Affiliate, they must report such concerns via established organizational reporting mechanisms;

6) Partners Affiliates are obliged to create and maintain an environment that prevents SEA and promotes the implementation of this code of conduct. Managers at all levels have a particular responsibility to support and develop systems that maintain this environment.

### Screening and Requirements

To reduce the risk of SEA and protect Participants, Partners has established the following practices, which apply to all Partners Affiliates.

### Screening

Partners will screen individuals and entities who are expected to directly interact with Participants on Partners HQ programs as follows:

For Individuals:

- Receive signed SEA Prevention Code of Conduct;
- Run a Visual Compliance check (https://www4.visualcompliance.com/_logon.cfm); and
- If the individual is U.S. based, run a sex offender registry (https://www.nsopw.gov/).

If additional verification is required or Partners staff has concerns: reference checks by persons outside the organization who know the Partners Affiliate.

For Partner Organizations:

- Receive signed SEA Prevention Code of Conduct from entity's legal representative;
- Verify the entity has a policy and procedure in place for SEA Prevention. If not, provide guidance to the entity to establish procedures on SEA Prevention.

All Program Directors are responsible for ensuring that any Partners Affiliates on Partners HQ programs are screened prior to interacting with participants. Partners' HR department is responsible for verifying that Partners HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

### Onboarding Requirements

Prior to interacting with Participants, all Partners Affiliates must complete the following:

For Individuals:

- Fully read and review the SEA Prevention Policy;
- Sign Partners' SEA Prevention Code of Conduct; and
- Annually attend a training/course, all Partners Affiliates must choose one of the following options:
    1. Attend a Partners SEA Prevention training in-person or watch on-demand online. Trainings will be available at least once a year in-person led by Partners' HR staff and/or an external firm. Annual trainings will be recorded and available on-demand via Partners' External SharePoint. These trainings will be in English; however, the PowerPoint slides will be available in Spanish and Portuguese.
    2. Complete the online SEA Prevention course provided by Interaction.org annually and send copy of certification to their point of contact at Partners. This course is only available in English.
    3. For non-English speaking Partners Affiliates as an alternative to the above options, individuals may watch the SEA Prevention video found here, with subtitles in their appropriate language. If individuals select this option, they should send a confirmation email to their point of contact at Partners to confirm that they have watched the video, following up with any questions as applicable.
- Once training is completed, the individual will need to complete a confirmation of training which is available electronically or hard copy from the individuals point of contact at Partners.

For Partner Organizations:

- If able, sign Partners' SEA Prevention Code of Conduct; and
- Follow organizational policy and procedure on SEA Prevention

Partners' Program Directors are responsible for verifying that Partners Affiliates under their program(s) complete the above requirements. Partners' HR Department is responsible for verifying that Partners HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

### Education and Training Requirements

Partners understands the importance of providing adequate training and awareness to staff and Partners Affiliates to ensure a clear understanding and effective enforcement of the policy. Therefore, Partners commits to:

1. Disseminating and promoting the policy to all Partners Affiliates. Partners will make the policy available and accessible both in print and electronic formats.
2. Translating and creating versions of the policy in the primary languages (English, Spanish, Portuguese, French, Burmese, and other language as appropriate).
3. Providing regular briefings and annual trainings on the policy and incorporating trainings as part of its onboarding process for new hires.
4. Providing training to all Partners Affiliates who will teach, work with, counsel, supervise, chaperone, lead, or direct any Participant.
5. Ensuring Partners Affiliates attend at least one training on SEA Prevention annually.

6. Providing further training for Partners Affiliates with specific responsibilities under this policy. These groups would include anyone working directly with children, and Partners' Program Directors and Country Directors designated to receive and respond to SEA complaints.
7. Partners' Program Directors are required to:
    a. Ensure all Partners Affiliates review and sign the SEA Prevention Code of Conduct;
    b. Ensure all staff within their unit attend a SEA Prevention training annually; and
    c. Maintain individual confidential records that include who has attended the training and the date of attendance.

Partners will use the Excel database on SharePoint that HR and Program Directors have access to verify who has attended trainings and when, and whether those people are one-time Partners Affiliates or reoccurring. Partners will use PandaDoc to request that Partners Affiliates annually sign a SEA Prevention Training Confirmation form, attaching their training certificate as applicable. Partners Affiliates will sign the SEA Prevention Code of Conduct when they first start working with Partners. HR will conduct annual checks to ensure all Partners Affiliates have signed the Code of Conduct and attended a SEA Prevention training.

Partners will ensure Partners Affiliates have access to materials and resources on the External SharePoint that support understanding and implementation of this policy. Partners will also encourage and facilitate the sharing of best practices in implementing the SEA Prevention Policy.

### Reporting Procedures

Partners is committed to protecting any Participant affected by SEA and anyone who submits a report on behalf of a Participant affected by SEA. Therefore, the following procedures were developed to maintain a safe and confidential experience during the reporting process.

### Filing a Report

For Individuals:

- All reports of inappropriate behavior or policy violations with Participants will be taken seriously. If Partners Affiliates observe any inappropriate behavior or behavior that may violate any provision of this policy, they must immediately report their observations in one of the following ways, in order, as applicable:
    1. Contact the immediate supervisor, program, or country director of the alleged offender.
    2. Contact Partners' internal HR department at POAHR@partners.net.
    3. Contact Partners' external and confidential hotline, Foster Thomas, at bbulger@fosterthomas.com. *Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.*
- If the reporter does not receive a response from one of the above personnel within three business days, they should immediately submit a report via another method listed above.

For Partner Organizations:

- In accordance with Section Complaints about Partner Organizations, Partner Organizations with a contractual relationship to Partners upon receiving a SEA violation report, should follow their

organization policy. Notification of the alleged SEA violation should be sent to Partners' point of contact within three (3) business days.

Malicious reporting of SEA with the intention of harming another person's integrity or reputation amounts to misconduct and is subject to disciplinary action. This is distinct from reports made in good faith based on the judgment and information available at the time of the report, which may not be confirmed by an investigation.

### Response to a Report

Once Partners and/or Foster Thomas receives an alleged SEA report, Partners will consult with a 3rd party firm to determine if a formal investigation is necessary, and if so, the 3rd party firm will lead the investigation effort in coordination with Partners. Partners' HR department will notify the complainant if an investigation is deemed necessary by the 3rd party firm. Foster Thomas, Partners' HR department, and any supervisors that receive a report are expected to notify the 3rd party firm within three (3) business days. The 3rd party firm is expected to convene a meeting to review the report within three (3) business days of receipt. They will then review the circumstances of the incident and develop a response plan accordingly. If Partners and/or the 3rd party firm believe that there are any serious or imminent threats to the safety of the report's subject, appropriate action will be taken immediately to ensure the individuals safety. Partners' HR department will continuously update the complainant regarding the status of the investigation.

In the absence of a 3rd party firm, Partners will designate a minimum of two members of the Board of Directors to serve in the Partners Compliance Committee who will be available to investigate good faith disclosures or reports of any wrongdoing, including anonymously or confidentially. The Partners Compliance Committee will lead an investigation, with outside advisory consultation provided as needed. Based on the consultation and investigation, the Partners Compliance Committee will render a decision on how to respond and what actions, if any, to take. No prior experience in a legal or investigative field is necessary to serve on the committee. However, Partners will allocate funds to support training for the Compliance Committee.

### Confidentially

Partners understands due to the nature of incidents related to SEA; action must be taken immediately. SEA investigations will be carried out in a timely, fair, objective, and confidential manner. This includes the use of appropriate interviewing practice with reports and witnesses. All information and documented evidence will be held securely and in the strictest confidence. The name of the complainant will not be revealed to the person(s) potentially implicated in the allegation or to any other person unless the individual personally authorizes the disclosure of their identity.

Every effort will be made to maintain confidentiality throughout the complaints process. Information that identifies individuals involved in a complaint will be limited to essential personnel and will not be shared further without obtaining the informed consent of those involved, except if someone's life is at risk, a child is at risk, or as required by law in consultation with legal counsel and where safe to do so. Non-identifying information will be shared with authorized people which will include the 3rd party investigation firm, Partners' HR manager, Foster Thomas, and local law enforcement if necessary.

All SEA-related information must be kept confidential, identities must be protected to the extent possible, and personal information should be collected and shared only to a limited number of authorized people for the purpose of investigating.

Staff involved in the complaints process will be made aware of the importance of maintaining confidentiality and will be asked to sign a confidentiality agreement. Employees who breach confidentiality may be subject to disciplinary action up to and including termination of employment, and others who work with Partners may have their relationship with Partners terminated. In some cases, such breaches may constitute breaking the law.

### Retaliation against Complainants, Witnesses, or Victims

Partners prohibits any retaliation against anyone who legitimately exercises their rights under this policy or who participates/cooperates in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any person for making a valid and truthful complaint or report of a violation. Anyone who believes they are being discriminated against because of legitimately filing a complaint or truthfully participating in an investigation should immediately file a report in one of the following ways, in order, as applicable:

1. Contact the immediate supervisor, program, or country director of the alleged offender.
2. Contact Partners' internal HR department at POAHR@partners.net.
3. Contact Partners' external and confidential hotline, Foster Thomas, at bbulger@fosterthomas.com. Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.

Anyone who becomes aware of possible harassment or retaliation must immediately file a report so that the organization can investigate in a timely and confidential manner. Partners will take action against anyone, whether they are the subject of a complaint or not, who seeks or carries out retaliatory action against complainants, witnesses, or victims. Employees may be subject to disciplinary action, up to and including termination of employment. Others who work with Partners may have their relationship with Partners terminated.

### Complaints about Partner Organizations

As mentioned in Filing a Report, Partner Organizations should notify Partners' point of contact of any alleged SEA violation within three (3) business days. Where Partners receives a complaint about a partner organization, Partners will expect the partner to respond safely, quickly, and appropriately. Partners will assist the partner to ascertain its reporting obligations.

Where appropriate, Partners will work with the partner to address the issue through an appropriate independent investigation. If the outcome is that abuse has occurred, ongoing work with the partner cannot involve the individual(s) concerned. If there is reason to believe that an allegation of abuse has been dealt with inappropriately by a partner, then they risk withdrawal of funding or ending of the relationship.

### Communication

If there is an alleged SEA violation, Partners Affiliates are not permitted to send communications to employees, donors, participants, or others about the incident. Due to the sensitivity of the subject matter, all communications must be approved by Partners' HR. This especially includes, but is not limited to, communications with the general public or the media.

### Accountability of Management

Partners Management is committed to taking all appropriate corrective actions. Disciplinary, legal, or other applicable actions in response to any violation of the SEA Prevention Policy will be taken against any individual who has committed a SEA violation and/or anyone who knew of such a violation and failed to act or report. Partners Management will continuously evaluate findings of violations to the SEA Prevention Policy to identify and address gaps and/or weaknesses in applicable policies, procedures, and protocols.

## Annex C: Child Safeguarding Policy

### Introduction

This policy and related procedures describe Partners of the Americas' (Partners) commitment to child protection and safeguarding. The purpose of the policy is to ensure that Partners' programs and operations are safe for children. Partners aims to promote awareness and prevention to mitigate the risk of or actual harm that may come to children involved in Partners' programs and operations.

### Definitions

For the purposes of this policy, Partners defines the following terms:

19) **"Beneficiary" or "Beneficiaries"**: A person who receives assistance as part of humanitarian relief or development programs.
20) **"Bullying"**: Intentional and aggressive behavior occurring repeatedly against a victim where there is a real or perceived power imbalance, and where the victim feels vulnerable and powerless to defend himself or herself. The unwanted behavior is hurtful: it can be physical, including hitting, kicking, and the destruction of property; verbal, such as teasing, insults, and threats; or relational, through the spreading of rumors and exclusion from a group. The definition of bullying is not limited to overt harassment, but encompasses any repeated actions intended to cause distress physically or emotionally.
21) **"Cyberbullying":** the posting or sending of electronic messages, including pictures or videos, aimed at harassing, threatening, or targeting another person. A whole range of social platforms, including chat rooms, blogs, and instant messaging, are used in cyberbullying. Cyberbullying can cause profound harm as it leaves a permanent footprint in cyberspace and can quickly reach a wide audience. Bullying and cyberbullying feed into each other, forming a continuum of damaging behavior.
22) **"Child" or "Children"**: A child or children are defined as persons who have not attained 18 years of age, irrespective of local country definitions of when a child reaches adulthood.
23) **"Child abuse, exploitation, or neglect**": Constitutes any form of physical abuse; emotional ill-treatment; sexual abuse; neglect or insufficient supervision; trafficking; or commercial, transactional, labor, or other exploitation resulting in actual or potential harm to the child's health, well-being, survival, development, or dignity. It includes, but is not limited to: Any act or failure to act which results in death, serious physical, or emotional harm to a child, or an act or failure to act which presents an imminent risk of serious harm to a child. The main categories of Child Abuse are Physical Abuse, Emotional Abuse, Neglect, Sexual Exploitation & Abuse, and Exploitation.
    i) **"Child physical abuse"**: Constitutes acts or failures to act resulting in injury (not necessarily visible), unnecessary or unjustified pain or suffering without causing injury, harm, or risk of harm to a child's health or welfare, or death. Such acts may include, but are not limited to: Punching, beating, kicking, biting, shaking, throwing, stabbing, choking, or hitting (regardless of object used), burning, female genital mutilation, torture, and other physical acts. These acts are considered abuse regardless of whether they were intended to hurt the child. Physical injury or suffering may include, but is not limited to: Bruises, marks, soft tissue swelling, hematomas, fractures, sprains, dislocation, burns, damage to organs, death, permanent disfigurement, and any other nontrivial injury.
    ii) **"Child emotional abuse or ill treatment"**: Harm to a child's emotional, intellectual, mental, or psychological development caused by acts, threats of acts, or coercive tactics.

This may occur as an isolated event or on an ongoing basis. Emotional abuse includes, but is not limited to: Any humiliating or degrading treatment (e.g., bad name calling, threats, yelling/screaming/cursing at, teasing, constant criticism, belittling, persistent shaming, etc.), control, withholding of information on their rights, failure to meet a child's emotional needs, and rejecting, ignoring, terrorizing, isolating, confining a child, or any other deliberate activity that makes the child feel diminished or embarrassed.

iii) **"Child neglect"**: Constitutes failure to provide for a child's basic needs during activities that are responsible for the care of a child in the absence of the child's parent or guardian and failure to meet a child's basic needs either deliberately or through negligence. Neglect includes, but is not limited to: Failing to provide adequate food, sufficient or seasonally-appropriate clothing and/or shelter; failing to prevent harm; failing to ensure adequate supervision; failing to ensure access to appropriate medical care or treatment or providing inappropriate medical treatment (e.g., administering medication when not authorized); or failing to provide a safe physical environment (e.g., exposure to violence, unsafe programming location, unsafe sleeping practices, releasing a child to an unauthorized adult, access to weapons or harmful objects, failing to child-proof a space that children will occupy, etc.).

iv) **"Child Sexual Exploitation & Abuse"**: All forms of sexual violence and coercion, sexual solicitation, manipulation, or trickery including incest, fondling a child's genitals, penetration, sodomy, early and forced marriage, rape, involvement in or exposure to indecent images/video (aka pornography), sexual slavery/trafficking, and statutory rape. Sexual abuse may include, but is not limited to: Indecent touching or exposure, explicit sexual language towards or about a child, and grooming (see definition below). Sexual abuse does not always involve touching. Sexual Exploitation is any actual or attempted abuse of a position of vulnerability, differential power, or trust for sexual purposes including, but not limited to: Profiting monetarily, socially, or politically from the sexual exploitation of another. Be aware that technology is a tool sometimes used to sexually exploit a child.

v) **"Child Sexual Abuse":** The actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions. Other types of abuse associated with sexual abuse include:

   iii. **"Sexual abuse perpetrated by an adult"**: Any contact or activity of a sexual nature that occurs between a child and an adult. This includes any activity which is meant to arouse or gratify the sexual desires of the adult or child.

   iv. **"Sexual abuse perpetrated by another child or children"**: Any contact or activity of a sexual nature that occurs between a child or children and another child when there is no consent, when consent is not possible, or when one child has power over the other child. This includes any activity which is meant to arouse or gratify the sexual desires of any of the children.

vi) **"Child Exploitation"**: Constitutes the abuse of a child where some form of remuneration is involved or whereby the perpetrators benefit in some manner. Exploitation represents a form of coercion and violence that is detrimental to the child's physical or mental health, development, education, or well-being. The actual or attempted abuse of a position of

vulnerability, power differential, or trust for the benefit of the individual leveraging their position, power, privilege, or wealth (through enticement, manipulation, coercion, or trickery) to engage a child in labor, domestic servitude, forced criminality, soldiering, or organ harvesting. Typically, the person(s) exploiting a child does so to profit monetarily, socially, or politically. It can happen to one or a group of children in the community of origin, outside of the community, or internationally. The exploitation of a child may include, but is not limited to:

(a) Domestic servitude (e.g., cleaning, childcare, cooking, etc.);
(b) Forced labor (commonly in factories or agriculture);
(c) Forced criminal activities such as pickpocketing, begging, transporting drugs, manufacturing drugs, selling pirated merchandise;
(d) Used for benefit fraud;
(e) Forced to become a child soldier or join a gang.

vii) **"Transactional sex"**: The exchange of money, employment, goods, or services for sex, including sexual favors other forms of humiliating, degrading, or exploitative behavior. This includes any exchange of assistance that is due to beneficiaries of assistance.

viii) **"Solicitation of transactional sex"**: Requesting transactional sex.

ix) **"Grooming"**: Is the process in which an adult builds a relationship with a child or the child's caretaker to gain the child's or the caretaker's trust for the purposes of sexually abusing and/or exploiting the child. Grooming typically occurs in phases, and it can happen online or face to face, by a stranger or by someone the child or caretaker knows. Since it is a gradual process, it can sometimes be difficult to detect. Here are a few indicators an adult may be grooming a child or his/her caretaker:

(a) Favoring the child over others;
(b) Providing the child with rewards or privileges;
(c) Isolating the child from others;
(d) Expressing interest in a child who is particularly vulnerable or in need of support (e.g., previous abuse of the child by another);
(e) Befriending the parents or caretakers who are responsible to protect the child;
(f) Providing the child with alcohol or drugs;
(g) Building intimacy (i.e., having inside jokes or telling the child that nobody understands him/her like the groomer does);
(h) Threatening, blackmailing, intimidating, or scaring a child by saying the groomer will do something to the child's family or friends.

5) **"Child Data"**: Paper or electronic information containing Personally Identifiable Information (PII) collected for programmatic or operational purposes. PII is considered confidential and includes sensitive or protected categories including but not limited to health information.

6) **"Child Protection"**: The goal of child protection is making the world safe for children. Child Protection responses are macro-level in scale and involve holistic approaches to meet the social and legal protection needs of children and their families within vulnerable communities.

7) **"Child Safeguarding"**: The set of policies, procedures, and practices employed to ensure that Partners is a child-safe organization. Child Safeguarding is making Partners safe for children. It involves our collective and individual responsibility and preventative actions to ensure that all children are protected

from deliberate or unintentional acts that lead to the risk of or actual harm by Partners Affiliates who come into contact with children or impact them through our development interventions, humanitarian responses, and operations. This includes our direct program implementation, work through partners, and management of children's personal data.

8) **"Gender Responsive Safeguarding"**: is a safeguarding approach that takes full account of gender in considering the specific safeguarding needs of girls, boys, and other gender identities; and integrates safeguarding measures that address protection risks for children (girls, boys, and other gender identities) that stem from issues relating to gender bias and discrimination.
9) **"Child Welfare"**: Child Welfare is making the community safe for children. It includes claims of child abuse that happen external to Partners and/or that are required by law or local norms to be reported to local authorities.
10) **"Complainant"**: The person reporting (or "making a complaint" about) a violation of the Child Safeguarding Policy. This could be the victim or another person who becomes aware of the wrongdoing.
11) **"Complaint"**: The report of a violation against the Child Safeguarding Policy.
12) **"Complaints process"**: A framework that describes the course of action for receiving and processing allegations of a violation of the Child Safeguarding Policy. This includes systems for processing complaints within an organization, as well as procedures for beneficiaries to bring complaints forward.
13) **"Economic exploitation"**: The deliberate misplacement, exploitation, or wrongful temporary or permanent use of belongings or money.
14) **"Exploitative relationship"**: A relationship that constitutes sexual exploitation (i.e., any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to: Profiting monetarily, socially, or politically from the sexual exploitation of another.
15) **"Incident"**: Instances of sexual exploitation and abuse, violence, suicide, accident, or other trauma.
16) **"Partners Affiliate"**: Any employee, non-employee, or member of the Partners network, including, but not limited to all contractual relationships, consultants, volunteers, chapters, and members.
17) **"Partner Organizations"**: Any organization that has a contractual relationship with Partners, including subcontractors and subawardees.
18) **"Victim"**: The child who is sexually exploited, abused, or otherwise harmed. The term Victim is not meant to imply a lack of strength, resilience, or capacity to survive.

## Purpose

This policy applies to all Partners Affiliates interacting with children both in the U.S. and abroad. This policy and related procedures describe Partners' commitment to Child Safeguarding. Partners' current programs support activities with children, who are particularly vulnerable to abuse and exploitation. This is due to the inherent power differential that exists between aid organizations and impacted communities, which heightens the risk of abuse and exploitation. To protect all program beneficiaries against this power differential, this Child Safeguarding Policy, the Sexual Exploitation and Abuse Prevention Policy, and the Sexual Harassment Policy serve to transform Partners' values into behaviors to which all Partners Affiliates are expected to conform.

This policy is meant to provide a general guidance and to comply with U.S. Government regulations, donor requirements, and all other applicable local laws. No code or policy can anticipate every situation that may arise. Accordingly, this policy is intended to serve as a source of guiding principles. Any violations of this policy will be treated as a serious infraction and will result in disciplinary action, up to and including termination, and any other available legal remedy. Partners reserves the right to make all decisions on a case-by-case basis.

### Goal

Partners is committed to providing a safe, nurturing working environment and protecting children who participate in programs and/or events sponsored by the organization. Partners is committed to supporting victims, improving safeguarding capacity, and ensuring that children are safe when participating in Partners programs and/or events sponsored by the organization. Child Safeguarding is preventative actions to ensure that all children are protected from deliberate or unintentional acts that lead to the risk of or actual harm by Partners Affiliates who come into contact with children or impact them through our development interventions, humanitarian responses, and operations. Moreover, Partners will not tolerate any violations of this Child Safeguarding policy and confirms commitment to report, investigate, respond to any alleged policy violations. Partners takes a zero-tolerance approach to child exploitation and/or abuse by any Partners Affiliates. This policy is intended to provide guidelines and best practices for promoting and maintaining a safe and secure environment in all interactions with children while ensuring Partners Affiliates act responsibly to protect children.

### Compliance

This policy applies to all groups, activities, and events sponsored by Partners, as well as groups using Partners' facilities who serve children. This policy also applies to all Partners Affiliates and organizations, defined as:

- All staff (full-time, part-time, international, and national), and those engaged on short-term contracts (e.g., consultants, facilitators, mentors, sub-contractors, researchers, etc.);
- Volunteers, board members, trustees; and
- Partner organizations who have a formal/contractual relationship with Partners.
    - Partners should verify that the entity has a policy and procedure in place for Child Safeguarding. If not, Partners will provide guidance to the entity to establish procedures on Child Safeguarding. If a partner elects to use its own policy, the partner policy must be of equal or higher standard for protecting and recognizing the rights of children, including following any donor requirements.

### Order of Precedence

If any conflicts occur between this policy and Donor requirement, the issue shall be resolved by giving precedence in the following order:

3. Requirements according to the Donor (if the Partners Affiliate works on a U.S. Government-funded project)
4. Partners' Child Safeguarding Policy

## Child Safeguarding Core Principles

Partners' capacity to achieve its vision and mission depends upon all Partners Affiliates. Therefore, all Partners Affiliates must uphold and promote the highest standards of ethical and professional conduct. Partners prohibits any act of child abuse, child exploitation, child neglect, economic exploitation, bullying and cyberbullying, or ill treatment, as defined under Definitions. The following core principles are to be followed by all Partners Affiliates:

A. All children under the age of 18 have equal rights to protection from all forms of violence, as declared in Article 19 of the United Nations Convention on the Rights of the Child. The human rights of children will be respected and applied to all, irrespective of age, sex, gender, gender identity, sexual orientation, nationality, ethnicity, color, race, language, religious or political beliefs, marital status, disability, physical or mental health, family, socio-economic or cultural background, class, or any other aspect of their background or identity. Inequality, exclusion, and discrimination will be challenged and will not be tolerated;
B. Ensure compliance with host country and local child welfare and protection legislation or international standards, whichever gives greater protection, and with U.S. law where applicable;
C. Prohibit all personnel from engaging in child abuse, exploitation, or neglect;
D. Consider Child Safeguarding in project planning and implementation to determine potential risks to children that are associated with project activities and operations and identify gaps and ways to address;
E. Apply measures to reduce the risk of child abuse, exploitation, or neglect, including, but not limited to, limiting unsupervised interactions with children; prohibiting exposure to pornography; and complying with applicable laws, regulations, or customs regarding the photographing, filming, or other image- generating activities of children;
F. Promote child-safe screening procedures for personnel, particularly personnel whose work brings them in direct contact with children;
G. Have a procedure for ensuring that personnel and others recognize child abuse, exploitation, or neglect; mandating that personnel and others report allegations; investigating and managing allegations; and taking appropriate action in response to such allegations, including, but not limited to, dismissal of personnel;
H. Train all Partners Affiliates to know how to report and who to contact when any concern arises, no matter how seemingly small or insignificant;
I. Respond to concerns including a mandate to investigate all credible allegations violations of this Child Safeguarding Policy. Partners Affiliates are required to cooperate with any subsequent investigation. Corrective measures, including any personnel or disciplinary action, will be taken to prevent the recurrence of such activity; and
J. Ensure all Partners Affiliates receive training and are made aware of the expectation in this policy to prevent, report, and respond to safeguarding concerns. Additionally, ensuring that all program beneficiaries are aware of the standards of behavior they can expect from Partners Affiliates and of how they can raise a concern or report an alleged violation.

## Child Safeguarding Code of Conduct

Partners Affiliates are required to comply with the following code of conduct when interacting with children:

A. Any individual under the age of 18 is a child and is "underage," regardless of the legal age of consent of the country in which the child lives and/or in which the offense occurs;
B. Partners Affiliates must not abuse or exploit a child or behave in any way that places a child at risk of harm;
C. Sexual activity with children (defined according to the Convention on the Rights of the Child as all persons under the age of 18) is prohibited regardless of the age of majority or age of consent locally. Mistaken belief in the age of a child is not a defense;
D. Partners Affiliates are prohibited from dating or becoming romantically involved with a child;
E. Partners Affiliates are prohibited from using language or behave towards a child or young person in a way that is inappropriate, offensive, abusive, sexually provocative, demeaning, or culturally inappropriate;
F. Partners Affiliates are prohibited from fondling, holding, kissing, hugging, or touching children in an inappropriate or culturally insensitive way;
G. Partners Affiliates are prohibited from acting in ways that shame, humiliate, belittle, or degrade children and young people, or otherwise perpetrate any form of emotional abuse;
H. Partners Affiliates are prohibited from doing things of a personal nature for children, with whom they are in contact in a work-related context (e.g., taking a child/young person to the toilet/bathroom; helping them get un/dressed);
I. Partners Affiliates are prohibited from sleeping in the same beds, sleeping bags, tents, hotel rooms, or other rooms with children unless the adult is an immediate family member of all children in the bed, sleeping bag, tent, hotel room, or other room. It is acceptable to have multiple adults sleep with all the children participating in one open space, such as a camp lodge. Furthermore, Partners Affiliates are prohibited from having a child/children with whom the employee is in contact in a work-related context (program beneficiaries) stay overnight at their home or any other personal residential location or accommodation;
J. Partners Affiliates are prohibited from discussing their own sexual activities, including dreams and fantasies, or discussing their use of sexually oriented or explicit materials, such as pornography, videos, or materials on or from the Internet, with children;
K. Partners Affiliates are prohibited from possessing, viewing, streaming, downloading from the Internet, etc. any sexually oriented materials (magazines, cards, videos, films, clothing, etc.) on organization property or in the presence of children except as expressly permitted as part of a pre-authorized educational program;
L. Partners Affiliates are prohibited from using computers, mobile phones, or video/digital cameras or other electronic devices, to access, view, create, download, or distribute child pornography, including abusive images of children or young people;
M. Partners Affiliates are prohibited from using computers, mobile phones, video and digital cameras, or other electronic devices or mediums to exploit, harass, or bully children;
N. Partners Affiliates are prohibited from dressing, undressing, bathing, or showering in the presence of children;

O. Partners Affiliates are prohibited from discriminating against, showing differential or preferential to, or favoring particular children;
P. Partners Affiliates are prohibited from using physical punishment in any way for behavior management of children. No form of physical discipline is acceptable. This prohibition includes spanking, slapping, pinching, hitting, or any other physical force. Physical force may only be used to stop a behavior that may cause immediate harm to the individual or to a child or others;
Q. Partners Affiliates are prohibited from the use, possession, distribution, or being under the influence of alcohol, illegal drugs, or the misuse of legal drugs while participating in or assisting with programs or activities specifically for children;
R. Every program for children must have established ratios of 2 adults per 1-20 children. Compliance with the established ratio is required at all times, including activities that occur off the organization's premises;
S. When boys, girls and other gender identities are participating, male, female and other gender identities adults must be present;
T. One-to-one counseling/meetings with children will be done in an open or public or other place where private conversations are possible but occur in full view of others or with another adult present;
U. When supervising or assisting private activities, such as dressing or showering children, Partners Affiliates will remain in an area observable by other adults or work in pairs;
V. Parents or guardians must complete written permission forms before Partners Affiliates transport children for a company sponsored activity or for any purpose; and
W. Implement a safeguarding approach that recognizes and responds to the specific safeguarding risks and needs of differing gender and other identities including take appropriate measures to address gender bias and other forms of discrimination and violence which may arise as a result of this bias. All approaches should take full account of gender in considering the specific safeguarding needs of girls, boys, and other gender identities to promote equality, equity, and ultimately increase safety and protection.

### Screening and Requirements

To ensure Child Safeguarding, Partners has established the following practices, which apply to all Partners Affiliates.

### Safe Recruitment and Screening

In addition to Partners' standard recruitment processes, the following child safeguarding measures will be applied as part of the safe recruitment process. Partners will screen individuals and entities who are expected to directly interact with children on Partners HQ programs as follows:

For Individuals:

- Receive a signed Child Safeguarding Code of Conduct;
- Run a Visual Compliance check (https://www4.visualcompliance.com/_logon.cfm); and
- If the individual is U.S. based, run a sex offender registry (https://www.nsopw.gov/).

If additional verification is required or Partners staff has concerns: reference checks by persons outside the organization who know the Partners Affiliate. Please see sample reference check form.

For Partner Organizations:

- Receive signed Child Safeguarding Code of Conduct from entity's legal representative;
- All agreements with Partners Organizations must include the requirements of this policy if the Partners Organization will be interacting with children.

All Program Directors are responsible for ensuring that any Partners Affiliates on Partners HQ programs are screened prior to interacting with children. Partners' HR department is responsible for verifying that Partners HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

### Onboarding Requirements

Prior to interacting with children, all Partners Affiliates must complete the following:

For Individuals:

- Fully read and review the Child Safeguarding Policy;
- Sign Partners' Child Safeguarding Code of Conduct; and
- Annually attend a training/course, all Partners Affiliates must choose one of the following options:
    1. Attend a Partners Child Safeguarding training in-person or watch on-demand online. Trainings will be available at least once a year in-person led by Partners' HR staff and/or an external firm. Training will include a review of the Child Safeguarding Policy, guidance on promoting a culture where children's rights are observed, how to identify potential harm to children, and how to report allegations and suspicions of abuse. Annual trainings will be recorded and available on-demand via Partners' External SharePoint. These trainings will be in English; however, the PowerPoint slides will be available in Spanish and Portuguese.
    2. Complete the online Child Safeguarding training provided at no cost by UNICEF annually and send copy of certification to their point of contact at Partners. This course is available in English, Spanish, French, and Arabic.

Once training is completed, the individual will need to complete a confirmation of training which is available electronically or hard copy from the individuals point of contact at Partners.

For Partner Organizations:

- If able, sign Partners' Child Safeguarding Code of Conduct; and
- Follow internal organizational policy and procedure on Child Safeguarding

Partners' Program Directors are responsible for verifying that Partners Affiliates under their program(s) complete the above requirements. Partners' HR Department is responsible for verifying that Partners HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

### Education and Training Requirements

Partners understands the importance of providing adequate training and awareness to staff and Partners Affiliates to ensure a clear understanding and effective enforcement of the policy. Therefore, Partners commits to:

8. Disseminating and promoting the policy to all Partners Affiliates and program beneficiaries. Partners will make the policy available and accessible both in print and electronic formats.
9. Translating and creating versions of the policy in the primary languages within the Western Hemisphere (English, Spanish, Portuguese, and French), and other languages as appropriate.
10. Providing regular briefings and annual trainings on the policy and incorporate trainings as part of its onboarding process for new hires.
11. Providing training to all Partners Affiliates who may teach, work with, counsel, supervise, chaperone, lead, or direct any child.
12. Ensuring Partners Affiliates who may work with children attend at least one training on Child Safeguarding every year.
13. Providing further training for Partners Affiliates with specific responsibilities under this policy. These groups would include anyone working directly with children, and Partners' Program Directors and Country Directors designated to receive and respond to allegations of possible violations of the Child Safeguarding Policy.
14. Partners' Program Directors are required to:
    a. Ensure all Partners Affiliates review and sign the Child Safeguarding Policy and Code of Conduct;
    b. Ensure all staff within their unit attend a Child Safeguarding training annually; and
    c. Maintain individual confidential records that include who has attended the training and the date of attendance.

Partners will ensure Partners Affiliates have access to materials and resources that support understanding and implementation of this policy. Partners will also encourage and facilitate the sharing of best practices in implementing the Child Safeguarding Policy.

### Reporting Procedures

Partners is committed to protecting any victim and anyone who submits a report on behalf of a child. Therefore, the following procedures were developed to maintain a safe and confidential experience during the reporting process.

### Filing a Report

For Individuals:

- All reports of inappropriate behavior or policy violations with children will be taken seriously. If Partners Affiliates observe any inappropriate behavior or behavior that may violate any provision of this policy, they must immediately contact the immediate supervisor, program, or country director of the alleged offender.
- If the reporter believes that there is a conflict with this reporting mechanism or does not receive a response within three business days, they should immediately submit a report via the first method listed below, followed by the second if there is no response.
    - Contact Partners' internal HR department at POAHR@partners.net.

- Contact Partners' external and confidential hotline, Foster Thomas, at bbulger@fosterthomas.com. *Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.*

For Partner Organizations:

- In accordance with Section Complaints about Partner Organizations, Partner Organizations with a contractual relationship to Partners upon receiving a violation report, should follow their organization policy. Notification of the alleged Child Safeguarding violation should be sent to Partners' point of contact within three (3) business days.

Malicious reporting of violations with the intention of harming another person's integrity or reputation amounts to misconduct and is subject to disciplinary action. This is distinct from reports made in good faith based on the judgment and information available at the time of the report, which may not be confirmed by an investigation.

### Response to a Report

Once Partners and/or Foster Thomas receives a report of an alleged violation of this policy, Partners will determine if a formal investigation is necessary with a 3rd party firm, and if so, the 3rd party firm will lead the investigation effort in coordination with Partners. Partners' HR department will notify the complainant if an investigation is deemed necessary by the 3rd party firm. Foster Thomas, Partners' HR department, and any supervisors that receive a report are expected to notify the 3rd party firm within three (3) business days. The 3rd party firm is expected to convene a meeting to review the report within three (3) business days of receipt. They will then review the circumstances of the incident and develop a response plan accordingly. If Partners and/or the 3rd party firm believe that there are any serious or imminent threats to the safety of the report's subject, appropriate action will be taken immediately to ensure the individuals safety. Partners' HR department will continuously update the complainant regarding the status of the investigation.

In the absence of a 3rd party firm, Partners will designate a minimum of one member of the Board of Directors to serve in the Partners Compliance Committee who will be available to investigate good faith disclosures or reports of any wrongdoing, including anonymously or confidentially. The Partners Compliance Committee will lead an investigation, with outside advisory consultation provided as needed. Based on the consultation and investigation, the Partners Compliance Committee will render a decision on how to respond and what actions, if any, to take. No prior experience in a legal or investigative field is necessary to serve on the committee. However, if necessary, Partners will allocate funds to support training for the Compliance Committee.

### Child Data and Cybersecurity

All Partners programs and activities that involve children will follow child data security and cybersecurity protocols to protect sensitive data. This includes password-protecting and encrypting sensitive files through Adobe before they are shared or stored on digital platforms. Staff that are not supervisors, and country or program directors will have limited and restricted access to sensitive data. Partners will additionally prioritize the safety and security of children participating in programs by designing tools and strategies to protect personally identifiable information (PII). For instance, Partners will redact PII in all public reports and use pseudonyms or other codes in place of full names for children.

### Confidentially

Furthermore, Partners will ensure that all complaints or allegations can be made anonymously. Every effort will be made to maintain confidentiality throughout the complaints process. Information that identifies individuals involved in a complaint will be limited to essential personnel and will not be shared further without obtaining the informed consent of those involved, except if someone's life is at risk, a child is at risk, or as required by law in consultation with legal counsel and where safe to do so. Non-identifying information will be shared with designated focal points as per reporting requirements.

All Child Safeguarding related information must be kept confidential, identities must be protected, and the personal information on survivors should be collected and shared only to a limited number of authorized people for the purpose of conducting an investigation. Informed consent of the person concerned will be requested prior to an investigation.

Staff involved in the complaints process will be made aware of the importance of maintaining confidentiality and will be asked to sign a confidentiality agreement. Employees who breach confidentiality may be subject to disciplinary action up to and including termination of employment, and others who work with Partners may have their relationship with Partners terminated. In some cases, such breaches may constitute breaking the law.

### Retaliation against Complainants, Witnesses, or Victims

Partners prohibits any retaliation against anyone who legitimately exercises their rights under this policy or who participates/cooperates in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any person for making a valid and truthful complaint or report of a violation. Anyone who believes they are being discriminated against because of legitimately filing a complaint or truthfully participating in an investigation should immediately file a report in the same manner as defined in section 9.1 above.

Anyone who becomes aware of possible harassment or retaliation must immediately file a report so that the organization can investigate in a timely and confidential manner. Partners will take action against anyone, whether they are the subject of a complaint or not, who seeks or carries out retaliatory action against complainants, witnesses, or victims. Employees may be subject to disciplinary action, up to and including termination of employment. Others who work with Partners may have their relationship with Partners terminated.

### Complaints about Partner Organizations

As mentioned in Filing a Report, Partner Organizations should notify Partners' point of contact of any alleged violation of the Child Safeguarding policy within three (3) business days. Where Partners receives a complaint about a partner organization, Partners will expect the partner to respond safely, quickly, and appropriately. Partners will assist the partner to ascertain its reporting obligations.

Where appropriate, Partners will work with the partner to address the issue through an appropriate independent investigation. If the outcome is that abuse has occurred, ongoing work with the partner cannot involve the individual(s) concerned. If there is reason to believe that an allegation of abuse has been dealt with inappropriately by a partner, then they risk withdrawal of funding or ending the relationship.

### Communication

If there is an alleged violation, Partners Affiliates are not permitted to send communications to employees, donors, program participants, or others about the incident. Due to the sensitivity of the subject matter and protection of child data, all communications must be approved by Partners' HR. This especially includes, but is not limited to, communications with the general public or the media.

### Accountability of Management

Partners Management is committed to taking all appropriate corrective actions. Disciplinary, legal, or other applicable actions in response to any violation of the Child Safeguarding Policy will be taken against any individual who has committed a violation and/or anyone who knew of such a violation and failed to act or report. Partners Management will continuously evaluate findings of violations to the Child Safeguarding Policy to identify and address gaps and/or weaknesses in applicable policies, procedures, and protocols.

## Annex D: Trafficking in Persons Policy

### Purpose and Scope

This policy applies to all Partners of the Americas (Partners) Affiliates, as defined below under 4. Definitions. This policy provides an analytical framework to ensure that Partners programs comply with the Victims of Trafficking and Violence Protection Act of 2000, as amended (TVPA). TVPA provides tools to combat trafficking in persons (TIP) both worldwide and domestically. Partners maintains a zero-tolerance policy against TIP. Partners will apply this policy to ensure risks associated with TIP are minimized in all operations both in the U.S. and abroad. This policy is meant to provide a general guidance and to comply with U.S. Government regulations, donor requirements, and all other applicable local laws. This policy sets forth the expectations Partners as an organization has to ensure Partners Affiliates avoid engagement of, complicity in, or benefiting from human trafficking.

This procedure implements FAR 52.222-50, mandatory provision of M15 Standard Provisions for U.S. Nongovernmental Organizations, and the Depart of Labor's Management Procedures & Guidelines (MPG) for Cooperative Agreements which require implementers of U.S. Government contracts and cooperative agreements to administer policies and procedures to prevent human trafficking.

### Compliance and Responsibility

This policy also applies to all Partners Affiliates, defined as:

- All staff (full-time, part-time, international, and national), and those engaged on short-term contracts (e.g., consultants, facilitators, mentors, sub-contractors, researchers, etc.);
- Volunteers, board members, trustees; and
- Partner organizations who have a formal/contractual relationship with Partners .

Senior Directors at home office and the field office Chief of Party (COP)/Project Director (PD) are responsible for ensuring customization, implementation, and monitoring of the Trafficking in Persons (TIP) compliance plan. The COP/PD is also responsible for certifying the TIP compliance plan on an annual basis on the contract/agreement anniversary date.

### Order of Precedence

If any conflicts occur between this policy and donor requirement, the issue shall be resolved by giving precedence in the following order:

5. Requirements according to the donor (if the Partners Affiliate works on a U.S. Government-funded project)
6. Partners 's TIP Policy

### Definitions

For the purposes of this policy, Partners uses the TVPA and U.S. Department of State Office to Monitor and Combat Trafficking in Persons in defining the following terms:

1) **Partners Affiliate**: Any employee, non-employee, members of the Board of Directors, individuals of a partner organization with a contractual relationship to Partners, or members of the Partners network,

including but not limited to consultants, volunteers, and Chapter members, implementing programs on behalf of Partners HQ.

2) **Bonded Labor or Debt Bondage:** The status or condition of a debtor arising from a pledge by the debtor of his or her personal services or of those of a person under his or her control as a security for debt if the value of those services as reasonably assessed is not applied toward the liquidation of the debt or the length and nature of those services are not respectively limited and defined.

3) **Child or "Children:** A child or children are defined as persons who have not attained 18 years of age, irrespective of local country definitions of when a child reaches adulthood.

4) **Child Sex Trafficking:** Any child (under the age of 18) who has been recruited, enticed, harbored, transported, provided, obtained, advertised, maintained, patronized, or solicited to engage in a commercial sex act is a victim of human trafficking regardless of whether or not force, fraud, or coercion is used. The use of children in the commercial sex trade is prohibited both under U.S. law and by legislation in most countries around the world.

5) **Complainant**: The person reporting (or "making a complaint" about) TIP. This could be the victim or another person who becomes aware of the wrongdoing.

6) **Complaint**: The report of an incident of TIP.

7) **Complaint's procedure**: A framework that describes the course of action for receiving and processing allegations of TIP. This includes systems for processing complaints within an organization.

8) **Domestic Servitude:** A form of forced labor in which the trafficker requires a victim to perform work in a private residence. Domestic workplaces are often informal, connected to off duty living quarters, and not shared with other workers. Such an environment is conducive to exploitation because authorities cannot inspect private homes as easily as formal workplaces. The use of informal, or even verbal, employment contracts compounds vulnerability. Foreign domestic workers are particularly vulnerable to abuse due to factors such as language and cultural barriers and lack of community ties.

9) **Exploitation:** includes, at a minimum, the exploitation of the prostitution of others or other forms of sexual exploitation, forced labor or services, slavery, or practices similar to slavery, servitude, or the removal of organs. The recruitment, transportation, transfer, harboring, or receipt of someone under the age of 18 for the purpose of exploitation is considered "trafficking in persons".

10) **Forced Child Labor:** Although children may legally engage in certain forms of work, forms of slavery or slave-like practices – including the sale of children for exploitation, forced or compulsory child labor, and debt bondage and serfdom of children – continue to exist, despite legal prohibitions and widespread condemnation.

11) **Forced Labor:** Means knowingly providing or obtaining the labor or services of a person:

a) By threats of serious harm to, or physical restraint against, that person or another person;
b) By means of any scheme, plan, or pattern intended to cause the person to believe that, if the person did not perform such labor or services, that person or another person would suffer serious harm or physical restraint; or
c) By means of the abuse or threatened abuse of law or the legal process.

12) **Human trafficking**: Refers to recruiting, harboring, transporting, providing, or obtaining a person for compelled labor or commercial sex acts through the use of force, fraud, or coercion. Human trafficking can include, but does not require, movement. People may be considered trafficking victims regardless of whether they were born into a state of servitude, were transported to the exploitative situation, previously consented to work for a trafficker, or participated in a crime as a direct result of being trafficked. At the heart of this phenomenon is the traffickers' goal of exploiting and enslaving their victims and the coercive and deceptive practices they use.

13) **Incident**: Instances of TIP.

14) **Partner Organizations**: Any organization that has a contractual relationship with Partners, including subcontractors and sub-awardees.

15) **Severe forms of trafficking in persons:**
a) Sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or
b) The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery."

16) **Sex Trafficking:** When a person is required to engage in a commercial sex act as the result of force, threats of force, fraud, coercion, or any combination of such means, that person is a victim of human trafficking. This is true even if the victim previously consented to engage in commercial sex.

17) **Trafficking in persons:** Means the recruitment, transportation (including failure to provide return transportation), transfer, harboring, or receipt of persons, by means of the threat or use of force or other forms of coercion, of abduction, of fraud, of deception, of the abuse of power or of a position of vulnerability or of the giving or receiving of payments or benefits to achieve the consent of a person having control over another person, for the purpose of exploitation.

18) **Victim**: The person who is the subject of human trafficking. The term Victim is not meant to imply a lack of strength, resilience, or capacity to survive.

## Policy

It is the policy of Partners to comply with laws and regulations prohibiting trafficking in persons. Partners staff and Partners Affiliates must avoid and are prohibited from active engagement, complicity in or

benefiting from any practice that constitutes trafficking in persons. The consent of a victim of trafficking is irrelevant.

Furthermore, the Partners, its employees, subrecipients, subrecipients' employees, contractors and contractors' employees may not engage in or use labor recruiters, brokers or other agents who engage in:

i. severe forms of trafficking in persons;
ii. the procurement of a commercial sex act during the period of time that the grant, contract, or cooperative agreement is in effect;
iii. the use of forced labor in the performance of the grant, contract, or cooperative agreement; or acts that directly support or advance trafficking in persons.

Examples of conduct that would violate this policy because it contributes to trafficking in persons, include (but are not limited to):

- Procuring commercial sex acts;
- Using forced labor in the performance of any contract, cooperative agreement, or award;
- Destroying, concealing, confiscating, or otherwise denying any employee access to his or her identity or immigration documents, such as passports or drivers licenses;
- Soliciting a person for the purpose of employment, or offering employment, by means of materially false or fraudulent pretenses, representations, or promises regarding that employment;
- Using misleading or fraudulent recruiting practices during the recruitment of employees or offering of employment/contract positions; such as failing to disclose, in a format and language accessible to the potential candidate, basic information or making material misrepresentations during the recruitment of candidates regarding the key terms and conditions, including wages and fringe benefits, the location of work, the living conditions, housing and associated costs (if provided by Partners ), any significant cost to be charged to the candidate, and, if applicable, the hazardous nature of the work;
- Using recruiters that do not comply with local labor laws of the country in which the recruiting takes place;
- Charging applicants/candidates/employees recruitment fees or unreasonable placement fees;
- If required by law or contract, failing to provide return transportation, or failing to pay for the cost of return transportation upon the end of employment. Failing to provide return transportation or pay for return transportation costs to an employee from a country outside the United States to the country from which the employee was recruited upon the end of employment if requested by the employee, unless exempted from the requirement to provide or pay for such return transportation by the Federal department or agency providing or entering into the grant, contract, or cooperative agreement; or the employee is a victim of human trafficking seeking victim services or legal redress in the country of employment or a witness in a human trafficking enforcement action.;
- If required by law or contract, failing to provide or arrange housing that meets the host country housing and safety standards; or
- If required by law or contract, failing to provide an employment contract, recruitment agreement, or other required work document in writing.

Partners Affiliates who violate this policy will be subject to discipline, up to termination, and may be subject to criminal prosecution. Partner Organization may have their agreements terminated, be prohibited from working with Partners in the future and/or be subject to criminal prosecution.

### Counter-Trafficking in Persons Minimum Compliance Requirements

Counter-TIP Minimum Compliance Requirements apply to all projects, regardless of the TIP risk categorization for the country or the relevant project. Senior Directors at home office and the field office COP/PD are responsible for monitoring programs to verify compliance with the TIP Policy and the Minimum Compliance Requirements.

### Customize the TIP Compliance Plan

Senior Directors at home office and the field office COP/PD are responsible for ensuring customization, implementation, and monitoring of the Trafficking in Persons Compliance Plan.

The COP/PD is responsible for customizing the TIP compliance plan within three months of the project start date. Collect information regarding the trafficking-in-person's risk level for the project. The COP/PD should use the following resources:

- Read the latest State Department TIP Report.
    - In the State Department TIP Report, each country is categorized as Tier 1 (low risk), Tier 2 (high risk), or Tier 3 (extremely high risk). The TIP tiers measure the severity of human trafficking in that country and how well its government complies with the Trafficking Victim's Prevention Act. If the project operates in a Tier 2 or Tier 3 country, it is operating in a country with individuals who are at high risk for human trafficking and a government that is not adequately enforcing anti-trafficking laws.
- Identify the State Department TIP tier ranking for the country of operation (Low, Medium, or High).
    - Note, if the project is identified as a Tier 1 (low risk) country by the State Department TIP report but interacts with a high-risk sector, region, or population the risk level must be adjusted accordingly.
    - If the risk level for the project is Medium or High, include more robust awareness activities and detailed information on the risks in the project's environment.
    - If the risk level for the project is High, consult with the home office Senior Director regarding the need to engage a TIP expert to assist with customization of the compliance plan.
- Identify which economic sector(s), geographic region(s), or ethnic population(s) are at greatest risk, and which types of human trafficking are most prevalent and determine the extent to which the project will work with these sectors, regions, or populations.
- As needed, collect information on trafficking in persons from other credible sources, Partners within the country or using notes gathered during reconnaissance assignments in the country.

Once the plan has been approved by the COP/PD, the plan must be submitted to home office Senior Directors.

The COP/PD is responsible for certifying the TIP compliance plan on an annual basis, thereafter, on the contract/agreement anniversary date. Certify the compliance plan using the certification form on the final page of the TIP compliance plan. This certification acknowledges through due diligence efforts that:

- To the best of his/her knowledge and or belief, the project's employees, and agents, as well as its Partner Organizations, subcontractors, sub-awardees and their employees and agents are not engaged in prohibited activities; and
- If prohibited abuses are found, Partners and/or its subcontractor and sub-awardees will take the appropriate remedial and referral actions.

The annual certification must be sent to home office and a copy sent to the Compliance Department at compliance@partners.net. Annual certifications must be submitted within three months of a new award, and annually thereafter by January 31st.

### Awareness

To reduce the risk of TIP, Partners has established the following practices, which apply to all Partners Affiliates.

**For Individuals:**

- Fully read and review the TIP Policy; and
- Sign Partners 's Code of Conduct which includes TIP language

**For Partner Organizations:**

- Sign TIP Certification;
- Have in place and follow organizational policy and procedure on TIP; and
- For Partner Organizations with agreements over $550,000 USD, a copy of their Compliance Plan must be collected annually.

During site visits or visits to vendors, project staff should be cognizant of human trafficking warning signs, and report potential violations as per the "Reporting" section of the Compliance Plan for that Partner Organization.

Partners 's home office Program Directors are responsible for verifying that Partners Affiliates under their program(s) complete the above requirements. Partners 's HR Department is responsible for verifying that Partners HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

### Education and Training

Partners understands the importance of providing adequate training and awareness to staff and Partners Affiliates to ensure a clear understanding and effective enforcement of the policy. Therefore, Partners commits to:

1. Disseminating and promoting the policy to all Partners Affiliates. Partners will make the policy available and accessible both in print and electronic formats.

2. Translating and creating versions of the policy in the primary languages (English, Spanish, Portuguese, French, Burmese, and other language as appropriate).
3. Providing regular briefings and annual trainings on the policy and incorporating trainings as part of its onboarding process for new hires. The trainings are listed below:
    a. FAI.gov:https://www.fai.gov/sites/default/files/FAC_022-Combating_Trafficking_in_Persons/story.html or
    b. Polaris Project: https://polarisproject.org/human-trafficking-101/#gf_4
4. All Partners agreements with Partner Organizations will include a clause that requires the Partner Organization to adhere to the substance of this policy and to communicate this policy to their staff.
5. Members of Senior Leadership are required to report all suspected violations of this policy to the Human Resource (HR) Team.

Partners will ensure Partners Affiliates have access to materials and resources on the External SharePoint that support understanding and implementation of this policy. Partners will also encourage and facilitate the sharing of best practices in implementing the TIP Policy.

### Reporting Procedures

Partners is committed to protecting anyone affected by TIP and anyone who submits a report on behalf of a person affected by TIP. Therefore, the following procedures were developed to maintain a safe and confidential experience during the reporting process.

### Filing a Report

For Individuals:

- All reports of potential TIP violations will be taken seriously. If Partners Affiliates observe any inappropriate behavior or behavior that may violate any provision of this policy, they must immediately report their observations in one of the following ways, in order, as applicable:
    1. Contact supervisor.
    2. Contact Partners 's internal HR department at POAHR@partners.net.
    3. Contact Partners' external and confidential hotline, Foster Thomas, at bbulger@fosterthomas.com. *Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.*
    4. Hotline phone number of the Global Human Trafficking Hotline at 1-844-888-FREE and its email address at help@befree.org.
- If the reporter does not receive a response from one of the above personnel within three business days, they should immediately submit a report via another method listed above.

For Partner Organizations:

- In accordance with Section 6.5 Complaints about Partner Organizations, Partner Organizations with a contractual relationship to Partners upon receiving a TIP violation report, should follow their organization policy. Notification of the alleged TIP violation should be sent to Partners 's point of contact within three (3) business days.

Malicious reporting of TIP with the intention of harming another person's integrity or reputation amounts to misconduct and is subject to disciplinary action. This is distinct from reports made in good faith based on the judgment and information available at the time of the report, which may not be confirmed by an investigation.

### Response to a Report

Once Partners and/or Foster Thomas receives an alleged TIP report, Partners will open a formal investigation. The 3rd party firm will lead the investigation effort in coordination with Partners . If Partners and/or the 3rd party firm believe that there are any serious or imminent threats to the safety of the report's subject, appropriate action will be taken immediately to ensure the individuals safety. In the absence of a 3rd party firm, Partners will designate a minimum of two members of the Board of Directors to serve in the Partners Compliance Committee who will be available to investigate good faith disclosures or reports of any wrongdoing, including anonymously or confidentially.

The Partners Compliance Committee will lead an investigation, with outside advisory consultation provided as needed. Based on the consultation and investigation, the Partners Compliance Committee will render a decision on how to respond and what actions, to take.

If the violation is found to be true, Partners will also report the incident to the donor as needed and as required by the award. Partners HR will inform the Home Office Project Director and Vice President of Programs of the violation and the Program Team will be responsible for communicating the TIP violation to the donor as required.

### Confidentially

Partners understands due to the nature of incidents related to TIP; action must be taken immediately. TIP investigations will be conducted in a timely, fair, objective, and confidential manner. This includes the use of appropriate interviewing practice with reports and witnesses. All information and documented evidence will be held securely and in the strictest confidence. The name of the complainant will not be revealed to the person(s) potentially implicated in the allegation or to any other person unless the individual personally authorizes the disclosure of their identity.

Every effort will be made to maintain confidentiality throughout the complaints process. Information that identifies individuals involved in a complaint will be limited to essential personnel and will not be shared further without obtaining the informed consent of those involved, except if someone's life is at risk, a child is at risk, or as required by law in consultation with legal counsel and where safe to do so. Non-identifying information will be shared with authorized people which will include the 3rd party investigation firm, Partners 's HR manager, Foster Thomas, and local law enforcement if necessary.

All TIP-related information must be kept confidential, identities must be protected to the extent possible, and personal information should be collected and shared only to a limited number of authorized people for the purpose of investigating.

Staff involved in the complaints process will be made aware of the importance of maintaining confidentiality and will be asked to sign a confidentiality agreement. Employees who breach confidentiality may be subject to disciplinary action up to and including termination of employment, and others who work

with Partners may have their relationship with Partners terminated. In some cases, such breaches may constitute breaking the law.

### Retaliation against Complainants, Witnesses, or Victims

Partners prohibits any retaliation against anyone who legitimately exercises their rights under this policy or who participates/cooperates in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any person for making a valid and truthful complaint or report of a violation. Anyone who believes they are being discriminated against because of legitimately filing a complaint or truthfully participating in an investigation should immediately file a report in one of the following ways, in order, as applicable:

1. Contact the immediate supervisor, program, or country director of the alleged offender.
2. Contact Partners 's internal HR department at POAHR@partners.net.
3. Contact Partners' external and confidential hotline, Foster Thomas, at bbulger@fosterthomas.com. Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.

Anyone who becomes aware of possible harassment or retaliation must immediately file a report so that the organization can investigate in a timely and confidential manner. Partners will take action against anyone, whether they are the subject of a complaint or not, who seeks or conducts retaliatory action against complainants, witnesses, or victims. Employees may be subject to disciplinary action, up to and including termination of employment. Others who work with Partners may have their relationship with Partners terminated.

### Complaints about Partner Organizations

As mentioned in 6.1 Filing a Report, Partner Organizations should notify Partners 's point of contact of any alleged TIP violation within three (3) business days. Where Partners receives a complaint about a Partner Organization, Partners will expect the partner to respond safely, quickly, and appropriately. Partners will assist the partner to ascertain its reporting obligations.

Where appropriate, Partners will collaborate with the partner to address the issue through an appropriate independent investigation. If the outcome is that a violation has occurred, ongoing work with the partner cannot involve the individual(s) concerned. If there is reason to believe that an allegation of abuse has been dealt with inappropriately by a partner, then they risk withdrawal of funding or ending of the relationship.

### Policy Administration

Responsibility for ensuring this policy is monitored, enforced, and remains up-to-date and compliant rests with the Compliance Team. Partners 's Executive Management Leadership is committed to taking all appropriate corrective actions. Disciplinary, legal, or other applicable actions in response to any violation of the TIP Policy will be taken against any individual who has committed a TIP violation and/or anyone who knew of such a violation and failed to act or report. The Compliance Team will continuously identify and address gaps and/or weaknesses in applicable policies, procedures, and protocols.

## Annex E: Compliant Form

# Complaint Form

The information you provide below is considered sensitive and will be shared only with those who are considered essential to the investigation and disposition of this complaint. Do not feel limited by the space provided in this form – you are encouraged to attach additional pages if you believe it will assist in the investigation.

If you are more comfortable with verbally relaying your report, your supervisor, or any member of management you have discussed your complaint with can complete the form on your behalf. However, you must sign the last page.

| | |
|---|---|
| *Complainant Name:* | |
| *Position:* | |
| *Department:* | |
| *Supervisor:* | |
| 1. *Describe the alleged incident(s).* | |
| 2. *Who was responsible for the alleged incident(s)?* | |

| | |
|---|---|
| 3. *Identify any witnesses to the alleged incident(s).* | |
| 4. *Where did the alleged incident(s) take place?* | |
| 5. *List the date(s) and time(s) that the alleged incident(s) occurred.* | |
| 6. *Have you reported this incident to anyone else? If so, whom?* | |
| *Employee Signature* | *Date* |
| *Signature of Person Completing Form (if not employee):* | *Date* |
| *Name of Person Completing Form (if not employee):* | |

Employees have a right to work in an environment free of discrimination and harassment. Partners' policy prohibits retaliation against any employee for complaining about discrimination or harassment.

## Annex F: Employee Incident Report

# Employee Incident Report

| **A. Injured Employee Data** | | |
|---|---|---|
| Employee Name: | Position: | Full Name of Witness (If applicable): |
| Work Location: | | |
| Date of Accident | Time of Accident<br>A.M. ☐<br>P.M. `☐ | Claim Number (if known) |
| Phone: | Other/Cell Number: | Email: |
| Supervisor | | Supervisor Telephone Number |

**Check all that Apply:**

Type of Accident/Loss: ( )Injury ( )Vehicle Accident ( )Illness ( )Property Damage ( )Fire

(_)Other-Specify:_____

Location of Occurrence: ( )On Premises - Office ( )Off-Premises

Nature of Injury/Illness: (Strain, Laceration, Burn, Fracture, etc.)_____

Part(s) of Body: (Back, Finger, Hand, Foot, etc.)_____

Date of 1st Medical Treatment:__Time__AM/PM

Employee Sent: ( )Back to Work ( )To Doctor ( )Home ( )To Hospital

If applicable: Estimated Time of Disability:_____Days

**For Vehicle Accidents Only**

Owner: ( ) Partners ( )Other (Name/Address)_____

License Plate Number:_____Year:_____

Make/Model:_____

Brief Damage Description:

_____
_____
_____
_____

Repair Hours (Estimated)_____ Estimated Material Costs $_____

| **B. Accident Description** |
| --- |
| Instructions: Obtain written and/or recorded statements from injured employee. What happened? What caused the accident? What were the contributing factors? Reconstruct the sequence of events that led to the injury. Attach additional sheets if necessary. This document becomes an official accounting of the facts surrounding the accident. When documenting the facts, include answers to the following questions: |
| Where did the accident happen and who was involved? Provide a full description of the surroundings of the location and the individuals involved. |
| What was happening at the time of the accident and why was it taking place? |

| |
|---|
| |
| What were the events leading up to the accident? Describe the sequence in order and when they took place. |
| What exactly caused the injury and how did it happen? What were the mechanics, equipment or tools involved? |
| Describe the injury or injuries incurred. What body part and what kind of injury? (Indicate if no injury occurred.) |

| |
|---|
| |
| If a physical injury was avoided, what could have happened to cause an injury? |
| 7. If damage occurred to employer vehicle, please describe the damage: |
| 8. If damage occurred to employer equipment, please describe the damage: |
| **C. Accident Findings** |

| After review of all facts, what was the hazardous condition, unsafe work practice, or other causal factors (procedure, equipment, people, and environment) that contributed to the accident / injury? |
| --- |
| |

Employee Signature: _____

Date:_____

Witness Signature (If Applicable):_____

Date: _____

Supervisor Signature: _____

Date: _____

**Employee Accident Investigation Report**

***To Be Conducted by Program Director***

For all question below please write one of the following: *(Y for Yes; N for No; NA for Not Applicable)*

*I. Environmental Data*

Temperature___

Humidity_____

Weather_____

Wind__

Visibility_____

Lighting_____

Surface (road, steps, floor, etc.).

_____

Condition (smooth, wet, slippery, etc.)

_____

Type Surface (wood, asphalt, grass, etc.)

_____

Describe Roadway (Curve, uphill, intersection, etc.) _____

Traffic Control Devices (Y/N):

(1) Present____

(2) Visible____

For ramps, stairs, steps (Y/N):

(1) Present____

(2) Obstructions_____

*II. Operator/Vehicle (If applicable)*

A. Driver Injured_____

B. Passengers Injured _____

C. Others Injured_____

D. Vehicle Damaged_____

F. Other Vehicle Damaged_____

G. Other Property Damaged_____

H. Driver Licensed for Vehicle_____

I. Seat Belts Worn_____

J. Alcohol/Drugs Involved _____

*III. Equipment/Training Data*

A. Safety Equipment Required_____

B. Safety Equipment Available_____

C. Safety Equipment Used_____

D. Experience a Factor_____

E. Instructions Available_____

F. Instructions Written_____

G. Instructions Adequate_____

H. Alcohol/Drugs a Factor_____

I. Adequate Rest for Use_____

Have similar accident occurred before? _____

How many accidents has this employee had in the past 12 months? _____

Of the above accidents how many were preventable? _____

Once the investigator has completed the questions above and reviewed the incident report, answer the following questions:

In your opinion, what caused the accident:

A. Unsafe Procedure_____ Was this Preventable _____ or Non-Preventable _____

B. Defective Equipment _____ Was this Preventable _____ or Non-Preventable _____

C. Horseplay/Misconduct_____ Was this Preventable _____ or Non-Preventable _____

D. Unauthorized Use _____ Was this Preventable _____ or Non-Preventable _____

E. Poor Hygiene/Housekeeping _____ Was this Preventable _____ or Non-Preventable _____

| **D. Corrective Action** |
| --- |
| What is recommended to prevent this type of accident from occurring again? |

| |
|---|
| |
| List possible factors based on descriptive narrative and information in preceding data fields: |
| List causes: |
| Corrective Action Taken/Planned, with dates: |

Use Additional Forms and Paper if Required

Investigated by: _____

Investigator Signature: _____

Date: _____

Reviewed by: _____

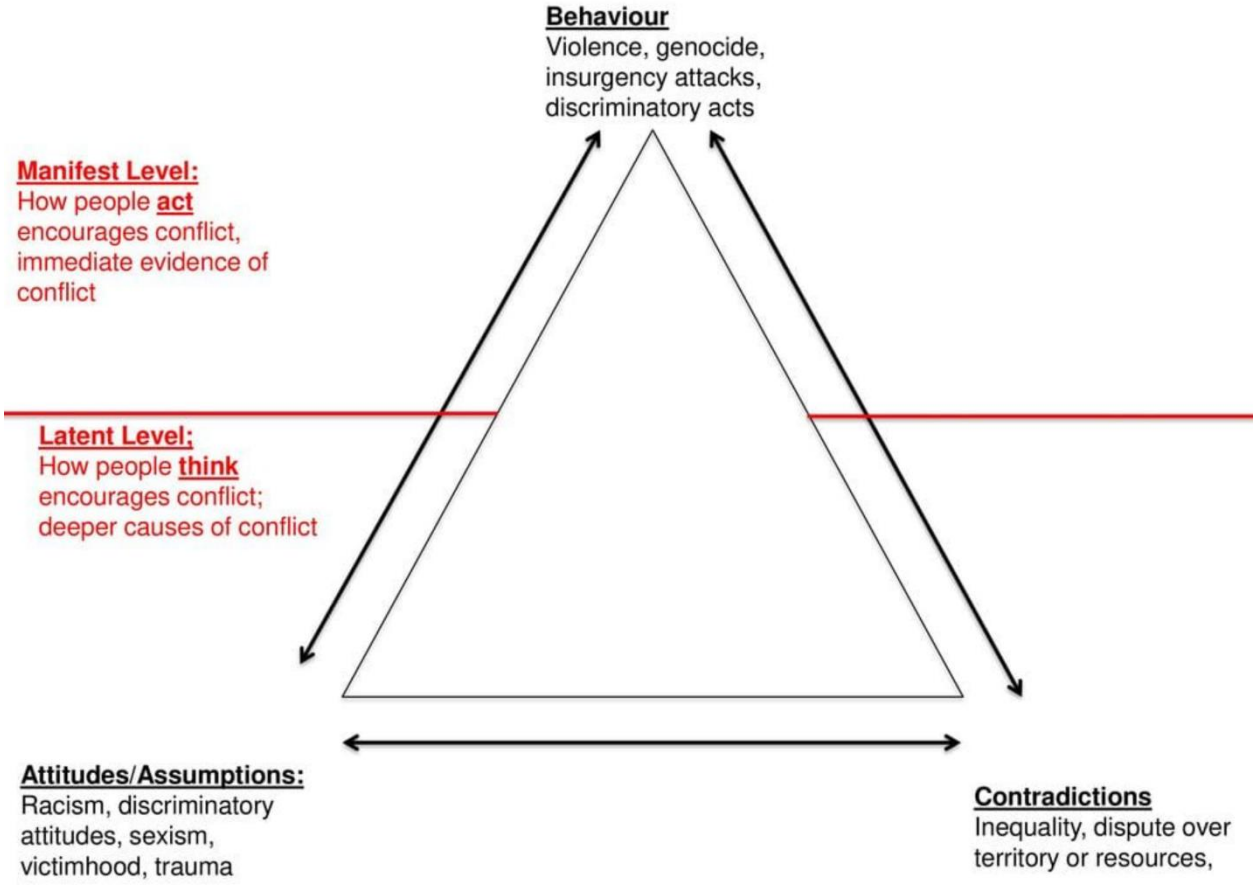
Reviewer Signature: _____

Date: _____

## Annex G: Managing Conflicts Policy

Conflict is defined as the position between two or more parties who have differences; it arises when these parties perceive that their goals, values, or facts are mutually exclusive, i.e., incompatible. "Conflict is the process in which one party perceives that the other party opposes or adversely affects his or her interests." For Partners, it is a priority that within the team we can resolve our conflicts based on mutual respect, tolerance, and acceptance of our differences.

Initially, it is important to know that what we must reach at the moment of a conflict, more than to control it, is to **transform it**. The result of the conflict resolution must lead us to reconcile the contradictions of the parties, their internal attitudes, and their behaviors.



### Forms of Conflict

One of the challenges for team leaders is to develop a team capable of managing and resolving conflict. The resolution of labor conflicts is a challenge that tests our assertiveness and cooperation to reach agreements. These must be assimilated by all teams to improve productivity and the work environment.

### Reason for Conflicts at Work

**Disparate styles:** The personalities of employees can translate into a relaxed work environment or create a clash. This is especially common when working styles are more disparate within the same program.

**Information conflict:** This problem occurs through misunderstandings between employees, such as miscommunication or poor data transmission or instructions.

**Conflict of interest:** It occurs when each of the collaborators has different needs and performs their activities or tasks hindering the interests of the other employees.

**Structural conflicts:** These are generated by cultural or educational inequalities in terms of roles in the line of work.

**Values conflict:** When an employee tries to impose his or her personal values on another member of his or her work team.

Conflicts can be:

- Intragroup, is a conflict between members of the same team.
- Intergroup, occurs between different areas.

### Preventing Labor Conflicts

There is no secret formula to ensure that Partners will maintain its inner peace in all circumstances, but there are a number of actions in our culture that can help achieve it.

**We are empathetic.** It is one of the most important qualities to be able to work in a team. Empathy is a key competence of emotional intelligence. Being empathetic means being able to see the world as the person in front of you, to be able to share and understand their feelings, needs, concerns... and act accordingly. Whatever the job position, empathy will benefit the relationship with other employees, as it significantly improves communication and interpersonal relationships.

- You can do this when you take the **time to get to know** your **colleagues** well.
- **Stay up to date**. Knowing if one of your partners is going on a trip, is about to get married or is going on a trip will help you get to know him or her better.

- **Observe and listen**. To improve empathy, you need to observe carefully. Notice the reactions of the people around you, how they are affected by what is happening to them, and analyze why they may be feeling this way.
- **Reflect**. After observing, reflect on your position on the situation your partner is in. Whether you have been polite, negotiated a point of view or remained unperturbed, etc.
- It is based on the assumption that **your way of seeing things is yours alone**, and that does not make it any more valid than that of others.
- **Help where you can**. Think about how you could be of service to them.

**We learn to negotiate.** The disparity of opinions will occur most of the time when a decision has to be made in a team. Therefore, it is essential that professionals learn to negotiate to **reach agreements** that, while not completely satisfying all of them, avoid conflicts.

**We have sincerity among colleagues.** Assertiveness, or the ability to express a different opinion without feeling bad about it or offending another colleague, is a personal quality that can **save many problems.** Therefore, we foster a climate of sincerity and trust based on mutual respect.

## Stages of Conflict Resolution

Whenever there is a conflict in Partners, we will solve it through the following stages (when the conflict resolution cannot be solved in the first stage, it should evolve to the next stage, and so on):

### 1.1 Accepts and identifies why it is occurring

The moment a labor conflict begins to exist, the last thing you should do is ignore it or pretend it does not exist. This only makes the problem grow. Remember that, as time progresses, so will the problem, and if it is not dealt with correctly, it will generate more tension between the elements involved.

### 1.2 Between the parties

Take the time to have a space for self-reflection, analyze. There is high emotional energy at this stage: fear, aggression, attack, or a self-defense reaction.

It is important to empower yourself if you are the person affected by a conflict, therefore, you must get involved in the solution of the conflict that arises; at the moment it arises, you must dialogue with the other person about your differences, emotions and reach a compromise to improve relations or solve situations.

You should ask the following questions beforehand for self-reflection: With whom should I initiate a conversation to solve the conflict? What conversation should I initiate to take the actions that will lead to overcoming this conflict? What conversation is missing to take charge of this situation?

A place outside the office and with privacy where the parties involved in the conflict can talk is advisable. The supervisor should monitor the situation and if the conflict is not resolved, it is time to intervene directly as a mediator.

### 1.3 Intervention of the Supervisor or leader

As a supervisor you have the role of mediator, it is important to be very objective with the situation; if an **intragroup conflict** arises**,** try to analyze the situation, and not take sides, even if you believe that one side is right over the other. If the conflict **is intergroup,** you should initially make the other person's supervisory situation known and discuss it. Each of you will talk to the parties involved following the three-moment strategy:

**1) Conversation with each party separately**

- ✓ Acknowledgment by the parties of the existence of the dispute
- ✓ Each party involved will express how they feel about the situation.
- ✓ Define the problem, impacts, and perspective of each one.
- ✓ Define individual needs and interests
- ✓ To propose solutions that can end the conflict from the perspective of the party involved as soon as possible.

**2) Consolidating and analyzing the two conversations between supervisors**

- ✓ What do those involved want?
- ✓ Why is this important to them?
- ✓ What are their common interests and what are their distinct interests?
- ✓ What are the expected common concrete results?

**3) Conversation with both parties**

- ✓ Review your understanding of the conflict, respecting each other's perspective.
- ✓ The parties will know how the other party feels about the conflict.
- ✓ Consolidate common understanding of the problem;
- ✓ Consolidate common needs and interests
- ✓ Define concrete solutions (commitments)
- ✓ Agree on follow-up steps

Notes:

- Even if the conflict is with another area/program, it is important to be objective; it is not about defending someone on your team, it is about you as leaders being part of the solution.
- When you are mediating, try to lead the meeting to clear examples of situations in which the parties have felt emotionally affected, without this being expressed personally; for example: "I felt upset when... Where... Why".
- Avoid personal attacks, in the tensest conflicts, employees can make very serious accusations and even formulate personal disqualifications.

- During conflict resolution avoid using phrases such as: The other party made me feel...he/she always...he/she never, etc.
- It avoids resistance and encourages conciliation.
- You are looking for an immediate and effective solution.
- Reaches agreements that are convenient for each party.

### 1.4 HR Intervention

When the conflict reaches this stage, after going through the two previous ones, the supervisor must send an email to HR with a summary of the situation, reporting how the conflict was previously handled. In this step, with the intervention of the supervisor, the situation will be addressed with the parties involved, trying to follow up on the commitments made, and formally a commitment and the respective follow-up will be made. In this phase, the arguments presented will be evaluated and decisions will be made on compromises for the resolution of the conflict.

### 1.5 Coexistence Committee

At this stage, the conflict becomes a situation of alleged labor harassment, where some of the parties involved may make what happened known to the committee for the respective procedure, before moving to this stage it is important to consider what is and what is not labor harassment.

In the following comparison you can identify which behaviors may constitute workplace harassment and which may not:

| **Constitutes Labor Harassment** | **It does not constitute Labor Harassment.** |
|---|---|
| Acts of physical aggression, regardless of their consequences (this may also constitute a crime of personal injury). | It is not harassment in the workplace to make a firm decision, as long as it is made in a respectful manner. |
| Insulting or insulting expressions about the person, using foul language or alluding to race, gender, family or national origin, political preference, or social status. | Respectful conduct shall be considered cordial treatment, without discrimination or discrimination based on creed, color, or political tendency, free of foul or hurtful words. |
| Hostile and humiliating comments of professional disqualification expressed in the presence of co-workers; or even in private. | The calling of attention or the haste required for the performance of an assigned task shall not be considered harassment in the workplace. |
| Unjustified threats of dismissal expressed in the presence of co-workers. | It is not harassment in the workplace to demand diligence and compliance in the work corresponding to the fulfillment of your position. |
| Multiple disciplinary complaints by any of the active subjects of the harassment, whose recklessness is demonstrated by the outcome of the respective disciplinary proceedings. | It is not harassing to make complaints, in a well-founded and serious manner, without suspicion of retaliation and to achieve an adequate working environment for the fulfillment of strategic objectives. |

| | |
|---|---|
| The humiliating disqualification and in the presence of co-workers of the proposals or work opinions (a humiliating qualification violates the dignity of the person, even if it is done in private, in this event, there is room for the victim to prove the conduct). | The counter-argumentation of proposals and the disparity in opinions, in a well-founded manner, is not harassment in the workplace, since this is in the company's best interest. |
| Mockery of physical appearance or manner of dress, made in public; (this conduct in private is just as reprehensible, it becomes harassment at work, only that the victim must prove it). | A generalized suggestion about clothing or even a private suggestion, if its purpose is to promote personal respect and that of the company, will not give rise to harassment at work. |
| The public allusion to facts pertaining to the privacy of the person (If at any time it is done, even in private). | It is not harassment at work to give advice in private or to conduct a psychological personality study, as long as it is not used for advantageous purposes by the company or its representatives. |
| The imposition of duties ostensibly alien to labor obligations, openly disproportionate demands on the performance of the work entrusted and the abrupt change of the place of work or of the contracted work without any objective basis concerning the technical necessity of the company. | Occasional tasks, even in areas other than the usual one, will not be considered as harassment in the workplace, since they are proposed as extraordinary circumstances. |
| The requirement to work excessive hours with respect to the contracted or legally established workday, sudden changes in the work shift and the permanent requirement to work on Sundays and holidays without any objective basis in the needs of the company, or in a discriminatory manner with respect to other workers or employees. | Excessive working hours are legally supported and grounded as overtime. Other types of activity are detrimental to work and physical well-being. |
| Treatment that is notoriously discriminatory with respect to other employees with respect to the granting of labor rights and prerogatives and the imposition of labor duties. | It will not be harassment to assign special functions in consideration of the qualifications of the personnel, as long as they are not saturated in terms of work. |
| Refusal to supply materials and information absolutely indispensable for the performance of the work. | In special situations, due to changes in policies and plans established in the company, it may be necessary to restrict the delivery of raw materials; this, of course, has the logical consequence of not being able to demand compliance with the results outlined. From this point of view, it will not be labor harassment. |
| The clearly unjustified refusal to grant leave, sick leave, ordinary leave, and vacations, when the legal, regulatory, or conventional conditions for requesting them are met (a very different matter will be the refusal of | For urgent needs of the company and in the event of possible labor modifications, the granting of leaves of absence or leave of absence, as well as vacations, may be temporarily restricted. Up to |

| | |
|---|---|
| leave for necessary visits to the doctor, since they are part of the physical integrity of the employee and is an inalienable right). | this point, harassment in the workplace is not conceivable. |
| Sending anonymous, telephone calls and virtual messages with insulting, offensive or intimidating content or subjecting them to a situation of social isolation. | It should be remembered that anonymous and denigrating messages may constitute a criminal offense of extortion or slander. |

In the event of the repeated and demonstrable presence of any of these behaviors, every employee has the right to file a complaint for alleged harassment at work before the labor coexistence committee directly, bypassing the previous steps.

## Annex H: Flex Work Arrangement Policy

### Scope

The following flexible work arrangement (FWA) policy applies to all Partners of the Americas (Partners) staff working both part-time and full-time currently working in our home office (HO), and who have been employed for more than 90 days (after completion of the employment probationary period).

### Objective

The objective of this policy is to outline the options available to staff for flexible working arrangements. Partners recognizes that a better work-life balance can improve employee motivation, performance, and productivity, and reduce stress. A flexible work arrangement attracts and retains Partners' top talent, as it gives employees greater flexibility and control over when and where they work within or outside of the standard workday. Therefore, Partners wants to support its employees to achieve a better balance between work and their other priorities, such as caring responsibilities, leisure activities, further learning, and other interests. Partners is committed to providing flexible working arrangements, as long as the needs and objectives of the organization can be met.

### Goals

The primary goals of Partners' flexible work arrangement is outlined as follows:

- Help attract and retain top talent
- Foster an environment of trust by rewarding productivity
- Improve employee morale and overall job satisfaction
- Reduce absenteeism while increasing staff efficiency
- Become more productive
- Reduce distractions
- Avoid peak commute times and/or reduce commute times
- Reduce work life conflicts and stress

### Responsibilities

Several individuals are responsible for ensuring the appropriate use of the Flexible Work Arrangement Policy. Those responsible and their duties are defined below.

- ***Staff members:*** are responsible for requesting and participating in flexible work arrangement according to the procedures outlined in this policy including:

Identifying personal needs and possible solutions, and being realistic about what is possible

  - Ensuring the physical security of Partners information and assets at all times when outside of Partners premises

- Taking responsibility for delivering their own workload as agreed with their supervisor
- Reporting any workplace incidents, injuries or illnesses that occur while undertaking flexible work arrangements
- Ensuring that any home based working arrangement complies with all Partners policies and procedures, including the necessary resources and equipment
- Reviewing and modifying arrangements as their personal circumstances or operational requirements change from time to time.

- ***Supervisors:*** are responsible for:
  - Recognizing the need for and thinking creatively about flexible work arrangements
  - Managing differences in work styles and practices e.g. managing employees on a home based work arrangement, etc.
  - Tracking the career progression of employees who are on flexible work arrangements to ensure they have access to all training and other benefits and to ensure that they suffer no disadvantage in opportunities for promotion or career development
  - Evaluating the outcomes of flexible work arrangements and looking for improvements.

- ***Senior Management:*** under this policy is responsible for:
  - Determining when flexible work arrangements are appropriate
  - Consulting with supervisors and staff members who request flexible work arrangements
  - Recommending for approval, monitoring, and discontinuing flex arrangements as outlined in this policy.

- ***Human Resources (HR):*** under this policy is responsible for:
  - Consulting with individuals and management requesting information about flexible work arrangements
  - Reviewing the program continuously to ensure fair and consistent application
  - Designing and implementation of the flexible work arrangement policy in accordance with Partners policies and applicable laws and regulations
  - Providing continuous communication and education on the policy
  - Gathering feedback
  - Refining the policy as necessary to meet the needs of Partners.

- ***President & CEO:*** under this policy is responsible for:

- Approving, monitoring, and discontinuing flex arrangements as outlined in this policy.

### Flexible Work Arrangements Policy

Partners will strive to work with employees to find an agreeable arrangement for their flexible work arrangement. While not all positions will be amenable to flex work arrangements, consideration of flexible work schedules will be reviewed on a case-by-case basis taking into account the program and department's needs and the employee's ability to maintain a high level of service to Partners. A successful flexible work arrangement will enhance the quantity, quality, and productivity of the employee's level of service. A flexible work arrangement must be authorized in advance by an authorized official, as outlined in the policy below. Furthermore, Partners reserves the right to disallow a flexible work arrangement if the needs of the organization cannot be met.

### Types of Flexible Work Arrangements Available

Flexible work arrangement or "FWA" are work hours or work weeks that vary from the standard schedule of Partners in which the staff member works. FWA options include flex time, compressed work weeks, and reduced work schedules.

The standard workweek of Partners is seven (7) consecutive days, beginning on Monday at 12:00 am and ending on Sunday at 11:59 pm. The normal work schedule for all full-time employees is an eight (8) hour day, five (5) consecutive days a week beginning on Monday. Normal business hours for regular, full-time personnel are 9:00 am - 5:30 pm, Monday through Friday, although responsibilities may require more than this period. Time taken for lunch is one half hour. All employees must be available during Partners' core work hours of 10:00am - 3:00pm EDT. The following flexible work arrangements are available to Partners staff as defined below.

### Flex Time Definition

Flex Time is an agreed-upon starting and departure times that differ from the standard schedule of Partners without reducing the number of hours worked per day. Schedules may be fixed for a period or can vary from day to day.

To vary the above Partners standard work week, employee may create their own proposed Flex Time schedule, or may utilize one of the options below.

- ***Core hours with variable schedule:*** Staff may arrive and leave at different times each day and but must be present during the core hours of 10:00 am to 3:00 pm EDT unless otherwise approved and included in the Flex Work Arrangement Agreement.
- ***Variable day:*** Staff may work a different number of hours each day as long as they average a specified number per day or per week. This can be used on a regular basis or occasionally for a school function, doctor's appointment, etc.; it can also help address issues with

working across different time zones (e.g. if staff work until 1:00 a.m., they could come in later the following day).

- ***Summer flex time:*** Work hours differ during the summer (e.g. start work at 7:30 am instead of 9:00 am and finish at 4pm, instead of 5:30pm, assuming ½ hour lunch break). Available from May 1st to September 30th.
- ***Day-of-the-week flex:*** Work hours are flexed on a particular day of the week.
- ***Mixed Approach:*** Leave office early and work from home at night (still full time). Still must be available during core hours.

### Compressed Work Week Definition

A compressed work week is when regularly scheduled hours are worked and fixed over fewer than five days a week. The employee would work longer hours in exchange for a reduction in the number of working days in the pay period cycle. For example, if an employee works a standard 40 hour work week in four days instead of the usual five days, this will result in one day off (i.e., generally referred to as a "compressed day") in that pay period cycle.

The earned compressed time is taken off during the pay period cycle in which it is worked. A compressed work week is a fixed arrangement and does not vary from one pay period to the next. As a compressed work week arrangement requires working the standard number of hours in a pay period cycle (i.e., weekly, or bi-weekly), earned compressed time off cannot be accumulated, banked, or used in a future pay period cycle.

If for any reason the employees on compressed work week is permitted to go home because of inclement weather, early dismissal, or for any other reason, on a day when the employee is scheduled to work extra time as part of a compressed work week, the employee is required to make up the additional time beyond the standard workday which would have been worked on the day of the closure/early dismissal. Partners and the employee will consult on the adjustments required to the employee's compressed work week schedule to ensure the total number of required hours are actually worked during the pay period cycle.

If a holiday falls within a compressed work week, those 8 hours should go to reduce the necessary hours the employee works that week. (e.g. if any employee regularly works 40 hours a week in 4 days and there is a holiday, they will only need to work 32 hours that particular week to cover their commitment).

In addition to the general guidelines above, for compressed workweek schedules, supervisors and employees should consult with HR for changes in recording time on timesheets and impact on leave.

### Reduced Work Schedule

A staff member on a reduced work schedule works less than full time but no less than 50% of the regular work week schedule. Reduced work schedule options include:

- Working any percentage between 50% and 100% of time
- One or more days off every week
- Present in the office every day, but leave early or come in late

Note: Many reduced work schedules will result in a change in compensation, which is based on the new level of effort (LOE) (e.g. If an employee receives $50K annual salary at 100% LOE, and under their new reduced work schedule they only work 60% of the time, their new annual salary would be $30K, given the new lower LOE).

### Maternity/Paternity Leave – Reduced Work Schedule

Employees on maternity/paternity leave may also utilize a reduced work schedule to extend their leave for a period of no longer than 16 weeks. For example, an employee can continue to be paid at 100% LOE, and the employee would utilize a combination of leave (maternity, paternity, annual leave, etc.) and telework at a predetermined LOE. The employee would be 50% LOE working and 50% on leave, resulting in full 100% LOE compensation.

### Phased Retirement – Reduced Work Schedule

Employees may also choose to participate in phased retirement, which is the transition from full-time work to retirement by working reduced hours.

### Guidelines and Conditions for Flexible Work Arrangements

The availability of eligible employees to have a flexible work arrangement is a privilege and not a right or entitlement. As such, whether to grant or deny the privilege is within the sole discretion of President & CEO with due consideration, taking into account factors including but not limited to, the nature of each employee's job, the needs of the business, and operational requirements. The conditions below describe the mutual expectations regarding the arrangement between Partners and the employee. Its terms do not constitute, nor should they be construed as, a contract of employment, and its terms do not vary the at-will employment status between Partners and the employee. Partners reserves the rights to change, amend, or revoke any company benefit, including flexible work arrangements, at any time, with or without cause and with or without notice. Under an approved flexible work arrangement:

- The employee is still subject to Partners of the Americas policies and procedures.
- The employee's flexible work arrangement and any subsequent changes must be reviewed and approved in advance by the employee's supervisor, Unit Leader, and HR, with final approval by the President & CEO.
- The employee agrees to adjust his or her schedule to attend meetings and respond to changing business needs, as required by Partners.
- The employee agrees to adjust his/her schedule to attend planned office events or important meeting. If a scheduled event or meeting falls on a day off due to a flex schedule, the individual must attend or provide a written justification for failing to comply with this

policy. Justification must be sent prior to the event or meeting to the employee's Supervisor, HR, and the President & CEO.

- The employee agrees that in the event that a last-minute meeting occurs at the same time they are on flex, the individual must follow-up with the team to collect information and supportive documentation shared during the meeting.
- The employee's goals and objectives are established every year as part of the Employee Performance Review process. All assigned work will be completed in accordance with this plan and established policies, procedures, and processes.
- The employee agrees to keep his or her supervisor informed of his or her progress on assignments, as agreed upon by the employee and their supervisor.
- The employee also agrees to keep his or her supervisor informed of any problems that he or she might experience with an FWA.
- Periodic progress reviews -The employee is subject to the same Employee Performance Review procedures and standards as employees who do not have a flexible work arrangement. However, there may be agreed upon periodic progress reviews to evaluate the arrangement.

A decline in performance or failure to comply with the provisions of the flexible work arrangement agreement may be grounds for progressive discipline, up to and including dismissal, and/or discontinuing the flexible work arrangement.

### Enrollment in a Flexible Work Arrangement

To participate in the Flexible Work Arrangement benefit that Partners offers, the employee will need to have been employed for more than 90 days (after completion of the employment probationary period). The employee will need to determine with the help of their manager which type of flexible work arrangement will work best. Remember that a flexible work arrangement is a privilege, not an entitlement, and it requires flexibility on your part to meet the needs of Partners.

Once a flexible work arrangement has been discussed with the employee and their supervisor, they will need to complete a Flexible Work Arrangement Request Form ("FWA Request"). The FWA Request will need to be signed by the employee, employee's supervisor, the Unit Leader, HR, and the President & CEO. Depending on the nature of the request, the requesting employee may need to meet with HR to fully present the request and/or situation.

### Review of Flexible Work Arrangement Requests

When a flexible working arrangement is proposed, Partners will need to take into account a number of criteria including (but not limited to) the following:

- Potential benefits
- Costs associated with the proposed arrangement
- Effect of the proposed arrangement on other staff

- Existing structure of the department
- Availability of staff resources
- Details of the tasks specific to the role
- Workload of the role
- Whether it is a request for a reasonable adjustment related to a disability
- An employee's performance prior to making the request
- An employee's track record of working autonomously
- Health and safety issues
- Ability of job to be performed through the proposed flexible work arrangement
- Potential adjustments considered in the proposal or in the job requirements to make this proposal acceptable
- An employee's track record of consistently delivering good quality output and strong time management skills
- Employee's demonstration of initiative and self-motivation
- Amount of direct supervision required
- Required changes in the supervision of the employee to implement the proposed flex work arrangement
- Temporary or permanent arrangement

Each request will be considered on a case-by-case basis. Agreeing to one request will not set a precedent or create the right for another employee to be granted a similar change to their working pattern.

### Approval/Denial of Flexible Work Arrangement Request

The employee will be informed in writing of Partners' decision as soon as is reasonably practicable, but no later than 30 days after the request has been submitted. A variation to a work pattern may be made on a permanent or time limited basis. The request may be granted in full, in part or refused. Partners may choose to propose a modified version of the request, the request may be granted on a temporary basis, or the employee may be asked to try the flexible working arrangement for a trial period.

If a flexible working arrangement is a permanent change, as in reduced work schedule LOE, etc. the change will be made on a transition letter. The letter will indicate the new working terms and conditions, including any resulting changes in compensation, as applicable.

### Flexible Work Arrangement Trial Period

Where there is some uncertainty about whether the flexible working arrangement is practicable for an employee and/or Partners, a trial period may be agreed upon. A typical trial period will not be shorter than 1 month and no longer than 3 months. If a trial period is arranged, Partners will allow

sufficient time for an employee and their supervisor to implement and become used to the new working practices before taking any decisions on the viability of a new arrangement.

The employee will be informed in writing of the start and end dates of the trial period (although Partners may reduce or lengthen the trial period where necessary with the agreement of the employee).

At the end of the agreed upon trial period, the employee's supervisor, Unit Leader, and HR will meet to review the outcomes of the trial. Regardless of the decision, the employee will receive a notice indicating the results. Partners reserves the right, at the end of the agreed-upon trial period, to require the employee to revert to their previous working arrangement.

### Review of Flexible Work Arrangements

Once flexible working arrangements are adopted, supervisors must review these work arrangements regularly on a continuous basis to ensure:

- All deliverables are being met
- The quality, quantity and timeliness of the work performed is to the standard required
- The impact on other members of the work team is not detrimental to the overall performance of the team and Partners
- The operational requirements of the area are being met
- The employee is complying with the terms of the agreement
- The flexible working arrangement is continuing to meet the needs of the employee.
- Work health and safety requirements continue to be met
- Partners policies and procedures are being adhered to

Annually, during the employee annual performance review process, any employee flexible work arrangement must be reviewed using the Flex Work Performance Review Form. Upon review, if the arrangement is considered beneficial, it may be extended for another year in writing. If the arrangement is deemed unnecessary/not beneficial, the arrangement will be terminated for the following year.

### Termination of a Flexible Work Arrangement

Flexible work arrangements may be modified or terminated by Partners or the employee at any time for any reason and with or without cause and with or without notice, or as needed to ensure that the arrangement does not negatively impact the employee's or the unit's work quantity, quality, or productivity.

### Flexible Work Arrangement Compliance

All flexible work arrangements must conform to the overtime, record keeping, meal break and other provisions of the Fair Labor Standards Act and other relevant laws. Lunches and/or scheduled rest period are not eliminated when staff works a flexible work arrangement.

### Flexible Work Arrangement Complaints

Partners strongly opposes any form of victimization of individuals who work, or request to work under flexible working arrangements. If an employee feels that they have been treated unfairly or are dissatisfied with part of the flexible work arrangement process, they should raise their concerns with HR.

## Annex I: Telecommuter Memo and BISTEC Guiding Principles

As we move forward with a more intentional approach to working in the office, Partners has created the ***BISTEC Guiding Principles*** and illustrative examples of how to apply this in the office. Join us in this opportunity to connect with your colleagues, re-energize your work, and contribute to the success of our organization.

**BISTEC Work Guidance**

**This guidance applies to Home Office.**

*Partners recognizes that offices outside the US must develop guidelines based on business needs and applicable laws, and HR will support those efforts if needed.*

### Purpose:

Preparing and engaging previously remote employees is essential as businesses reopen and return to in-person work. The transition can be challenging, and employees may face difficulties adjusting to their new work environment. There is a greater understanding of an organization's capacity to operate efficiently and effectively without ever needing to be in the office. Conversely, the ability to build team cohesion through physical proximity and engaging in impromptu and informal collaboration has suffered. In the future, Partners wants to harness the benefits we have experienced through flexible and remote working while also re-introducing the interpersonal interactions that remain integral to our organization's culture.

### Guiding Principles:

In addition to business needs, other intentional reasons why an employee comes to the office are determined by the following principles:

- **Brainstorming & Ideation**
  - When employees are in the same room, generating new ideas and brainstorming creative solutions to problems can be more manageable. Face-to-face interactions can help stimulate creativity and inspire new ways of thinking.
- **Serving**
  - By being together, employees can share and empower each other by teaching other tools and resources to create a space where they learn, grow, and serve our local communities.
- **Trust-building**
  - Building trust and strong collegial relationships is essential for effective teamwork and collaboration. Being physically present in the same space can help build trust and rapport between team members, leading to better communication and more productive working relationships.
- **Envisioning**
  - When employees are physically present in the same space, it can be easier to align on goals and envision a shared future for the organization. In-person meetings and workshops can help clarify objectives and create a shared sense of purpose.
- **Connecting, Collaborating, Communicating**

- Being in an office environment can provide opportunities for employees to connect and socialize with each other, which can improve morale and foster a sense of community within the organization.
- Emphasizing cross/unit department collaboration and connections when working in the office fosters a culture of teamwork and improves organizational performance.

**Examples of Actionable BISTEC Guiding Principles:**

- Face-to-Face Interactions: Connect with colleagues to have informal conversations
- Use Shared Space: Use shared space or common areas for informal interactions between different units and help break down barriers and encourage collaboration.
- Walking/Wandering Meetings: Abandon the desk and walk to see what inspires the team or take a mental break.
- Mind Mapping: Challenge your team to create a mind map that uses only images or sketches – no words allowed.
- Lunch and Learn: Identify external or internal speakers to come in and discuss a topic openly.
- Two Truths and a Lie: This activity involves each team member sharing three statements about themselves - two true and one false. The rest of the team tries to guess which statement is a lie. This can be a fun way to get to know each other better and build trust.
- Scavenger Hunt: A scavenger hunt in the office can be a fun and engaging way to bring people together. You can create clues and riddles that lead team members to various locations in the office, and the first team to complete the hunt wins a prize.
- Group Lunch: Schedule a team lunch or breakfast where everyone brings a dish or snack to share. This is an excellent opportunity for team members to bond over food and conversation.
- Office Olympics: Create an "Office Olympics" where team members compete in various challenges, such as paper clip toss, pencil flipping, or coffee mug relay. This can be a fun way to get people moving and working together.
- Volunteer Work: Consider scheduling a group volunteer activity where team members work together to help a local charity or organization. This can be rewarding to build trust and camaraderie while giving back to the community.
- Team Building Workshops: Hire a professional team-building company to facilitate team-building activities in the office. This can be a great way to improve communication, build trust, and foster a sense of teamwork among staff.
- Game Nights: Organize a game night where team members can play board games or card games together. This can be a fun and relaxing way to build relationships and encourage socialization.

## Annex J: Statement of Confidentiality of Corporate Affairs

The nature of *Partners'* work makes it essential that employees or representatives do not divulge proprietary company information unless expressly authorized by an officer of the company. All inquiries about *Partners'* corporate policies or details of our business or work products are to be referred to or reviewed with an officer of the company. Unless authorized by a company officer, employees or representatives may not reveal details of *Partners'* clientele and contracts.

As required by FAR 52.203-18, FAR 52.203-19, and FAR 3.909, Partners does not require employees, representatives, and contractors to sign internal confidentiality agreements that could prevent or impede the reporting of fraud, waste, or abuse to appropriate authorities. Employees, representatives, and contractors are encouraged to report concerns, suspicions, or allegations of fraud, waste, abuse, or other misconduct to their supervisor, any member of management, HR, or to Foster Thomas at bbulger@fosterthomas.com. Anonymous reporting options are available and will be treated confidentially to the extent permitted by law.

Partners prohibits retaliation against any employee or representative who reports or participates in the investigation of suspected fraud, waste, abuse, or any other misconduct in violation of laws, regulations, or company policies.

### Use of Proprietary and Confidential Information

*Partners'* employees and its representatives may have access to and become acquainted with proprietary and confidential information such as client lists, rates, financial records, internal structure, internal policies, publications, inventories, computer software and related documentation and similar information, which is owned by *Partners* and which is regularly used in the operation of the business of the company. I agree not to use such proprietary or confidential information obtained during employment or contractual relationship with *Partners* as a means of making private profit.

### Nondisclosure of Proprietary or Confidential Information

I recognize and acknowledge that certain information concerning *Partners'* business is a valuable, special, and unique asset of the company. I agree not to disclose *Partners'* proprietary or confidential information to any person or entity for any reason, except as required in the course of employment or contractual relationship, or required by law or court order; and further agree not to make use of such information for my own benefit or the private benefit of others.

### Ownership of Property

All files, records, documents, drawings, specifications, equipment, and similar items relating to the business of *Partners*, including computer software or software documentation, whether prepared by me or otherwise coming into my access or possession, shall remain the exclusive property of *Partners* and shall not be reproduced, removed, or transmitted from the premises of the company under any circumstances without the prior written consent of the company. Upon termination of employment with *Partners*, I will return all company property to my supervisor or a company officer.

I agree that if any trade secret, formula, device, technology, technical information, process, etc. ("invention") is made by me during the course of my employment or contractual relationship, alone

or jointly with others which is made with *Partners'* equipment, supplies, facilities, trade secrets or time, or which relates to the business of *Partners*, or which results from any work performed by me for *Partners*, such invention will belong to *Partners* and *Partners* will have full authority to use, transfer or license it. I agree that *Partners* will have the right to keep such invention as a trade secret if it so chooses. I further agree to assign to *Partners* my rights in any invention where the company is required to grant those rights to the United States Government. It is further agreed that *Partners* is not required to designate me as the inventor or author of any such invention if it is distributed publicly or otherwise.

I understand that violation of this policy is cause for immediate dismissal or termination of contractual relationship and/or demand for financial restitution to *Partners* for damages to the limit allowed by law.

## Annex K: Professional Development Policy

### Purpose

The Professional Development Policy refers to the company's learning and development programs and activities to support Partners global workforce.

In the modern competitive environment, professionals need to replenish their knowledge and acquire new skills to do their jobs better. The purpose of this policy is to provide guidelines to apply to Partners' Professional Development Global Funds, as well as finding new ways towards professional success.

### Policy Elements

Under this policy, Partners understands that staff, Senior Leadership and HR should collaborate to build a continuous learning and development culture. The Professional Development Program is learning undertaken by staff and their supervisors to maintain and advance skills, knowledge, and competencies, specifically as it relates and adds value to the job, and Partners' mission.

It is a dynamic process and can be achieved not only through participation in formal coursework, but also through professional experience, collaboration, mentoring, participation in activities of professional organizations, and independent study and research. In addition, Partners has procured a cloud-based learning management system that contains and serves as a central learning hub with thousands of educational micro-courses and other resources.

While the engagement in professional development varies widely between groups and individuals, the following areas of knowledge and skills development should be considered relevant to the success of the staff and Partners mission and initiatives:

- Business skills, including financial stewardship, foreign language acquisition, technical knowledge related to Partners technical areas, human resource management, and strategic leadership.
- Communication skills, including basic skills, conflict management, resolution, negotiation, and facilitation.
- Team communications and/or team-building skills.
- Research funding and grant administration knowledge and skills.
- Knowledge and skills related to diversity, equity, and inclusion.
- Knowledge and skills in the use of technology to increase the efficiency and effectiveness of Partners business processes/practices.
- Maintaining and developing professional expertise.
- Other core skills, including, but not limited to, critical thinking, problem-solving, public speaking, professional writing, and intercultural fluency

### Program Eligibility

All professional development opportunities under this policy must be related to improving the skills of individual staff members in their present jobs, and/or to enhancing staff potential for advancement to a position within Partners which the individual has a reasonable and clear expectation of

achieving. Professional development opportunities should first focus on helping staff excel in their current position. If staff has mastered all skills required for their current role, the funds in this program can be used to develop skills for a future growth opportunity within Partners.

### Staff Eligibility

This policy applies to all Partners full-time employees, and full-time consultants (case by case), that have completed more than 90 days of employment (completion of employment probatory period in good standing is required). This policy applies to all staff who work exclusively for Partners. Exceptions to this policy must be approved by the President & CEO and HR.

### General Guidelines

- All eligible staff are covered by this policy without discriminating against race, disability, gender, age, religion, appearance, citizenship or immigration status, sexual orientation, genetic information, marital status, social or economic status, or any protected group or affiliation under State, Federal Law, or local country regulations.
- Supervisors and unit VPs will evaluate the success of professional development efforts and must keep records for reference and better improvement opportunities.
- All professional development efforts should respect cost time limitations, as well as individual and business needs.
- All professional development requests should be cross-checked first to see if the relevant course material is available on Partners cloud-based learning management system before submitting a request for external opportunities.
- Supervisors and unit VPs are encouraged to use their allocated professional development budgets and time to support the program and team's needs.
- Staff should try to make the most out of their professional development opportunities by studying and finding ways to apply knowledge to their work.

### Approval of Professional Development

Approval of professional development opportunities must be provided by the staff member's supervisor and the following Approval Team:

- Unit VP and HR Director for Home Office Staff
- Chief of Party/Project Director, designated field HR representative for field staff.
    - If the field program does not have a designated HR representative, the Home Office HR team will designate the individual to be on the Approval Team.

The Approval Team must ensure that the request complies with this policy and ensure that the professional development is documented in the staff's personnel file.

### Cost

Under this policy, eligible staff may request reimbursement from the Professional Development funds as follows: Up to US$ 750 per calendar year or pro-rated for eligible staff who begin working with Partners in the calendar year.

Eligible costs may include, but not limited to:

- Onsite workshop cost with a third-party vendor.
- Purchase of textbooks, E-books, and training materials, printed or download.
- Tuition, registration, and admission fees.
- Costs of logistic, transportation, lodging, airfare, and meals associated with any Professional Development program.

Partners will pay for the eligible costs up front upon request.

### Unallowable costs

- Late payment fees.
- Costs funded by outside sources, including costs covered by scholarships, student loans, or other outside aid.
- Course material offered by Partners learning management system.
- Fees associated with college or university entrance exams (GMAT, GRE' LSATS, TOEFL, etc.).

### Hours and Attendance

Partners encourages staff to develop a continuous learning culture; however, course attendance and completion of studies for Professional Development must not interfere with the employee's core hours of work, unless approved by the Approval Team. Partners may approve employees to use their paid leave as needed. An additional Flex Work Arrangement (FWA) request may be available to address Professional Development scheduling needs. In addition, staff must ensure satisfactory job performance during enrollment in any Professional Development program.

### Application Process

The staff member will need to determine with the help of their supervisor which type of program will work best to improve or master performance and project needs in their current role.

The following must be considered when determining a Professional Development program:

- **The nature and purpose of the course of study/opportunity:** Is the opportunity related to the current job or a target position within Partners?
- **Potential benefits:** Will the outcome of the course/opportunity be beneficial to the staff and Partners?
- **Staff eligibility:** Is the staff eligible for participation in the program as stipulated in this policy; and
- **The staff's current performance:** If the staff needs to improve performance, the courses/opportunities should first focus on capacity building for the current position prior to developing skills for potential future positions within Partners.

Once a Professional Development program has been identified by the staff and approved by their supervisor, the staff must complete the Professional Development Application Form in PandaDoc. Once completed, the Professional Development Application Form will be submitted to the Approval

Team, as defined in Section 6, for review and approval, BEFORE registering and commencing the course/opportunity. Once the Professional Development Application is approved, the staff will be notified to start making the arrangements to complete and attend the Professional Development program requested.

### Payment & Reimbursement Request

The Professional Development program courses can be paid using Partners credit card, or via ACH/Wire. In some cases, Partners does not pay for the Professional Development program directly; therefore, staff will have to pay upfront and provide the following supporting documents and attach them to the expense report for reimbursement. The HR & Finance team will provide guidelines on a case- by-case basis.

- Expense report (must follow ACH or Wire requirement under Finance office guidelines)
- Professional Development Request Form approved by the Approval Team
- Proof of payment (receipt)
- If Applicable, proof of passing grades and/ or certification of attendance

## Annex L: Vehicle Use Policy

Partners has company/project vehicles that may be available for business purposes only. All employees must comply with the following policy which describes the processes to operate, fuel, maintain, keep records, and generally manage vehicles owned, rented, or leased by Partners. The policy is intended to reduce risks to Partners and its personnel by establishing reasonable restrictions on the use, maintenance and management of vehicles owned, rented, or leased directly by Partners. Each Project Director is responsible for compliance with the policy of any vehicle owned or leased by Partners under their project. For the purposes of this policy a vehicle including any automobile, van, motorcycle, all-terrain vehicle (ATV) or any other motorized vehicle.

Failure to comply with this policy will constitute a serious offense and will result in disciplinary action up to and including termination.

### Authorization for Use of Partners Vehicles

Only authorized employees or approved external drivers are eligible to operate Partners vehicles. All authorized employees and approved outside drivers must be named/covered by local and/or international insurance policies. Authorization may be given for a short, one-time period or for longer periods of time up to the entire life of the project under which the vehicle will be used. Authorization may be revoked based on changes in the safety context, accidents or other misuse of the vehicles, operation of the vehicle by unauthorized drivers, failure to track mileage, or other non-compliance with this policy. To be an authorized driver of Partners vehicle, the authorization form in attachment 1, must be completed. Available in Pandadoc here.

### General Requirements on Use of Partners Vehicles

All employees using company vehicles must following the below requirements:

- Only authorized employees of Partners are eligible to drive company vehicles.
- Partners provides vehicles for business use to allow employees to drive on designated business assignments. Company vehicles are **only** to be used for business travel.
- Vehicle drivers shall not take actions that contradict Partners policies and procedures unless there is a safety situation or an emergency that requires it.
- Only vehicles owned or titled by Partners may be used for official Partners business, unless authorization is given in writing by the Project Director to use a personal vehicle for business use, see guidelines for personal vehicles below.
- Persons who are not employees and passengers who are not directly linked to Partners projects may only travel in Partners vehicles when authorized.
- All authorized employees or approved external drivers must be 25 years of age or older and must have a valid driver's license, and have proof of annual background check and vision screening. Project Directors for each project must maintain copies of all documentation in the project files.
- Authorized employees and external drivers approved to drive Partners vehicles must inform the Project Director of any changes that may affect their legal or physical ability to drive.

- On occasion supervisors must check the employee's driving record to ensure that the employee's record is clean and without motorized vehicle violations.
- Copies of the vehicle insurance, registration and the emergency telephone numbers must remain in Partners vehicles at all times.
- Smoking or vaping is prohibited in all Partners vehicles.
- Under no circumstances may weapons or illegal substances be transported in Partners vehicles.
- Keys must be keep in a secure location or should be returned to the Project Director when the vehicle is not in use or on business assignment.
- Key should only be held by authorized employees of Partners who are eligible to drive company vehicles.
- Any driver of Partners' vehicles must ensure that the equipment does not experience any deterioration either by his/her direct negligence or by the fault of a third party. Therefore, the employee will personally ensure the proper physical maintenance of the vehicle he/she is responsible for by checking the daily cleanliness and routine parameters, which the employee will note before each use.
- All individuals driving Partners' vehicles, must always have a valid driver license on them while utilizing the company vehicle.
- Employees holding jobs requiring regular driving for business as an essential job function must, as a condition of employment, be able to meet the driver approval standards of this policy at all times.
- Drivers must always drive safely and responsibly and follow all traffic regulations, including the speed limit and pay special attention to pedestrians and cyclists.
- Drivers must be mindful of the weather, and avoid driving during severe weather conditions, when feasible.
- Use of handheld cell phones (including texting) while behind the wheel of a moving vehicle being used on company business is strictly prohibited.
- Employees are responsible for any driving infractions or fines as a result of their driving.
- Nonbusiness passengers (i.e., family and friends) are should not ride in company vehicles.
- Vehicle doors must be locked when in motion.
- Company vehicles shall always be secured when not in transit by being locked, keys removed, and alarms activated if so equipped.
- Employees must report any accident, theft or malicious damage involving a company vehicle to the Project Director and HO project team and the Compliance Team at compliance@partners.net, regardless of the extent of damage or lack of injuries. Such reports must be made as soon as possible but no later than 6 hours after the incident unless employee is medically incapable of reporting.
- Employees are expected to cooperate fully with authorities in the event of an accident. However, employees should make no voluntary statement other than in reply to questions of investigating officers.
- Seatbelts must always be worn by all passengers in the vehicle.

- Employees are not permitted, under any circumstances, to operate a company vehicle with any physical or mental impairment that causes the employee to be unable to drive safely. Furthermore, employees shall not operate any company vehicle while using or consuming alcohol, illegal drugs or prescription medications that may affect their ability to drive.
- The driver is responsible for ensuring all necessary precautions are always taken to prevent damage and theft of the company vehicle and/or its contents. Whenever an employee leaves a company vehicle, the following must be done:
    - Roll up all windows
    - Lock all doors
    - Do not leave merchandise and equipment in open view inside a car, which may tempt a break-in. Remove all valuable items or lock them inside the trunk and out of sight when the vehicle is left unattended.
- Authorized employees and approved external drivers must never leave the vehicle unattended unless it is parked in a secure parking lot or garage. In the event that the authorized employee or approved external driver does not find a safe place to store the Partners vehicle overnight, he/she shall return and store it in the Partners office parking lot.

### General Requirements on Use of Personal Vehicles

Personal vehicles may not be used for official business without express written permission of the Project Director and acknowledgement that Partners is not responsible for loss, damage, injury, or death of passengers resulting from the use thereof. If an employee is authorized to use their vehicle, they must comply with all maintenance and technical and mechanical inspection requirements and other legal obligations. To request approval to use a personal vehicle for business purposes, the approval form in attachment 2 must be completed. Also available in PandaDoc here. To use a personal vehicle for business purposes, the vehicle must have the following minimum insurance coverage: $100,000 USD coverage with maximum deductible of $5,000 USD for third party liability.

### Waivers for Non-Business Related Passengers

Non-business related passengers (i.e. family or friends) seeking to accompany employees on company-sponsored travel must obtain a waiver prior to travel. This waiver process ensures that non-business related individual acknowledge and assume any associated risks, liabilities, and responsibilities during the journey. Failure to secure a waiver may result in non-business related passengers being ineligible to join company-related travel activities. All non-business related passengers must sign indemnity waivers in attachment 3 and available in PandaDoc here.

### Vehicle Driving Restrictions

Any employee who has a "major violation" in the last five years will not be eligible to drive company vehicles unless special authorization is given by the COO. Major violations include but are not limited to:

- Driving under the influence of drugs/alcohol;
- Failure to report an accident;
- Reckless driving;

- Making a false accident report;
- Driving while license is suspended or revoked; or
- Attempting to evade a police officer.

### Vehicle Travel Restrictions

Vehicles within cities must consider the current security situations in the country. The Project Director is responsible for ensuring that their project vehicles are not operated in unsafe contexts or locations and for putting restrictions in place to adhered to U.S. Embassy restrictions for travel.

In general, for travel outside of the capital city the earliest departure time is 6:00 AM and the latest return time is 6:00 PM. Exceptions may be requested in writing to the Project Director.

### Vehicle Inspections

Before each use, employees must complete a basic vehicle and safety check before and update the TripLog application. Vehicles found to be in an unsafe condition may not be operated until repaired. The basic check should include confirmation that the following parts and components are functioning properly:

- or brakes
- or steering mechanism
- or whistle
- or windshield wipers
- or mirrors
- or lights
- or tires

Any damage identified during the basic verification should be recorded on TripLog and reported to the Project Director.

### Vehicle Log

A mileage log must be maintained for each vehicle, identifying the date and purpose of each trip and the beginning, and ending odometer readings. The mileage log must be maintained for each vehicle using the TripLog application. Vehicle drivers are responsible for ensure the application is tracking for each trip. Mileage is tracked on the application, even when offline. If for someone reason the driver is having difficulty with the AutoStart of the application, they must manually start and stop the route for their trip on the application.

At the end of each day, the employee will need to ensure TripLog is updated and report any damages and/or issues with the vehicle on the application, including taking any photos of issues/damages. If an employee fails to update the mileage log, they will face disciplinary action. The Project Director is responsible for ensuring that records are accurately maintained for project vehicles.

At the end of each month by the 5th of the following month (or business day prior if the 5th falls on a weekend or holiday), employees will submit all the prior month's trips on TripLog. Supervisors will

need to review and approve the prior month's trips on the application by the 10th of the month (or business day prior if the 10th falls on a weekend or holiday).

### Reporting Vehicle Accidents

In the event of an accident, drivers involved/responsible parties shall take the following measures:

- If anyone is hurt or injured, call for medical assistance;
- Contact the Project Director and HO Project Team immediately;
- Report the incident immediately to the local police and obtain a copy of the police report;
- Get the below information if possible:
    - Nature and extent of the damage to vehicles and other property;
    - Name and address of the legal owner of the other vehicle or vehicles, if any.
    - Name, address, driver's license number, and date of birth of the driver of the other vehicle or vehicles, if any;
    - License number, make and model of the other vehicle or vehicles, if any;
    - Name of the insurance company of any other driver or drivers, policy number and expiration date, and policy holder's name and address;
    - Time, place, and date of the accident;
    - Names and addresses of anyone injured and description of injuries; and
    - Names and addresses of any passengers and other witnesses.
- Exchange vehicle identification, insurance company name and policy numbers with the other driver (if applicable);
- Do not admit negligence or liability. Give no information except as required by law enforcement officers;
- Do not attempt settlement, regardless of how minor;
- Take a photograph of the scene of accident;
- Complete the employee accident report found in Annex F.

After the accident, the employee should follow legal guidelines for exchanging information with other drivers and report the accident to local police. Employees cannot guarantee payment to other parties. The employee will be responsible for completing the Employee Accident Report Form found in Annex F. Such reports must be made as soon as possible but no later than 6 hours after the incident unless employee is medically incapable of reporting. All photos, police reports, employee accident reports, and other information relating to the incident must be retained and a copy sent to the Project Director and HO Project Team. The HO Project Team will work with the Compliance Team & HR to contact the insurance provider and file claim, as necessary.

### Vehicle Repairs and Maintenance

For all vehicle repairs, employees must review the warranty on the vehicle when applicable. The warranty must be reviewed to ensure that the repairs are not covered under the existing warranty and/or that the repairs are done at the necessary shop which are authorized outlets for service.

Additionally, the driver must check that the original parts of the vehicle are not replaced used parts, a dishonest practice quite common for radiators, batteries, lamps etc. in some places.

### Normal Vehicle Maintenance

The driver will respect the normal maintenance schedule of the vehicle, usually based on the mileage of the car or the number of months of use if it occurs before. The objective is to maintain company vehicles in a safe and operating condition by using the most economical, reliable, and up-to-date procedures and technologies available, all in accordance with the original manufacturer's recommendations. Employees who are having vehicles serviced for normal maintenance, should follow all necessary procurement standards and recommended maintenance timelines.

The Project Director is responsible for ensuring that Partners vehicles receive normal maintenance according to the schedule (e.g., based on mileage or number of months of use).

### Major Vehicle Repairs

For all major vehicle repairs the process and selection of the provider will be documented in accordance with the normal procurement standards set forth in Partners Procurement Policy.

If the major repair pertains to an accident report and an insurance claim is filed, then HO Compliance Team in coordination with the Project Director will work with the insurance agent to cover the cost less any deductible.

### Vehicle Insurance and Registration

All Partners' vehicle must be registered in the respective country with the appropriate authorities. Any vehicle that is not properly registered cannot be used for business, until the registration is completed and/or updated. Copies of current vehicle registration information must always be retained in the glovebox of the vehicle, and a second copy filed with the Project Director and HO Project Team.

Under Partners HO vehicle insurance policy, it provides protection to authorized drivers of company vehicles while on official business. The insurance policy covers collision, fire, theft, and liability and includes a deductible. If the accident is due to driver negligence, the insurance claim may be denied, and the employee may be responsible for all costs associated with the incident.

## Attachment 1 – Authorization Form: Employee Business Use of Vehicle

**REQUEST FOR AUTHORIZATION TO OPERATE PARTNERS VEHICLE**

Available in Pandadoc here.

This form is the application to operate vehicles at Partners. You must have the approval of the Project Director to operate any vehicle at Partners.

| | | | |
|---|---|---|---|
| **Country:** | | **Vehicle Description & Plate Number:** | |
| **Employee's Full Name** | | **Position** | |
| **Date of vehicle request:** | | **Authorization period:** | |
| **Vehicle location (Address)** | | **Grant number for vehicle use reason:** | |
| **Reason for use:** | | | |
| **Signature of key handover and vehicle condition check** | | | |

**CERTIFICATION AND KNOWLEDGE**

I hereby certify that, whenever I operate a vehicle for company business I will comply with:

- That I am an employee with a current contract with Partners.
- I have a valid driver's license, and will not drive with a suspended or cancelled driver's license.
- That I am over 25 years old.
- I have not received more than one traffic ticket and I have not had any accidents in the last year.
- That the vehicle will be used for program activities and not for personal activities.
- Perform vehicle and safety inspection before the start of the trip.
- Will track mileage on TripLog application.
- I will not smoke or allow the use of cigarettes of any kind inside the vehicle.
- I will maintain all security measures for the vehicle including parking in authorized and secure locations.
- That I will comply with the speed and traffic regulations in force.
- I will comply with safety regulations including the use of seat belts for the driver and passengers, not using a cell phone while driving, or driving while fatigued, under the influence of alcohol/illegal drugs or driving under unfavorable weather conditions.
- Not to transport or allow the transport of weapons or illicit substances in vehicles.
- I will assume the payment of the traffic violations that have been imposed on the vehicle during the time the vehicle is assigned to me.
- I will immediately report to the Project Director any accident or damage to the vehicle that occurs.
- Any violation of the above requirements may result in disciplinary action for the person

responsible for the vehicle including termination of employment with just cause.

**By signing below you certify that you have read and understood the conditions of use of the Partners vehicle use policy and the condition set forth above.**

Signature of employee: _____ Date:_____

**By signing below, I approve the employee's authorization to use Partners vehicle.**

Signature of Project Director: _____ Date:_____

## Attachment 2 – Authorization for Use of Personnel Vehicles for Official Business

Available in PandaDoc here.

Name and position of Employee: _____

Period of authorization: ☐ Life of Project ☐ Other _____

If other, dates and purpose: _____

Vehicle information:

Make/Model/Year:

VIN:

License Plate:

Insurance information (please attach copy of insurance card):

Contact information in case of an emergency: Name: Phone:

**Certification and Acknowledgement**

I hereby certify that, whenever I operate my personal vehicle for company business I will comply with:

- That I am an employee with a current contract with Partners.
- I have a valid driver's license, and will not drive with a suspended or cancelled driver's license.
- That I am over 25 years old.
- I have not received more than one traffic ticket and I have not had any accidents in the last year.
- That the vehicle will be used only for program activities.
- Check tire pressure, fuel level, brake fluid and oil level before the start of the trip.
- I will not smoke or allow the use of cigarettes of any kind inside the vehicle.
- I will maintain all security measures for the vehicle including parking in authorized and secure locations.
- That I will comply with the speed and traffic regulations in force.
- I will comply with safety regulations including the use of seat belts for the driver and passengers, not using a cell phone while driving, or driving while fatigued, under the influence of alcohol/illegal drugs or driving under unfavorable weather conditions.
- I will not transport or allow the transport of weapons or illicit substances in the vehicle.
- I will assume the payment of the traffic violations that have been imposed on the vehicle during the time the vehicle is assigned to me.
- I will immediately report to the Project Director any accident or damage that occurs.
- Any violation of the above requirements may result in disciplinary action for the person

responsible for the vehicle including termination of employment with just cause.

- I understand that **(i)** Partners is not responsible for loss, damage, injury, or death of passengers resulting from the use of the same, and that **(ii)** the exceptional authorization to use personal vehicles may be revoked based on changes in the security context, accidents or other misuse of the vehicles, operation of the vehicle by unauthorized drivers, failure to monitor mileage or other non-compliance with this policy.

**Informed consent and indemnity waiver for non-employee passengers**

I, the undersigned, as the occupant of the vehicle with license plates above, voluntarily declare and accept the following:

1. That I understand and accept that Partners does not provide a transportation or rental service.
2. That I have decided to use the vehicle as an occupant, assuming full responsibility for the occurrence of any conduct that affects or endangers my life, health, integrity, and conduct.
3. That by occupying the vehicle I understand that I have no contractual relationship with Partners regarding the use of the vehicle and therefore I waive to claim any indemnity, damage, or compensation of any nature, arising from a conduct or fact that affects or endangers my life, health, integrity, and conduct.
4. That as a consequence of the above, I hold harmless Partners, its affiliates, directors, employees, partners, and representatives, against any conduct or fact that affects or endangers my life, health, integrity, and conduct.
5. That I conduct Partners, its employees, administrators, and contractors from all liability arising from the negligence or fault of Partners for personal injury or death, 163on or damage to conduct or any other risk to which I may be exposed and that may occur to me during my transfers in the vehicles administered by Partners.
6. That I agree to hold Partners harmless from any claim, conduct action for any conduct or omission on my part, affecting Partners.

**By signing below you certify that you have read and understood the conditions of use of the Partners vehicle use policy and the condition set forth above.**

Signature of employee: _____ Date:_____

**By signing below, I approve the employee's request to use their personal vehicle for business purposes.**

Signature of Project Director: _____ Date:_____

## Attachment 3 - Authorization for Non-business Related Passengers

Available in PandaDoc here.

Name and position of Employee: _____

Passenger name: _____

Passenger connection with Partners: ☐ Friends ☐ Family ☐ Other _____

Period of authorization: ☐ Life of Project ☐ Other

If other, dates and purpose: _____

Vehicle information:

Make/Model/Year:

VIN:

License Plate:

**Informed consent and indemnity waiver for non-employee passengers**

I, the undersigned, as the occupant of the vehicle above, voluntarily declare and accept the following:

1. That I understand and accept that Partners does not provide a transportation or rental service.
2. That I have decided to use the vehicle as an occupant, assuming full responsibility for the occurrence of any event that affects or endangers my life, health, integrity, and property.
3. That by occupying the vehicle I understand that I have no contractual relationship with Partners regarding the use of the vehicle and therefore I waive to claim any indemnity, damage, or compensation of any nature, arising from an event or fact that affects or endangers my life, health, integrity, and property.
4. That as a consequence of the above, I will hold harmless Partners, its affiliates, directors, employees, partners, and representatives, against any event or fact that affects or endangers my life, health, integrity, and property.
5. That I release Partners, its employees, administrators, and contractors from all liability arising from the negligence or fault of Partners for personal injury or death, loss or damage to property or any other risk to which I may be exposed and that may occur to me during my transfers in the vehicles administered by Partners.
6. That I agree to hold Partners harmless from any claim, demand or action for any conduct or omission on my part, affecting Partners.

**By signing below you certify that you have read and understood the conditions of use of the Partners vehicle use policy and the condition set forth above.**

Signature of occupant: _____ Date:_____